

CORRIGENDUM (*Revised Tender Document*) **Dated: 15-12-2025**

TENDER NO: **GEM/2025/B/ 6944812**

Refer FCI's GEM tender no. **GEM/2025/B/ 6944812** for Selection of Agency For Maintenance & Support Of "Financial Accounting Package (FAP)"

The modification in respective section of RFP have been incorporated through this corrigendum.

A Revised Tender Document published through this corrigendum supersedes the earlier published tender document.

Revised RFP is attached herewith.

CORRIGENDUM - I REQUEST FOR PROPOSAL FOR SELECTION OF AGENCY FOR MAINTENANCE & SUPPORT OF “FINANCIAL ACCOUNTING PACKAGE (FAP)” Bid No: GEM/2025/B/6944812

S. No.	RFP Document Reference(s) Section	Previous Clause	Amended Clause
1.	8.1 SLA for Maintenance & Support -Point#3 & Note and respective Clause	1. Time taken to recover from Disaster scenario requiring switchover to DR site and successful operations from the DR site and restoring services to normalcy at DR with no data loss. (This SLA is applicable for both production environment and during Quarterly DR Drills) 2. The switch over from DC site to DR site shall be without any interruption in services. RPO = 5 min. RTO = 1 hr. Note: a. Maintenance & Support SLAs outlined in Clause 8.1 (except Clause 8.1 Point#1 System Availability) may be considered for waiver by FCI, on written request from SI, for the first one (1) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter	1. Time taken to recover from Disaster scenario requiring switchover to DR site and successful operations from the DR site and restoring services to normalcy at DR with no data loss. (This SLA is applicable for both production environment and during Quarterly DR Drills) 2.The switch over from DC site to DR site excluding third-party dependencies except Cloud Service Provider, shall be without any interruption in services RPO = 5 min. RTO = 2 hr. Note: a. Maintenance & Support SLAs outlined in Clause 8.1 (except Clause 8.1 Point#1 System Availability) may be considered for waiver by FCI, on written request from SI, for the first two (2) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter

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2.	8.1 SLA for Maintenance & Support, Point#2	Application response time – (This is the time taken from submission of any request by end user to response of the request to the end user).	This clause has been removed
3.	8.2 SLA for Helpdesk Services, Point#3,4	Medium severity incidents shall be resolved within 1 working days of problem reporting. Measured as the time taken from the time the issue/ incident is reported in the tool. Low severity incidents shall be resolved within 2 working days of problem reporting. Measured as the time taken from the time the issue/incident is reported in the tool.	Medium severity incidents shall be resolved within 2 working days of problem reporting. Measured as the time taken from the time the issue/ incident is reported in the tool. Low severity incidents shall be resolved within 4 working days of problem reporting. Measured as the time taken from the time the issue/incident is reported in the tool.
4.	8.3 SLA for Patch Updates / Upgrades, Note		Note SLA for Patch Updates / Upgrades outlined in Clause 8.3 may be considered for waiver by FCI, on written request form SI, for the first two (2) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter.
5.	11.2 Application Details	Number of Issues – Last 3 months average 378 issues (Data and Code Fix)	Average Ticket count 1) Data Fix - 200 2) Bug Fix - 175 3) Educational Issues - 1650
6.	2.10 – Helpdesk, Point # c	c. The SI shall be responsible to arrange necessary services such as SMS Gateway, Email, Toll Free number (telecom services) or any other similar tools required during the contract	c. The SI shall be responsible to arrange necessary services such as Email / SMS Gateway / Toll Free number (telecom services) or any other similar tools required during

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		period. Any cost involved in the arrangement of these shall be borne by the SI. Recurring cost towards SMS charges (if any) shall be borne by FCI on actuals.	the contract period. Any cost involved in the arrangement of these shall be borne by the SI.
7.	8.2 SLA for Helpdesk Services Point #c	c. For Critical and High issues, resolution timelines shall include Saturdays/holidays and extend beyond regular FCI working hours (9:00 AM–6:00 PM).	For Critical and High issues, resolution timelines shall include Saturdays/holidays and extend beyond regular FCI working hours (9:30 AM –6:00 PM).
8.	4.10 Pre-Qualification (PQ) Criteria, Point#12	The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), must be an Oracle Certified Partner with a valid certification extending beyond the bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period.	The bidder, must be an Oracle Certified Partner with a valid certification extending beyond the bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period
9.	8.3 SLA for Patch Updates / Upgrades	The SI shall ensure all applicable stable patch updates (including Critical Patch Updates, Security Patches) and major version upgrades are implemented as per CSP guideline Patch Categories: - Critical/Security Patches: Within 30 calendar days of release. - Major Version Upgrades: Within 90 calendar days, post UAT approval. No patch/update shall be skipped unless explicitly exempted by FCI in writing. All patches	The SI shall ensure that all the components in the system are within supported versions. The SI shall ensure all applicable stable patch updates (including Critical Patch Updates, Security Patches) and major version upgrades are implemented as per CSP guideline Patch Categories: - Critical/Security Patches: Within 30 calendar days of release. - Major Version Upgrades: Within 90 calendar days, post UAT approval. No patch/update shall be skipped unless explicitly exempted

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		must be tested in staging before production rollout.	by FCI in writing. All patches must be tested in staging before production rollout. The Clause 8.6 Point#1 and Clause 8.3 Point #1 are similar. Therefore, the SLA can be merged into a single Clause
10.	8.6 Other SLA's	Timely upgrades and updates	The Clause 8.6 Point#1 and Clause 8.3 Point #1 are similar. Therefore, the SLA can be merged into a single Clause
11.	4.11 Technical Qualification Point#4	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall have experience of Design, Development, Implementation/Operation & Maintenance of Software (applications) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies/ Private Organisation , of value specified herein:	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall have experience of Design, Development, Implementation/Operation & Maintenance of Software (applications) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies of value specified herein:
12.	8.2 SLA for Helpdesk Services, Point # a	Maintenance & Support SLAs outlined in Clause 8.2 may be considered for waiver by FCI, on written request form SI, for the first one (1) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter. This relaxation shall not apply in the case of Critical Issues and High Severity Issues.	Maintenance & Support SLAs outlined in Clause 8.2 may be considered for waiver by FCI, on written request form SI, for the first two (2) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter. This relaxation shall not apply in the case of Critical Issues and High Severity Issues.

Note: For better clarity, please read the respective corrigendum in conjunction with the RFP as a whole.

REVISED DOCUMENT
FOR
REQUEST FOR PROPOSAL FOR SELECTION OF
AGENCY FOR MAINTENANCE & SUPPORT OF
“FINANCIAL ACCOUNTING PACKAGE (FAP)”

FOOD CORPORATION OF INDIA

FCI Headquarters
16-20 Barakhamba Lane,
New Delhi – 110001

Disclaimer

The information contained in this Request For Proposal (RFP) document or subsequently provided to the bidder, either verbally, via documents or any other form by or on behalf of Food Corporation of India (FCI) or any of its employees or advisors, is provided to the bidder based on the decided terms and conditions mentioned in this RFP document.

- a. This information is on a wide range of matters, some of which depend upon interpretation of law. While every effort has been made to provide comprehensive and accurate background information, requirements, and specifications, bidders shall form their own conclusions about the services required.
- b. Bidders of this RFP shall consult their own legal advisors in relation to this RFP.
- c. All information supplied by bidders shall be treated as contractually binding on the bidders upon successful award of the assignment by FCI based on this RFP. No commitment of any kind, contractual or otherwise shall exist until and unless a formal written contract has been executed by or on behalf of FCI.
- d. FCI may cancel this RFP at any time prior to a formal written contract. Once a bidder has been selected through this e-tendering process and awarded a formal contract for execution of work as defined in this RFP and its corrigenda, the respective bidder shall be bound to carry out all activities defined under this RFP for operations and maintenance of entire application.
- e. If post award the selected bidder retracts from carrying out such work, PBG (including e-BG) shall be forfeited and FCI shall award the work to any alternate party at the risk, cost, or responsibility of the selected bidder.
- f. FCI, its employees and advisors make no representation or warranty and shall have no liability to any person including any bidder under any law, statute, rules, regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in this RFP document or otherwise, including the accuracy, adequacy, correctness, reliability or completeness of the RFP document and any assessment, assumption, statement or information contained therein or deemed to form part of this RFP document or arising in any way in this selection process.
- g. FCI accepts no liability whether resulting from negligence or otherwise however caused arising from reliance of any bidder upon the statements contained in this RFP document.
- h. FCI may in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information, assessment or assumption contained in this RFP document.
- i. In all matters regarding doubts raised by bidders on the clauses of the RFP, interpretation of clauses, scope, terms, and conditions, as stated in this RFP and/or its subsequent corrigenda/addenda, if any, the decision of FCI shall be final and binding on all bidders. The issue of this RFP document does not imply that FCI is bound to select any bidder or to appoint the selected bidder for the assignment. FCI reserves the right to reject in full or part, any, or all bids without assigning any reason whatsoever. FCI

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reserves the right to assess the bidder's capabilities and capacity. The decision of FCI shall be final and binding.

- j. The bidder shall bear all costs associated with or relating to preparation and submission of its bid including preparation, copying, postage, delivery fees, expenses or any other requirement associated with any demonstrations or presentations which may be required by FCI, formation or any other costs incurred in connection with or relating to its bid. All such costs and expenses shall remain with the bidder and FCI shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by a bidder in preparation or submission of the bid, regardless of the conduct or outcome of the selection process.

Critical Dates & Time

Bid Publishing Date	28th – NOVEMBER - 2025
Last date and time for submission of queries	04th – DECEMBER – 2025, 11:59 PM
Pre-bid conference date and time	05th - DECEMBER - 2025, 3:00 PM
Date and time for submission of online bids	19th – DECEMBER - 2025, 3:00 PM
Date and time of opening of technical bids	19th – DECEMBER - 2025, 3:30 PM
Date and time of opening of commercial bids	Shall be intimated later

Fact Sheet

Related Clause	Details
Method of Selection	The method of selection of agency for this RFP is Quality and Cost-Based Selection (70:30)
RFP Release	The RFP document will be published on the Government e-Marketplace (GeM): https://gem.gov.in/ and on the official website of the Food Corporation of India (FCI): https://fci.gov.in/ on 28th - NOVEMBER - 2025. The interested bidders can download the RFP and other detailed terms & conditions from the GeM Portal or FCI website after registration, which is free of cost. Start date and time for RFP document for further action by bidders: 28th - NOVEMBER - 2025 End date and time to download RFP document: 19th - DECEMBER - 2025
Pre-Bid Meeting Details	A pre-bid meeting will be held on 05th - DECEMBER - 2025, 3:00 PM at Board Room, 3rd Floor, FCI Headquarters, New Delhi. To encourage wider participation, an online option shall also be provided for bidders who are unable to attend in person. Interested bidders may send an email request to agm1it@fci.gov.in to receive the virtual meeting access details. The name, address, and telephone numbers of the Nodal Officer is: The Chief General Manager (IT) Food Corporation of India 16-20, Barakhamba Lane New Delhi – 110001 E-mail: gmit.fci@nic.in Bidders are requested to send their pre-bid queries to FCI by 04th - DECEMBER- 2025, 11:59 PM prior to the pre-bid meeting scheduled on 05th - DECEMBER - 2025, 3:00 PM via email to: agm1it@fci.gov.in. Pre-bid queries shared via mode other than specified shall not be acknowledged.
Language	Proposals shall be submitted in English ONLY Supporting documents and printed literature furnished by the bidder with the bid may be in any other language if they are accompanied by translations in the English language, duly authenticated and certified by the bidder. Supporting materials, which are not translated into English, may not be considered. For interpretation and evaluation of the bid, the English language translation shall prevail.

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Related Clause	Details
Proposal Validity	Bids must remain valid up to 90 days from the date of opening of Technical Bid. However, FCI reserves the right to extend this period by another 30 days at its discretion, which shall be binding on the bidders. Thereafter, this period may be further extended by the parties on mutual consent.
Proposal Submission Type	The bidders shall submit their responses in 2 parts namely “Pre-Qualification & Technical Proposal” and “Commercial Proposal” by the due date and time. The online packets containing the Proposal shall include the Scanned copy of all relevant documents, serially numbered, and duly signed on each page by the bidder. All documents required to be submitted need to be digitally signed or self-attested by the Authorized Signatory.
Proposal Submission address	The bidders are required to submit the soft copies of their bids electronically on Government e-Marketplace: https://gem.gov.in/ using valid Digital Signature Certificates.
Submission Date	Proposals must be submitted electronically no later than 19th – DECEMBER - 2025, 3:00 PM on the Government e-Marketplace (GeM). Please note that the server time, which is displayed on the bidder’s dashboard, will be considered as the standard time for referencing the deadlines for submission of the bids by the bidders. The bidders shall follow this time during bid submission.

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Abbreviations & Acronyms

Sr No	Abbreviations	
1	AP	Accounts Payable
2	API	Application Programming Interface
3	AR	Accounts Receivable
4	ATS	Annual Technical Support
5	BAU	Business As Usual
6	BE	Bachelor of Engineering
7	BG	Bank Guarantee
8	BI	Business Intelligence
9	BID	Bidder Identification
10	BOM	Bill of Materials
11	BTS	Bill Tracking System
12	CA	Chartered Accountant
13	CBDT	Central Board of Direct Taxes
14	CBIC	Central Board of Indirect Taxes and Customs
15	CERT	Computer Emergency Response Team
16	CFPP	Central Food Procurement Portal
17	CM	Contract Management
18	CMM	Capability Maturity Model
19	CMMI	Capability Maturity Model Integration
20	COTS	Commercial Off-The-Shelf
21	CPU	Central Processing Unit
22	CR	Change Request
23	CRC	Cyclic Redundancy Check
24	CRN	Change Request Note
25	CSP	Cloud Service Provider
26	CSV	Comma Separated Values
27	CV	Curriculum Vitae
28	CVC	Central Vigilance Commission
29	DB	Database

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Sr No	Abbreviations	
30	DC	Data Center
31	DFPD	Department of Food and Public Distribution
32	DO	Divisional Office
33	DOS	Depot Online System
34	DR	Disaster Recovery
35	EBS	E-Business Suite
36	ED	Executive Director
37	EMD	Earnest Money Deposit
38	EPFO	Employees' Provident Fund Organisation
39	ERP	Enterprise Resource Planning
40	FAP	Financial Account Package
41	FAQ	Frequently Asked Questions
42	FCI	Food Corporation of India
43	FRS	Functional Requirement Specification
44	FY	Financial Year
45	GCP	Google Cloud Platform
46	GFR	General Financial Rules
47	GL	General Ledger
48	GST	Goods and Services Tax
49	GSTIN	GST Identification Number
50	HA	High Availability
51	HQ	Head-Quarter
52	HR	Human Resources
53	HRMS	Human Resource Management System
54	HTML	Hypertext Markup Language
55	ICT	Information and Communication Technology
56	ID	Identifier
57	IFS	Indian Financial System
58	IPR	Intellectual Property Rights
59	IS	Information System

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Sr No	Abbreviations	
60	ISO	International Organization for Standardization
61	IT	Information Technology
62	ITIL	Information Technology Infrastructure Library
63	ITSM	IT Service Management
64	JDK	Java Development Kit
65	KT	Knowledge Transfer
66	LD	Liquidated Damages
67	LGD	Local Government Directory
68	MIS	Management Information System
69	MPLS	Multi-Protocol Label Switching
70	MS	Microsoft
71	MSE	Micro Small Enterprises
72	MSME	Micro, Small and Medium Enterprises
73	MSP	Minimum Support Price
74	NDA	Non-Disclosure Agreement
75	NIC	National Informatics Centre
76	OEM	Original Equipment Manufacturer
77	OFC	Optical Fibre Cable
78	PAN	Permanent Account Number
79	PBG	Performance Bank Guarantee
80	PDF	Portable Document Format
81	PDS	Public Distribution System
82	PFMS	Public Financial Management System
83	PM	Project Manager
84	PMP	Project Management Professional
85	PQ	Pre-Qualification
86	PSU	Public Sector Undertaking
87	QCBS	Quality and Cost Based Selection
88	QOS	Quality of Services
89	RAC	Real Application Clusters

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

Sr No	Abbreviations	
90	RBI	Reserve Bank of India
91	RCA	Root Cause Analysis
92	RFP	Request for Proposal
93	RHEL	Red Hat Enterprise Linux
94	RO	Regional Office
95	RPO	Recovery Point Objective
96	RTGS	Real Time Gross Settlement
97	RTO	Recovery Time Objective
98	SFMS	Structured Financial Messaging System
99	SLA	Service Level Agreement
100	SLM	Service Level Management
101	SMS	Short Message Service
102	SOW	Scope of Work
103	SPOC	Single Point of Contact
104	SQL	Structured Query Language
105	SRS	Software Requirement Specification
106	SSL	Secure Sockets Layer
107	TQ	Technical Qualification
108	UAT	User Acceptance Testing
109	UI	User Interface
110	URL	Uniform Resource Locator
111	UX	User Experience
112	VM	Virtual Machine
113	VPN	Virtual Private Network
114	WAN	Wide Area Network
115	ZO	Zonal Office

Important Definitions

Term	Description
Bidder	The term 'bidder', wherever it occurs, shall refer to a party/firm/agency that submits a bid in response to the request for proposal (RFP) offering their pricing, terms, and other relevant details or conditions. The bidder also refers to the sole bidder or Consortium (Lead bidder and consortium partner)
Bidding Document	Documents issued by FCI include any amendments thereto that set out the terms and conditions of the given procurement and include the invitation to bid.
Contract	The term 'Contract,' wherever it occur, shall mean, and include the contract agreement signed between the bidders selected from this e-tendering process and FCI for executing this project. Terms and expressions not herein defined shall have the meaning assigned to them in the Indian Contract Act, 1872, or the General Clauses Act, 1897.
Contract/Project Period	The Contract/Project Period is number of days as outlined in the contract that the contract shall run for.
Commercial Bid	The term 'Commercial Bid', wherever it occurs, shall mean the "price bid" and all documents (Please refer Section 12 for details)
SLA	Service Level Agreement (SLA) is a negotiated agreement between two parties wherein one is the customer, and the other is the service provider. It is a service contract where the level of service is formally defined. In practice, the term SLA is sometimes used to refer to the contracted delivery time (of the service) or performance.
System Integrator (SI)	The term System Integrator (SI), Selected Agency (SA) or Service Provider, wherever used in this RFP, shall refer to the party/firm/agency that submits a valid response to this Request for Proposal (RFP) and is subsequently selected by FCI for award of the contract.
System	System shall mean the entire set of hardware, software, application components, middleware, databases, configurations, integrations, network elements, and supporting services etc, that constitute the Financial Accounting Package (FAP) solution being maintained and supported by the Selected Bidder under the scope of this RFP. It includes all existing components procured by FCI (e.g., Oracle EBS, RAC, WebLogic, etc.) and any enhancements, patches, or modules developed, configured, or integrated by the System Integrator (SI) during the contract period
Technical Bid	The term 'Technical Bid', wherever they occur, shall mean all documents required as part of Eligibility Criteria under Section, technical solution, approach and methodology and all forms and formats as applicable (Please refer Section 10 – Appendix – II for details) required to establish eligibility of the participating bidders for executing this project.

Structure of the RFP

This RFP is meant to invite bids from interested system integrators (“Bidders”) capable of delivering the services described in this document. The complete RFP is contained in two parts as explained below:

Part A: Technical Bid

It comprises of following four sections:

I. Project Background and Scope of Work

This section of the RFP details out all information that may be required by potential bidders to understand the background of the RFP issuing authority i.e., Food Corporation of India (FCI), the background of the project and the complete scope of work.

II. Instructions to Bidders (ITB)

This section of the RFP details out the general information that FCI deems necessary to share with potential bidders concerning this RFP.

III. Terms and Conditions of Contract

This section of the RFP details out all the information that may be required by potential bidders to understand the contractual & legal terms and conditions.

IV. Appendices

This section of the RFP contains all appendices to this RFP enlisting the forms and formats of technical bid submission, procedure for online bid submission and other supplementary information.

Part B: Commercial Bid

It comprises of commercial bid covering letter, instructions to submit commercial bid and commercial bid format.

PART A – TECHNICAL BID

SECTION I - PROJECT BACKGROUND & SCOPE OF WORK

1 About the Organization

1.1 About Food Corporation of India (FCI)

The Food Corporation of India (FCI) is one of the premier organizations of Government of India (GoI) setup under the Food Corporations Act 1964, to fulfil the objectives of the Food Policy of the Government of India.

Since its inception, FCI has played a highly significant role to fulfil the key objectives of the food security policy of the GoI, which includes effective price support operations for safeguarding the interests of the farmers, distribution of foodgrains throughout the country for public distribution system, maintaining satisfactory level of operational and buffer stocks of foodgrains to ensure national food security.

FCI's objectives are:

- a. Effective price support operations for safeguarding the interests of the farmers.
- b. Making foodgrains accessible at reasonable prices, especially to the weak and vulnerable sections of the society under Public Distribution System (PDS).
- c. Maintaining satisfactory level of operational and buffer stocks of foodgrains to ensure National Food Security.
- d. To make foodgrains available at reasonable prices, particularly to vulnerable sections of the society.
- e. To intervene in market for price stabilization.
- f. Efficient procurement at Minimum Support Price (MSP), storage and distribution of food grains.
- g. Ensuring availability of foodgrains and sugar through appropriate policy instrument.

FCI has been entrusted with the responsibility of execution of the Food Policies of the GoI in the areas of procurement, storage, movement, and distribution of foodgrains across the nation. FCI has put a great emphasis on improving its operational efficiency, handling the complex and dynamic operations, spread throughout the country, through use of IT enabled systems for efficient and fast paced decision making. It has played a significant role in India's success in transforming the crisis management – oriented food security into a stable security system.

1.2 Organizational Structure of FCI

The organizational structure of FCI comprises of 198 administrative offices across the nation to manage its overall operations and 1 Institute of Food Security (IFS):

- a. 1 Headquarters (FCI HQs)
- b. 5 Zonal Offices (ZOs)
- c. 26 Regional Offices (ROs)
- d. 166 Divisional Offices (DOs)
- e. Institute of Food Security (IFS).

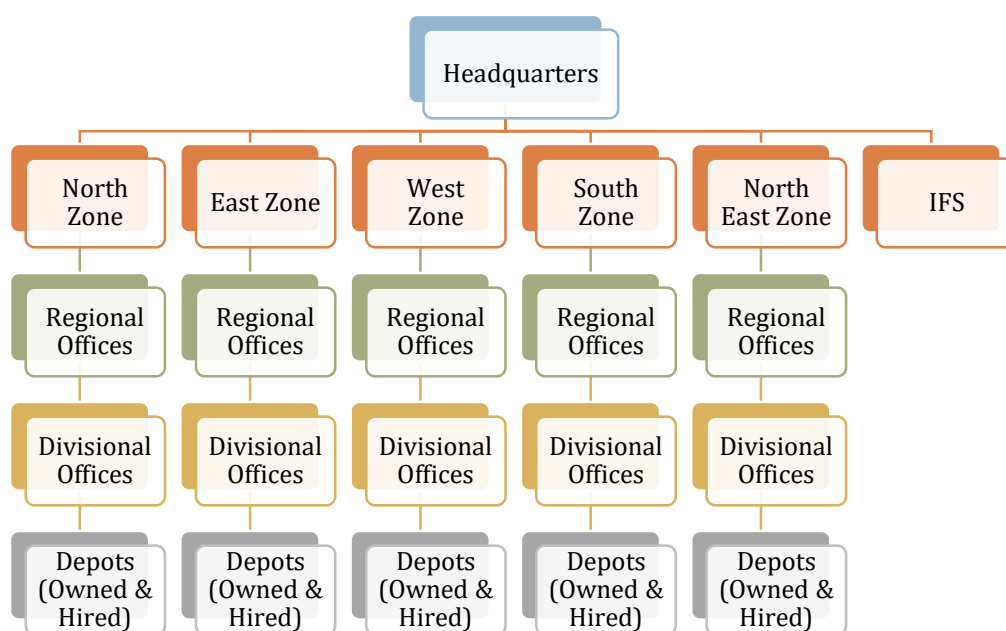


Figure 1: Organization Structure of FCI

#	Branches and Supporting Units	Description
1	Headquarters	FCI Headquarters is in New Delhi. It is headed by the Chairman and Managing Director (C&MD) and supported by a team of Executive Directors (EDs).
2	Zones	FCI Zonal Offices are in Noida (North Zone), Mumbai (West Zone), Chennai (South Zone), Kolkata (East Zone) and Guwahati (Northeast Zone). Each zone is headed by an Executive Director (Zone) and supported by a team of General Managers (GMs).
3	Regions	FCI Regional Offices are headed by a General Manager and supported by a team of Deputy General Managers (DGMs).
4	Divisions	The Divisional Offices are headed by Assistant General Managers (AGM) (also known as Divisional Managers) and supported by a team of Managers.
5	Depots	Under each Divisional office, there are depots (owned and hired) to manage the stock of the food grains.

1.3 Project Background

FCI implemented the **Financial Accounting Package (FAP)** as an integrated ERP solution based on **Oracle Financials 12.2.9**. The system encompasses a broad range of financial and operational modules, including **General Ledger (GL), Asset Management, Cash Management, Treasury, Budgeting & Costing, Accounts Payable and Receivable, and Payroll Processing**. The payroll solution also covers **Departmental Labour, DPS Labour, NWNP**, and integrates specialized functions such as **incentive calculations, CPF Trust Accounting, Pension processing, and CPF Self Services**. The system's comprehensive MIS and reporting capabilities support accurate, timely, and informed financial decision-making across all functional areas of the organization.

The primary objectives behind the implementation of FAP were:

- **Integrated Financial Management** through a unified ERP system.
- **Automation of Financial Processes** to enhance operational efficiency, accuracy, and timeliness.
- **Payroll and Labour Accounting** with customized solutions for different workforce categories.
- **Real-Time Financial Reporting and MIS** to facilitate robust decision-making.
- **Regulatory and Statutory Compliance** via system-driven controls and audit trails.
- **Scalability and Flexibility** to accommodate future enhancements.
- **Data Consistency and Integrity** across all financial modules.
- **Enhanced Transparency and Accountability** through workflows and audit logs.
- **Disaster Recovery and Business Continuity** to ensure minimal service disruptions.

The initial go-live of the FAP was successfully declared on 1st December 2013, with M/s Tata Consultancy Services Ltd. acting as the System Integrator (SI) for project implementation and subsequent support until November 2018. Thereafter, M/s Tech Mahindra Ltd. was entrusted with the Support and Maintenance contract from 1st December 2018 to 30th November 2025.

Over the lifecycle of the system, significant technological upgrades have been undertaken:

- In **2022**, the underlying technology stack was upgraded, including **OS migration** from **Solaris 5.11 to 11.4**, **Oracle Database upgrade** from **12c to 19c**, and **WebLogic upgrade** from **10.3.6 to 12c**.
- In **2023**, the applications and database were **successfully migrated to Oracle Cloud Infrastructure (OCI)**, moving to a **Linux-based environment** for better scalability and performance.
- FCI has also implemented numerous **Change Requests (CRs)** during the current contract period. These include **Setup CRs, Data Fix CRs**, and various **customization/development CRs** enhancing the system's capabilities.

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

Currently, with the Support and Maintenance contract expiring on 30th November 2025, FCI is seeking new agencies/**ERP implementation partners**. The engagement will involve supporting and maintaining the existing FAP system, managing the application source codes and documentation, and providing daily operational support to end-users.

The FAP has not only strengthened FCI's financial operations but also positioned the organization for future growth and technological modernization, ensuring resilience, compliance, and transparency in its financial management framework.

List of modules implemented under FAP					
Modules in Oracle EBS Financials customized to suit FCI requirements		Customized Solution developed for FCI. Source code is with FCI		Other Integrations	
#	PROCESS	#	PROCESS	#	PROCESS
1	General Ledger Module	1	Employee Payroll	1	Integration with PFMS (Ongoing)
2	Accounts Payables	2	DPS Labour Payroll	2	Integration with GST Portal
3	Accounts Receivables	3	Departmental Labour Payroll	3	Integration with FCI HRMS (Ongoing)
4	Fixed Asset Management	4	NWNP Payroll	4	Integration with CFPP (Ongoing)
5	Cash Management	5	CPF Module	5	Integration with NIC SMS & Email Gateways
6	Budgeting & Costing	6	Pension Module	6	Bilingual Interface in Oracle Apps, Payroll, BTS, CPF Self Service Portals using LinguaSol Tool
7	Payroll Accounting	7	CPF Self Service Portal	7	Integration with FCI ANNA DARPAN (Ongoing)
		8	Mantis Bug Tracking System (Open Source)		
		9	Bill Tracking System (BTS)		

2 Scope of Work

The **System Integrator (the SI)** is required to provide **comprehensive services** for the maintenance, support, and enhancement of the FCI FAP. This shall include implementation of ongoing system support, procurement and management of necessary cloud services, and incorporation of any required changes to meet the current and future needs of FCI. The SI must familiarize itself thoroughly with the FCI FAP system, its underlying infrastructure (including cloud platforms, databases, and integrations), and its operations, as well as the efforts involved in the proposed assignment.

The SI will be responsible for the annual maintenance and support of the FCI FAP system, which will include handling day-to-day incidents and issues in accordance with the severity classification and resolution timelines defined under the Service Level Agreements (Section 8). The scope of work will encompass the following:

- A. **Support for Existing Applications:** the SI will provide ongoing support for all **existing applications**, including customizations, integrations, and scripts developed within the FAP system. This will also include the resolution, implementation and support of any change requests – both ongoing and newly raised during the support period, in accordance with the defined change request process.
- B. **Support for Cloud Infrastructure:** The SI will provide end-to-end support for the hosting environment on cloud infrastructure as part of the services, including:
 - i. Monitoring and managing cloud compute, storage, and network services.
 - ii. Database administration and performance tuning of Oracle Databases hosted on cloud.
 - iii. Backup management, disaster recovery (DR) setup and monitoring, and ensuring high availability (HA).
 - iv. Regular patching, upgrading, and performance optimization of cloud-hosted applications and databases.
 - v. Incident management, troubleshooting, and technical liaison with Cloud Support.
 - vi. Security management including identity and access controls within the CSP environment.
 - vii. Compliance with CSP best practices, security guidelines, and operational standards.
 - viii. Proactive scaling of cloud resources (compute, storage, and network) based on performance thresholds, usage patterns, and business requirements to ensure optimal system responsiveness.
 - ix. Integrated analytic capabilities within the application, enabling generation of dynamic dashboards and business reports as per the requirements of FCI. These capabilities must support configurable visualizations, drill-down analytics, and both ad-hoc and scheduled reporting across various functional modules. The solution should allow data filtering, export options, and ensure role-based access controls while maintaining performance efficiency and seamless integration with the underlying FAP database. To

support these functionalities, if any additional tools, platforms, or licenses are required, then all cost and provisioning of the same shall be the sole responsibility of the SI.

The procurement, provisioning, configuration, and ongoing maintenance of the cloud infrastructure services shall be the sole responsibility of the SI. This includes all costs associated with cloud subscription, instance setup, compute/storage/network resources, performance management, backup and recovery services, and any ancillary services required for hosting and operating the FAP system in the cloud. No additional charges shall be payable by FCI for cloud-related infrastructure or operations during the entire contract period and any extensions thereof.

- C. **Regular Maintenance:** The SI shall be responsible for addressing all patches, updates and upgrades - including critical patch updates (CPUs), patch sets, and release upgrades for all modules as well as operating systems (OS), Databases and Grid Infrastructure associated with the FAP system during the contract period and the extended period (if any).
- D. **Service Levels Compliance:** The SI will ensure that all maintenance and support activities are carried out in accordance with the **Service Level Agreement (SLA)** standards, as defined in the contract.
- E. **Upgrades and Enhancements:** All system upgrades are considered as a part of the maintenance and support and will be managed by the SI. No additional change requests will be accepted for system upgrades.
- F. **System Setup Updates:** The SI shall regularly update various configurations in the system, including but not limited to the addition of new segments to the **Chart of Accounts** (such as natural account, unit segment, product segment, etc.), **payroll master rates**, **tax setups**, **security rules**, and **cross-validation rules**. No change requests will be applicable for these updates, and they shall be part of the ongoing maintenance and support services.
- G. **Contract Term and Extension:** Upon successful completion of the initial five (5) years of Maintenance & Support and subject to satisfactory performance, the contract period of the System Integrator (SI) may be extended by FCI. Such extension may be granted for up to one (1) additional year at the discretion of FCI, based on the same terms and conditions as specified in this RFP, with no additional financial cost to FCI. (For details on **contract extension**, refer to **Section 7.2**).

Note:

- i. FCI has procured perpetual Oracle licenses for components including Oracle Real Application Clusters (RAC), Oracle Database, Oracle WebLogic Server, and Oracle Applications User Licenses. The System Integrator (SI) may use these existing licenses for the execution of maintenance and support services under this contract, if deemed suitable. The Annual Technical Support (ATS) cost for these Oracle licenses, required for the maintenance and support activities under this contract, shall be borne by the SI for the entire duration of the contract period as well as the extended period of contract (if used). The SI's responsibility for ATS cost shall be limited to the components and usage required for the maintenance and support services under this contract. Details of Licenses are given under Appendix – III section 11.4.

Details of activities which are required to be performed by the SI are broadly categorized as below:

2.1 Application Support and Maintenance

- a. The SI shall need to provide maintenance and support services for the server and related infrastructure of FCI FAP for all applicable instances.
- b. The SI shall rectify all application(s) bugs, depending on the severity of tickets and SLAs (Please refer **Section 8.1** for details on SLA for Maintenance & Support).
- c. The SI shall release enhancements on **quarterly basis in general or as required by FCI in case of urgency** due to functionality updates, design changes, bugs/issue resolution and architecture changes. Enhancements shall be addressed in upgrade patch(es) of the FCI FAP. **Proper documentation** to be submitted to FCI in this regard for reference.
- d. The SI shall develop patches including their testing and assistance in deployment with deliverables and release notes. Delivery period of applicable patches shall be one full quarter. However, Liquidated Damages (LD) on the SI shall be applicable on any delay in release of patch beyond **one (1) month** post release cycle (as explained in para 2.1.c).
- e. The SI shall provide maintenance & support activities like patch management for all components/software installed for all environments including development, staging, UAT, production or any other environments applicable.
- f. All bugs shall be resolved by the SI within defined SLAs and following deliverables shall be submitted on quarterly basis as follows, for any patch update/upgrade:
 - i. Patch release notes.
 - ii. Design Document (Latest version with applicable updates).
 - iii. User Manual (Latest version with applicable updates).
 - iv. Impact assessment report on other functionalities/modules.
- g. Once the application patch/enhancement is ready for release, the SI shall deploy the same on the production environment (including UAT and other applicable instances) as accepted by FCI. The patch along with all the relevant release document & installation procedures shall be released by the SI.
- h. The SI shall be responsible for monitoring and managing all environments including development, testing, UAT, staging, and production for software, tools and FCI FAP serviceability.
- i. The SI shall also be responsible for taking timely steps for rectification of issues which are under their purview and notifying FCI about issues which are not under their purview with all necessary details for further taking up with requisite agencies.
- j. The SI shall develop and maintain inventory database of all assets of the FCI FAP like server/infrastructure details, software licences, databases details, VA Score or any similar details and share with FCI on quarterly basis and whenever it is required by FCI.
- k. The SI shall update and maintain the standard master codes (LGD Codes, Depot Codes and similar) as decided by FCI in the application as and when required.
- l. The SI shall inform FCI team/SPOC in case of any major outage of application till complete restoration of application to normalcy.

2.2 Database Maintenance

- a. The SI shall be responsible for monitoring database (DB) activity and performance, changing the DB logical structure to embody the requirements of new and changed programs.
- b. The SI shall be responsible to perform physical administrative functions such as re-organizing the DB to improve performance.
- c. The SI shall be responsible for tuning of DB, ensuring the integrity of the data and configuring the data dictionary.
- d. The SI shall follow guidelines issued by FCI from time to time including access of DB by administrators and guidelines relating to security of DB.
- e. DB administration shall follow the principle of **segregation of duties to ensure no single administrator can update** production tables/data singularly.
- f. In addition to restrictions on any direct change in data by any administrator, the databases shall have auditing features enabled to capture all activities of administrators.
- g. The SI shall be responsible for implementing all DB backup policies as per need of FCI.
- h. The SI shall be responsible for the following activities as part of DB administration, including (but not limited to):
 - i. Configuration of encryption keys and its rotation.
 - ii. Configuring and utilizing **Data Safe** and other DB utility to ensure security.
 - iii. Cloud data replication to ensure near-zero data loss.
 - iv. DB cleanup, removal and cloning.
 - v. DB installation, configuration and management for FAP instances.
 - vi. Managing the lifecycle operations of cloud-hosted database instances, including scheduled startup and shutdown of development, test, and DR instances as per approved plans. The SI shall also configure, monitor, and manage auto-scaling parameters (where supported) for compute and storage based on usage thresholds, ensuring optimal performance and cost efficiency in line with FCI's operational policies.
 - vii. Monitoring, maintenance, and day to day operational activities.
 - viii. Administration, management, and troubleshooting of the DB.
 - ix. Lock and Latch monitoring.
 - x. Activity/Redo Log Monitoring.
 - xi. Job monitoring and Purging Job history.
 - xii. Replication/stand by monitoring.
 - xiii. Verify rollback segments.
 - xiv. Monitoring cloud-hosted compute resources relevant to the performance and stability of the database system, including CPU and memory usage, virtual disk I/O, and network throughput.
 - xv. DB patching, CPU and security patch installation and new DB patch set installation.
 - xvi. DB and cluster reinstallation in case of any disaster.
 - xvii. Raising and tracking service requests (SRs), support tickets, and escalations directly with the Cloud Service Provider (CSP) and relevant OEMs for any issues related to cloud infrastructure, database services, or licensed components provisioned under

their account. The SI shall ensure timely resolution and shall keep FCI informed of status and actions taken, especially for critical incidents.

- xviii. Attend all complaints related to DB filed electronically or otherwise on receipt of such information. The services shall be provided on regular basis during office hours and in case of emergency beyond office hours or on holidays etc.
- xix. Reorganization of database to remove fragmentation.
- xx. Rebuild of indexes.
- xxi. Performance & User Management.
- xxii. Backup recoveries & trouble shooting.
- xxiii. Purging of DB logs and trace files.
- xxiv. Feasibility, procurement, installation and configuration of antivirus, VPN, SSL etc., as applicable.

2.3 Security Management

- a. Regular hardening and patch management of components of the FCI FAP as agreed with FCI.
- b. Performing security services on the components that are part of FCI environment as per security policy finalized with FCI.
- c. Complete security and privacy of the system.
- d. IT Security Administration – Manage and monitor safety of information/data.
- e. Reporting security incidents and resolution of the same.
- f. Ensure proactive monitoring, management, maintenance & administration of all security devices and update engine, signatures, and patterns as applicable to FCI's hosting environment.
- g. Managing and monitoring of anti-virus, anti-malware, phishing, and malware for managed resources.
- h. Ensuring 100 percent antivirus coverage with patterns not older than the period agreed on any given system.
- i. Monitoring centralized pattern distribution (live update) and scan for deficiencies.
- j. Maintaining secure domain policies.
- k. Ensuring secured communication between FCI end-user and server.
- l. Review of security policies on at-least quarterly basis during first year of O&M and then after at least on half-yearly basis.
- m. Resolution of calls for security notifications, system alerts, vulnerabilities in software and alerting FCI as appropriate.
- n. Ensure patch management is carried out for all security applications including content management system, antivirus, and VPN.
- o. Providing root cause analysis for all defined problems including hacking attempts.
- p. Monthly reporting on security breaches and attempts plus the action taken to thwart the same and providing the same to FCI.
- q. Maintaining documentation of security component details including architecture diagram, policies, and configurations.
- r. Performing periodic review of security configurations for inconsistencies and redundancies against security policy.

- s. Performing periodic review of security policy and suggest improvements.
- t. Reviewing logs daily of significance such as abnormal traffic, unauthorized penetration attempts, any sign of potential vulnerability, security alerts and responses, and proactive measures in the event a problem is detected.
- u. Sensitizing users to security issues through regular updates or alerts – periodic updates/help FCI in issuance of mailers in this regard.

2.4 Hosting over Cloud and DR Site

- a. The SI shall be fully responsible for the continuous and uninterrupted operation, maintenance, and management of the application currently hosted on Oracle Cloud Infrastructure (OCI) which is valid till **March 2026**.
- b. The SI may propose migration to an alternative Cloud Service Provider (CSP), subject to the prior written approval of FCI. Notwithstanding any migration or change of hosting environment, The SI shall ensure that there is no disruption or degradation in the availability, performance, or functionality of the application. All costs and risks associated with any migration activity, including infrastructure setup, data migration, and service continuity measures, shall be borne solely by the SI.
- c. The SI shall be responsible for the provisioning, configuration, and management of all required Virtual Machines (VMs) across development, testing, staging, DR, and production environments. These VMs shall be created under the cloud tenancy owned by FCI and aligned with approved performance, security, and availability requirements.
- d. The SI shall maintain full compliance with all applicable Service Level Agreements (SLA) during and after migration. Any deviation leading to service disruption, data loss, or SLA breach shall render the SI liable for penalties and other consequences as defined under the contract.
- e. Suitable disaster recovery (DR) services shall also be provided over cloud infrastructure.
- f. All costs related to hosting on cloud infrastructure (both DC and DR site on cloud) shall be borne by the SI.
- g. Any credits, rewards, rebates, support incentives, or loyalty points earned during the course of cloud service subscription under this engagement shall be the **exclusive property of Food Corporation of India (FCI)**. These benefits must be registered and utilized solely by FCI. The System Integrator (SI) shall ensure that all cloud accounts, billing identifiers, and subscriptions are configured under FCI's ownership to enable full visibility and control. The SI shall not claim, transfer, or use such rewards for any other purpose outside the scope of this engagement
- h. The proposed CSP must be MeitY empanelled and audit compliant and shall strictly adhere to the audit guidelines provided by MeitY.
- i. The solution technology shall have hyper-scaler capabilities.
- j. The solution shall support migration to any other cloud environment, if needed in future.
- k. The cloud facility must be within India and categorized as Tier III or IV. The DR site shall also be in India and located in a different geographical area (Geographical Area here means "Data Centres" which are independently MeitY empanelled and are sufficiently apart to be impacted by any single natural calamity or law and order disruption) and facility from Cloud DC.

- l. The cloud DC, where cloud hosting is proposed, must have ISO 27001 certification. Bidder must submit a copy of ISO 27001 certificate as part of their Technical Bid.
- m. The SI shall provide the rate chart of the cloud services to FCI to use as a reference in case of over-utilization of cloud resources.
- n. Cloud services shall be accessible via Internet, Point to Point/MPLS, Leased Lines, OFC WAN, or similar options. SI must provide suitable connectivity between FCI's network and Cloud DC Facilities.
- o. The SI shall be fully responsible for upgrades, security patches, bug fixes and other operational aspects of the infrastructure that is within its scope or purview.
- p. The SI shall provide interoperability support concerning available APIs and data portability for FCI to utilize in case of change of cloud service provider, migration back to Local DC, burst to a different cloud service provider for a short duration or availing backup services from an alternate cloud service provider.
- q. In no circumstances, the data accumulated and processed by the cloud DC/DR site shall be compromised. Hence, provisions shall be made to keep all the data stored in this platform highly secured with required multi layered security access control and authorization framework.
- r. The SI, through its proposed CSP, shall be responsible for providing cloud services for replicating at DR site.
- s. During the time when DR site is active, all modules and functions of FAP shall be available to the end-users.
- t. Additional Parameters:
 - i. The SI shall configure, schedule, and manage backups of all the data including files, folders, images, system state, databases, enterprise applications or similar.
 - ii. Encryption of all backup files and data and management of encryption keys as a service that can be enabled for Government Departments that require such a service.
 - iii. The SI shall offer dashboard to provide visibility of services.
 - iv. The SI shall not delete any data at the end of the agreement (*for a maximum of 90 days beyond the expiry of the Agreement*) without the approval of FCI. In case of data, clones or templates pertaining to FCI is not transferred within these 90 days, the SI shall submit all such data, templates or clones to FCI within 30 days through suitable media and without any changes to such data, containers, templates, clones or similar.
 - v. The SI shall carry out frequent DR drills (*minimum twice in a year*) to ensure DR fail over and switchback is possible smoothly. Certificates of completion and detailed reports to be submitted to FCI for every drill conducted.

2.4.1 Preparation of Disaster Recovery Operational Plan

The SI shall provide detailed operating procedures during the following scenarios. These shall be mutually agreed upon with FCI during the project kick-off.

- a. Business As Usual (BAU): The primary site is functioning as required, procedures for ensuring consistency of data availability at secondary site.
- b. Disaster: Declaration of disaster, making the DR site live for production, ensuring availability of users to the secondary site.

- c. Operations from DR site: Ensuring secondary site is addressing the functionality as desired.
- d. Configure proposed solution for usage.

2.4.2 Periodic Disaster Recovery Plan Update

The SI shall be responsible for:

- a. Devising and documenting the DR policy as discussed and approved by FCI.
- b. Providing data storage mechanism from the Go-Live date till the date of contract expiry for the purpose of compliance and audit.

2.5 Data Backup/Restore/Archival

- a. The SI shall be responsible for implementation of backup and archival policies as finalized with FCI. The SI is responsible for getting acquainted with the storage policies of FCI before installation and configuration. It shall be noted that the activities performed by the SI might be reviewed by FCI.
- b. The SI shall be responsible for monitoring and enhancing the performance of scheduled backups, scheduled regular testing of backups and ensuring adherence to related retention policies.
- c. The SI shall be responsible for prompt execution of on-demand backups of volumes, database and files whenever required by FCI or in case of upgrades and configuration changes to the system.
- d. The SI shall be responsible for real-time monitoring, log maintenance and reporting of backup status on a regular basis. The SI shall appoint administrators to ensure prompt problem resolution in case of failures in the backup processes.
- e. The SI shall also provide 24x7 support for file and volume restoration requests at the Data Centre(s).
- f. The SI shall maintain a repository for all digital assets for the FCI FAP such as, VPN account details, firewall rules, digital formats or any other similar assets.

2.6 Payroll Redevelopment

The FCI is having strength of approx. 27,000 staff and 21,000 labours for which payroll is to be prepared. The payroll processing is to be integrated with financial accounting so that there is no duplication of data entry. The salary to the staff is based on Industrial Dearness Allowance (IDA) and Central Dearness Allowance (CDA) pattern of pay scales whereas the salary of the labours is based on IDA pattern of pay scale. The piece rate incentives to the labours are to be calculated as per the MOU with respective labour unions.

The **Payroll module**, a web-based application forming part of the **Financial Accounting Package (FAP)**, was originally developed by **Tata Consultancy Services (TCS)** as a customized solution. The source code is available with **Food Corporation of India (FCI)**.

The payroll process is currently managed within the FAP, which operates on an **Oracle-based architecture**. Salaries are prepared and disbursed at various administrative levels including **Headquarters, Zonal, Regional, and Divisional Offices**.

Presently, **input data such as personal details, leave records, reimbursements, and other allowances** are **manually entered** into the system on monthly basis. Post-verification, the **payment files are electronically processed** through integrated financial workflows.

To enhance automation, accuracy, and auditability, the System Integrator (SI) shall be responsible for:

- Redeveloping the Payroll module as part of the modernization of FAP.
- Ensuring seamless integration with the existing FAP, HRMS, CPF Self Service Portal, ANNA DARPAN and any other internal/external application as specified during Requirement Gathering by FCI.
- Automating data capture, validation, payroll processing, and generation of statutory reports.
- Implementing necessary controls to prevent data manipulation and ensure data confidentiality.
- Maintaining compliance with applicable financial and statutory regulations

The **Payroll system** is designed to manage and process salary components for **Employees, Daily Payment System Labour, No Work No Pay Labor, Departmental Labour and Contractual Employment** encompassing **payables, deductibles, and net pay computation**. The process broadly includes the following steps:

- **Updating of Salary Structures and Allowances:** As per instructions from the Personnel Establishment (PE) section, salary components and allowances are revised periodically.
- **Payroll Input Collection:** Gathering monthly payroll-related data such as Employee data, **travel claims, reimbursements**, Statutory Rates and other applicable entitlements.
- **Salary Computation:** Automated calculation of **gross salary**, including **statutory and non-statutory deductions** such as Provident Fund (PF), Income Tax (TDS), etc., to derive **net payable salary**.
- **Disbursement of Salary:** Processing and releasing net salary to employee accounts through electronic payment mechanisms.
- **Statutory Compliance:** Calculation of **PF, TDS**, and other mandatory deductions, with necessary data generation for **filing statutory returns and reports**.

The System Integrator (SI) shall ensure automation and integration of the above processes within the redesigned Payroll module, maintaining full compliance with financial, tax, and audit requirements.

As part of the **Payroll module redevelopment**, the **System Integrator (SI)** shall conduct **comprehensive requirement gathering** sessions in coordination with relevant FCI departments, including the Personnel Establishment (PE) and Finance Divisions. The objective shall be to **capture functional, technical, and statutory requirements** for the design of a customized payroll solution aligned with FCI's organizational policies and operational workflows.

The SI shall follow a structured **Software Development Life Cycle (SDLC)** approach, which shall include (but not be limited to) the following stages:

- **Requirement Gathering** and documentation in collaboration with key stakeholders.
- **Functional and Technical Solution Design**, including data flow, business rules, statutory compliance, and workflow integration.
- Preparation and **sign-off of key artefacts** such as:
 - **System Requirement Specification (SRS)**
 - **Functional Requirement Specification (FRS)**
 - **Technical Architecture Document (TAD)**
 - **Data Migration Plan**, if applicable

These documents must be formally reviewed and approved by FCI prior to commencement of development activities.

The SI shall be fully responsible for ensuring that the solution is aligned with **best practices, audit compliance**, and integrates seamlessly with the existing **FAP ecosystem**.

A detailed description of the **functional requirements** for the Payroll module—covering employee categories (such as Regular Employees, DPS Labour, and Departmental Labour), pay components, workflows, statutory deductions (TDS, PF, etc.), allowances, and integration needs with FAP—is provided in **Appendix IV** of this RFP. The SI shall refer to the annexure during requirement analysis and align their development accordingly. The SI shall be responsible for validating these requirements during the requirement gathering phase and proposing any enhancements or changes necessary to meet compliance or operational needs.

Upon successful development, testing, and deployment of the Payroll module as part of the FAP system, its ongoing maintenance and support shall be governed by the same terms, conditions, service levels, and penalty provisions as defined under the broader *Maintenance and Support of FAP* scope in this RFP. No separate maintenance framework shall be applicable to the Payroll module.

2.7 Change Requests

- a. Any requests by FCI that result in changes in the existing application, or a new module is added shall be considered as change requests (CR).
- b. Any minor changes required in the application such as addition/deletion/alteration of a row/column/field, additional report, menu items shall not be considered as chargeable change requests and shall be supported by the SI.
- c. Any Change request arising out of Statutory or regulatory compliance (updates from GSTN, CBIC, CBDT etc.) shall be executed on priority and shall not be considered as chargeable Change Request.
- d. Any new requirement of reports, data sets in .CSV format, spread sheet format etc. which does not necessitate Production level table field additions/deletions, shall not be considered as CR.
- e. Any change request that necessitates modifications to the existing workflow shall be thoroughly documented by the SI, duly approved by FCI, and formally communicated to FCI by the SI.

- f. Changes shall be implemented in a controlled manner and shall be tested in the test (non-production) environment prior to implementation. The impact of technical changes on application environment shall also be performed. Dependencies of changes shall be documented and shared with FCI.
- g. A Change Request Committee (CRC) shall be constituted by FCI to review, evaluate and approve all Change Requests raised during the contract period. The CRC shall comprise officers from the FCI, technical advisor (nominated by FCI) and SI as an invitee. The exact composition shall be notified separately by the FCI

The CRC shall be responsible for

- 1. Review and classify Change requests raised by User Divisions
- 2. Evaluating and approving effort estimates submitted by SI and Project Plan timelines.
- 3. Prioritising approved change request for implementation based on their urgency and relevance to the FCI requirement.
- 4. Resolving disputes if any, relating to CR estimation, scope, delays etc.

All decisions of the CRC shall be documented and shall be complied by the SI for implementation

- h. The procedure that shall be adopted for evaluating change requests shall be based on the Work Breakdown method/Function Point Analysis method or the method as decided by CRC.
- i. The SI is required to develop a change management methodology to ensure all application changes and technical changes (after go-live, from the start of contract), are reviewed, tested, approved, implemented, and verified post implementation.
- j. All change requests shall be documented and maintained in a database. All change requests shall be classified, and approval and escalation mechanisms shall be defined as per classification.
- k. A release schedule shall be maintained for all the changes, to provide minimum disruption to business services.
- l. The SI shall be required to perform analysis of change requests to review frequently occurring issues, trend analysis, and an analysis report to be provided to FCI along with a summary report.

2.7.1 Purpose of Change Requests

FCI may at any time, by a written order given to the SI, make changes in scope of the work or schedule of services as specified in the RFP document. The purpose of the change request procedure is to manage/regulate changes to the software/system environment. The change request procedure has the following objectives:

- a. To avoid implementation of any changes which is not reviewed, approved, or analysed.
- b. To minimize the occurrence of unintended affects during the implementation of necessary changes.

Any change request where the total development effort requirement is less than **40-person days** shall not be considered as change request, however, change management process shall be

applicable on every change. These changes can be agreed and approved by FCI (not valid for system update or upgrade due to OS/firmware updates, patches or similar).

2.7.2 Change Management Guidelines

- a. Both FCI and the SI, while evaluating and finalizing the change request, shall consider the change in the context of the parameter, namely whether the change is beyond the scope of services including ancillary and associated services required and as detailed in the sign-off version of all required documents.
- b. All new developments, modules, or enhancements introduced by the SI during the course of the contract shall ensure full backward compatibility with existing functionalities, interfaces, and user workflows
- c. Change requests shall be reported to FCI, who shall prioritize and review progress. The SI shall be required to implement any proposed changes once approved with effect from the date agreed for implementation.
- d. If FCI gives any new requirement or change request, the SI shall follow the change management process to implement the change on an additional payment basis. Upon receiving any change request from FCI, the SI must submit its proposal with all the required information in the agreed format **within a maximum of fifteen (15) working days** for FCI's perusal.
- e. The SI may also submit any queries/clarifications that it may have with respect to implementation of change requested. The SI must not deny the implementation of any change requested by FCI under any circumstances. In all such matters, FCI's decision shall be final.
- f. The acceptance criteria for any such change shall remain the same as described in the RFP with respect to the performance and quality parameters.
- g. The SI must provide the list of deliverables within agreed timelines.
- h. The change request process shall be considered complete only when the training is imparted to the target users (if required) for whom the change is being done, and the feedback is evaluated by FCI.
- i. For each approved Change Request (CR), the SI shall assess the necessity of conducting a security audit, and accordingly perform the required audit, testing, and User Acceptance Testing (UAT). All such activities shall be carried out by the SI at no additional cost to FCI.

2.7.3 Change Management Process

- a. **Change Request Note ("CRN")**
 - i. Change Request Note (CRN) shall emanate from the Project Manager of the SI who shall be responsible for obtaining approval for the change. CRNs shall be presented to FCI who shall acknowledge the receipt.
 - ii. The SI and FCI, during Operations and Management Phase and while preparing the CRN, shall consider the change in the context of the following parameter, namely whether the change is beyond the scope of services including ancillary and associated services required and as detailed in the RFP.
 - iii. The SI shall submit a rate card for manpower in the commercial proposal that shall be used in case of any change request arise.

- iv. Please refer **Section 9.1** for the pre-defined proforma of the Change Request Note (CRN).

b. Quotation

the SI shall assess the CRN and complete Part B of the CRN. In completing the Part B of the CRN, the SI shall provide as a minimum:

- i. A description of the change.
- ii. A list of deliverables and dependencies required for implementing the change.
- iii. A timeline for implementation.
- iv. An estimate of any proposed change.
- v. List of existing functionalities affected by the change.
- vi. Any relevant acceptance criteria.
- vii. An assessment of the value of the proposed change; material evidence to prove that the proposed change is not already covered within the agreement and the scope of work.
- viii. Prior to submission of the completed CRN to FCI, the SI shall undertake its own internal review of the proposal and obtain all necessary internal approvals. As part of this internal review process, the SI shall consider the materiality of the proposed change in the context of the contract, and the project design, development and implementation affected by the change and the total effect that may arise from implementation of the change.

c. Cost

Both the SI and FCI shall be responsible for its own costs incurred in the quotation, preparation of CRNs and in the completion of its obligations described in this process provided the SI meets the obligations as set in the CRN. In the event the SI is unable to meet the obligations as defined in the CRN, the SI shall bear the responsibility and any associated costs arising due to such non-fulfilment.

d. Obligation

The SI shall be obliged to implement any proposed changes once approval in accordance with above provisions has been given, with effect from the date agreed for implementation and within an agreed timeframe. The SI shall not be obligated to work on a change until FCI agrees in writing upon its scope, price and/or schedule impact.

2.8 Software Change & Version Control

- a. The SI shall maintain version control and configuration information for any system documentation and application software(s).
- b. Changes in the application that are mandatorily required for complying with any of the predefined SLA requirements or are essential for delivering committed functional solution cannot be treated as a separate change request, and hence to be completed by the SI at no extra cost.
- c. The SI shall submit a quarterly report on the changes performed on the application and resolution of malfunctions carried out by the SI.

- d. The SI shall troubleshoot all possible problems, monitor erratic behaviour through the application logs.
- e. All planned changes to application systems shall be coordinated within established Change Control processes to ensure that:
 - i. Appropriate communication on changes required has taken place.
 - ii. Proper approvals have been received.
 - iii. Schedules have been adjusted to minimize impact on the production environment.
 - iv. For any changes to the application, the SI shall submit a document indicating proposed changes, impact to the system in terms of functional outcomes/additional features added to the system.

2.9 Maintain Configuration Information & System Documentation

The SI shall maintain and update documentation of the software system to ensure that:

- a. Application documentation is updated to reflect on-going maintenance and enhancement including Software Design Documents and SRS, in accordance with the defined standards.
- b. User manuals and training manuals are updated to reflect on-going changes and enhancements introduced in the FCI FAP for users.
- c. Standard practices are adopted and followed in respect of version control and management of system documentation.
- d. The SI shall share the updated version of all documents with FCI periodically.

2.10 Helpdesk Management

The SI shall maintain adequate number (**minimum four (4) resources**) at **FCI Headquarters or a mutually agreed location** to attend all the queries raised by FCI users and other stakeholders through a technical helpdesk and provide resolution in required professional capacity and in a time bound manner.

- a. In case, the mutually agreed location is FCI Headquarters, basic infrastructure i.e., seating space and necessary connectivity shall be provided by FCI.
- b. Any instruments or devices required shall be arranged by the SI with no extra cost to FCI.
- c. The SI shall be responsible to arrange necessary services such as Email/ SMS Gateway/ Toll Free number (telecom services) or any other similar tools required during the contract period. Any cost involved in the arrangement of these shall be borne by the SI. Recurring cost towards SMS charges (if any) shall be borne by FCI on actuals.
- d. The Service Provider shall follow the Official timings of Corporation i.e. 9.30 A.M. to 6 P.M meant for all weekdays i.e. Monday to Friday. Since, many of the field offices of the corporation are functional on Saturdays, the Service Provider shall deploy its partial team on Saturdays to cater to the needs and requirements of the field offices. Remaining team may work from home on Saturdays.
- e. The responses to the service requests must be made in a timely manner to ensure issues are resolved within the timelines stipulated in the SLA.
- f. The SI shall ensure that its technical team is available on a 24x7 basis to address and support any service requests or incidents raised with CSP. The SI team shall coordinate

and work in alignment with CSP support timelines and processes to ensure prompt resolution of issues. The SI shall deploy sufficient resources to monitor, escalate, and manage such service requests without any disruption, ensuring timely closure in accordance with professional standards.

- g. The SI shall ensure that all the calls shall be recorded, and the facility and any related infrastructure required shall be arranged by the SI with no extra cost to FCI.
- h. The helpdesk staff shall have prior experience in helpdesk operations and shall have excellent verbal and written communication skills both in English and Hindi. The executives shall also have basic technical knowledge for troubleshooting and resolving common user issues.

Manpower for helpdesk shall continue for the entire **Maintenance & Support Phase** to facilitate the following activities:

- a. Onsite support to handhold the user to troubleshoot any issues in the FCI FAP.
- b. Coordinate with backend application support team to explain any issues and assist them resolving the issues in timely manner.

The SI shall provide helpdesk support to address end-user queries. The helpdesk shall function as the Single Point of Contact (SPOC) for logging, tracking, escalation, and resolution of all incidents and service requests raised by FCI users. The activities shall include:

- a. Managing helpdesk facility during **service period window** for reporting user department incidents/issues/problems.
- b. Provide helpdesk support to all the end users as per the FCI's working hours/days.
- c. Provide and manage necessary channels for reporting issues to the helpdesk. The incident reporting channels could be the following:
 - i. Specific e-mail account.
 - ii. Customer service number.
 - iii. Ticketing & incident reporting platform.
- d. Management of a call logging system in line with the severity levels as per the SLAs. The Helpdesk shall log user calls and assign an incident/call ID number.
- e. Creation of knowledge base on frequently asked questions (FAQs) to assist user in resolving basic issues themselves.
- f. Facility to track each incident/call to resolution, provide feedback to callers and analyse the call statistics.
- g. Monitoring shall be done with the help of monitoring tools and therefore the reports and alerts can be auto generated.
- h. Escalate the calls, to the appropriate levels, if necessary, as per the escalation matrix agreed between the SI and the department. The escalation matrix shall be developed by the SI in discussion with FCI.
- i. Coordinate with respective team/users for closure of calls.
- j. Analyse the incident/call statistics and provide monthly reports such as:
 - i. Type of incidents/calls logged.

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- ii. Incidents/calls resolved.
- iii. Incidents/calls open till date.
- k. Maintaining up-to-date user details and any other related information as required by FCI.

Escalation shall take place on an exception basis and only if successful issue resolution cannot be achieved in a defined time frame.

- i. Either FCI or the SI can initiate the procedure.
- ii. The “moving party” shall promptly notify the other party that management escalation shall be initiated.
- iii. Management escalation shall be defined as shown in the contact map below.
- iv. Escalation shall be one level at a time and concurrently.

ESCALATION MATRIX		
LEVEL	DETAILS OF FCI REPRESENTATIVE	DETAILS OF the SI REPRESENTATIVE
Level 1		
Level 2		
Level 3		

Note: The SI shall provide the details for their Chief Executive Officer/Higher Management, Program Manager, team involved in the project or any other.

2.10.1 Helpdesk MIS Reports

The SI shall submit the following list of MIS reports (indicative) to FCI, and any designated agency appointed by FCI on regular basis. Any other report required in any desired format by FCI, the SI shall be responsible to share the same as per the frequency desired (Daily, Weekly, Monthly, Quarterly and Half Yearly). Following list of reports shall be compiled and shared with FCI as applicable:

- A. **Ticket Summary Report:** To provide overview of all tickets submitted to the helpdesk by users of FCI FAP including details like ticket counts, ticket status, mode of receipt or similar details.
- B. **Ticket Resolution Time Report:** To provide details of average resolution time taken for resolving tickets.
- C. **Customer Satisfaction Report:** To monitor user feedback and satisfaction levels with the resolution provided by the helpdesk.
- D. **Problem Management Report:** To track details of category wise type of issues reported for identification of recurring issues.

Note:

- a. MIS and SLA reports shall be provided by the SI via an automated Service Level Management (SLM) tool to be deployed by the SI. All decision regarding SLA compliances or deviations shall be governed strictly as per the output of the SLM tool and no manually generated report shall be considered/acceptable.

- b. The above-mentioned reports are indicative, the SI may have to provide additional reports as per the requirement of FCI.

2.11 Additional Scope

- a. Improve Efficiency of the current system by:
 - i. Looking into the current applications including customizations / integrations of the system and suggesting / implementing / replacing the same with standard functionalities, wherever required / advisable / feasible.
 - ii. Relooking/revisiting the current processes of the system and suggesting / implementing the improved processes or standard processes wherever required.
 - iii. Monitor the performance of the system with the help of a tool (performance tool to be owned by selected agency at its own cost) and take corrective measures (fine tuning etc.) to ensure optimum performance of the system.
- b. The SI shall either maintain the existing Mantis Bug Tracker system, currently hosted on the NIC Cloud, or provide and maintain an alternate issue tracking tool at its own cost. No additional charges shall apply for customization of Mantis or for the procurement and deployment of the new tool.
If an alternate tool is provided:
 - i. It must support data export to standard formats such as CSV, PDF, MS Excel, and open-source spreadsheet formats.
 - ii. It must support seamless import of existing data from Mantis Bug Tracker, with the SI responsible for complete data migration at no extra cost.
 - iii. FCI shall have the ownership of the tool, and the data contained in it, even after the contract with the SI ceases to exist.
- c. The SI is required to provide at least one OEM training on all Oracle Financials Modules (AP, AR, GL, CM, FA, etc.) on latest (R12)/current version for five (5) persons of FCI, to be nominated by FCI.
- d. The SI shall be capable of providing any required data or reports promptly, as and when requested by FCI.
- e. The SI shall ensure that all the database and application standards and guidelines of (Cloud service provider) CSP shall be followed.
- f. The application shall be browser and device agnostic and shall be able to run smoothly on internet.
- g. The SI shall also be responsible for furnishing any additional data requested by FCI to support analytical tool requirements or related activities.

2.12 Current Integrations

2.12.1 Integration with internal FCI applications

- a. **Payroll:** The FAP Payroll is integrated with FAP Oracle APPS for end-to-end payroll processing and payment management.
- b. **BTS:** The Bill Tracking System is a web-based application interfaced with FAP. The purpose of BTS is to maintain the electronic flow data for each bill, submitted by Supplier/Employees. So, the status of bill can be overlooked by party or concerns at

any stage of time and at any desired place through BTS. The system will be very user friendly and very easy to use as minimum information is required to put in the system.

- c. **CPF Self Services:** The CPF self Service Portal is a web-based application interfaced with FAP. The purpose of CPF self Service Portal is to maintain the electronic flow data for each request, submitted by Employees. So, the status of request can be overlooked by CPF division or concerns at any stage of time and at any desired place through CPF self Service Portal.
- d. **HRMS Integration:** Ongoing integration between HRMS and FAP Payroll due to which the data in HRMS and FAP Payroll will be in sync with each other. The HRMS-FAP Payroll Integration will define a process via which the data entered by user in HRMS system will be updated in FAP payroll ensuring correct salary calculation by Payroll system. The salary calculated and other data entered directly in FAP Payroll system will also be shared with HRMS via a defined process. This will ensure there is no gap in data of both the systems. The end user accessing or viewing his information via HRMS System will have access to updated and correct data.

2.12.2 Integration with external applications

- a. **Invoice Reference Number (IRN) Integration:** Generating unique number through Invoice Registration Portal (IRP).
- b. **SMS Integration:** Implementation of sending SMS through third party SMS services over multiple events in FAP.
- c. **SMTP Mail configuration:** Implementation of E-mail services over multiple events in FAP
- d. **Bilingual Interface**
 - Translation of Screens of the Target Application
 - Translation of Reports Printing of the Target Application

2.13 Testing

Below is the set of activities which the SI needs to conduct during testing of FCI FAP:

- a. The SI shall prepare a detailed testing plan and testing strategy.
- b. The SI shall prepare various use cases and scenarios.
- c. The SI shall perform unit testing, integration testing, system testing, load testing and performance testing.
- d. The SI shall take corrective steps based on the test reports i.e., rectifying the application issues/ bugs reported during the test.
- e. The SI shall compile and submit detailed test reports enlisting the test results. The reports shall be submitted upon request from FCI.
- f. FCI shall also conduct User Acceptance Testing (UAT) to ensure satisfactory completion of the application development as per the functional requirement specifications. The SI must provide the test cases/scenarios for such testing along with test data and facilitate and hand hold FCI officials to carry out the UAT. The SI shall also continue to fix any issues identified during the testing before the final acceptance of the application. Corrective measures based on UAT findings to be incorporated as part of the final version of the FCI FAP prior to final Go-Live.

2.14 Security Audit

- a. The SI shall ensure an **annual security audit** is conducted by a **MeitY/CERT-In empanelled agency** to review security policies, following **MeitY Security Guidelines**. The cost of this audit will be borne by the SI.
- b. In addition to the annual audit, the SI shall perform **comprehensive security audits** at regular intervals to assess vulnerabilities at the **application level, network level**, and any other relevant levels.
- c. The SI shall conduct **quarterly vulnerability assessments**, address any identified issues, and implement necessary patches or fixes. **Assessment reports** must be submitted to **FCI within 21 days** of the completion of each quarter.
- d. Ongoing security management tasks include continuous monitoring of various **security devices/tools**, such as **firewalls, intrusion prevention/detection, content filtering, virus protection**, and **event logging and correlation**. The SI shall also be responsible for implementing **vulnerability protection** through proper patches and rules.
- e. The SI shall fix all security issues identified during the audits and assessments to ensure the system remains secure and compliant with required standards.

2.15 List of Reports

The SI shall provide the following reports on a daily, weekly, monthly, and quarterly basis, in consultation with FCI. The SI shall obtain prior approval from FCI for the format of all reports before submission.

- a. Daily verification of requests getting errored out/error logs
- b. CR Summary Report - Quarterly
- c. All security patches, updates, and release upgrades **issued by the Cloud Service Provider (CSP)** during the reporting period - Quarterly
- d. The corresponding patches and updates **applied by the SI** on the cloud infrastructure, databases, operating system, and application components - Quarterly
- e. A **forward-looking patching plan** outlining the critical/security patches and release upgrades scheduled for implementation in the upcoming quarter, along with indicative timelines - Quarterly
- f. Inventory database report of assets like server/infrastructure, software licences, databases or any other similar details - Quarterly
- g. Log of preventive maintenance undertaken - Quarterly
- h. Log of break-fix maintenance undertaken - Quarterly
- i. Bug / defect resolution reports including the analysis of bugs / defects resolved, pending, completion time, responsiveness, concern areas, etc - Quarterly
- j. Attendance Register of the team of Service Provider - Quarterly

2.16 List of Deliverables/Documents

The SI is expected to provide the following indicative deliverables/documents during the Maintenance & Support phase:

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#	Deliverable	Description/Remarks
1	Risk Management & Mitigation Plan	The risk management and mitigation plan shall incorporate a strategy to identify potential risks, assess their potential impact on the project, and outline measures to mitigate or minimize those risks to ensure that the project proceeds smoothly and successfully, even in the face of uncertainties and potential challenges.
2	Communication Plan	The communication plan shall outline the process of disseminating, sharing, and managing information among various stakeholders associated with the project. The plan shall be designed to ensure effective and efficient communication among stakeholders.
3	Application and System Performance Monitoring Plan	A detailed strategy and set of guidelines shall be compiled and shared for continuously monitoring the performance and health of the application.
4	Unit Testing Report	To be shared on need basis
5	Integration Testing Report	To be shared on need basis
6	Functional Testing Report	The Functional Testing Report shall provide detailed information about the execution and results of functional testing activities performed. To be shared prior to release for UAT.
7	UAT Test Cases	Specific scenarios or sets of steps shall be compiled and shared to FCI for conducting the UAT. The scenarios shall be executed by the concerned users/stakeholders to ensure that the system meets their business requirements and is ready for production deployment.
8	UAT Completion & Feedback Report	A detailed report shall be shared to FCI HQ upon completion of every round of UAT along with the list of feedback received from the participants.
9	Security Audit Completion Certificate	SI to provide Security Audit Certificate from CERT-In empanelled vendors
10	Updated User Manuals	Text based training content (module wise) shall be compiled/updated explaining the features, process background, process flow, applicable data fields and FAQs for the proposed solution.
11	Frequently Asked Questions (FAQ)	FAQs shall be compiled & shared for queries by concerned end users pertaining to developed modules, overall system operations, role-based functionalities, and other relevant categories.
12	System Transaction Report	A system generated report shall be shared (on need basis) providing a detailed summary of all the transactions or activities processed by the proposed system within a specified period. The report shall be generated via specialized software tools used in the proposed solution that track and record transactional data.
13	Helpdesk Ticket Analysis Report	To be shared on need basis
14	Service Level Agreement (SLA) Report	To be shared on need basis
15	Patch Release Notes	To be shared upon every patch release

3 Resource Structure

Integrity of solution components is extremely important in the maintenance process. Hence, selected bidder i.e. Sole bidder or Lead bidder (In case of Consortium) needs to deploy its own team by assessing the requirements mentioned in RFP. The SI shall propose relevant CVs to FCI and shall make sure that the all the proposed resources are regular employees and on payroll of the SI only.

3.1 Resource Requirement

FCI FAP is a specialized solution, so it becomes important to deploy competent resources who can maintain and enhance the system as required. The table given below provides a list of the **20 indicative team members** to be deployed under this project. The **team must comprise of a minimum team size of 20 (twenty) personnel or more**. In addition to these, the System Integrator (SI) shall deploy any additional resources necessary to ensure efficient project execution, adherence to defined timelines, and compliance with the Service Level Agreements (SLAs) specified in this RFP.

Indicative Manpower for Maintenance & Support of FCI FAP			
#	Role	Deployment	Quantity
1	Project Manager	Onsite	1
2	System Admin/ Cloud Architect	Offsite	1
3	Team Lead	Offsite	2
4	Business Analyst/Functional Consultant	Onsite	2
5	Cloud Database Administrator	Offsite	1
6	Developer	Onsite	3
		Offsite	4
7	Quality Assurance Analyst	Onsite	1
8	Data Analytics Specialist	Onsite	1
9	Helpdesk Support	Onsite	4
			20

Note:

- the SI shall submit CVs for all the proposed resources in the CV format defined in **Form 13**
- The SI shall provide a full time Project Manager for the entire duration of the contract period.
- The SI shall not change, alter, replace, or substitute the Project Manager and team members without prior written approval from FCI. In exceptional cases such as death, resignation, prolonged illness, or disciplinary removal, replacement may be permitted provided the replacement is of equal or higher competence and is deployed within 21 days from the date of the event.
- If FCI finds the performance of the Project Manager or any team member unsatisfactory, the Service Provider shall replace the resource with a better-suited alternative within 21 days from the date of written communication by FCI.

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- e. In case of any replacement in team members, the Service Provider shall ensure proper overlap, knowledge transfer, and handover/takeover of all responsibilities, documents, and credentials between outgoing and incoming members.
- f. The SI shall be stationed primarily at FCI Headquarters, New Delhi. However, if required, the Service Provider shall deploy the team to any other FCI office or location along with necessary tools and equipment, without any additional cost to FCI.
- g. The SI shall ensure that the Team is competent, professional and possesses the requisite qualifications and experience appropriate to the task they are required to perform under this Contract. The SI shall ensure that the Services are performed through the best efforts of the SI's Team, in accordance with the terms hereof and to the satisfaction of the Corporation. Nothing in this Contract relieves the Service Provider from its liabilities or obligations under this Contract to provide the Services in accordance with the Corporation's directions and requirements and as stated in this Contract/Tender. The SI shall be liable for any non-performance, non-compliance, breach or other loss and damage resulting either directly or indirectly by or on account of its Team.
- h. The SI shall follow the Official timings of Corporation i.e. 9.30 A.M. to 6 P.M meant for all weekdays i.e. Monday to Friday. Since, many of the field offices of the corporation are functional on Saturdays, the SI shall deploy its partial team on Saturdays to cater to the needs and requirements of the field offices. Remaining team may work from home on Saturdays.
- i. The service provider shall provide Onsite support on Sunday's and other holidays also on need basis without any extra charges.

3.2 Minimum Qualification of Resources

#	Designation	Qualification	Minimum Post-Qualification Experience	Desirable Post-Qualification Experience
1	Project Manager	B.E./B.Tech + MBA/PGDBA	1. 13+ years of experience of project management. 2. At least 2 projects with Central/State Government 3. Minimum experience of 8 years implementations in Oracle/SAP/Software (application) Systems	1. PMP certified 2. Experience in handling & managing Financial ERP Projects. 3. Experience of managing large, cross-functional teams
2	Business Analyst	B.E./ B.Tech./MCA/ MBA/PGDBA	1. At least 8 years of total experience including Minimum 5 years of working as business analyst for projects of similar nature 2. Experience of Managing at least 2 projects of similar nature 3. At least 1 project with Central Govt/State Govt/PSU	1. Relevant certifications 2. Experience in creating Business Requirement Documents and Functional Requirement Specification documents 3. Experience in conducting stakeholder workshops and trainings for users
3	Team Lead	B.E. / B.Tech. (Preferably in CS/ IT)/MCA/ MSc (IT)	1. At least 8 years of total experience in the software/IT industry 2. Minimum 4 years of experience in leading development or support teams for enterprise applications or ERP systems 3. Must have led at least 2 projects of similar nature 4. Should have worked on at least 1 project with Central / State Government or PSU	1. Relevant certifications in project delivery, software development, or Agile methodologies (e.g., CSM, ITIL, PRINCE2 Foundation) 2. Proven experience in team coordination, delivery tracking, and stakeholder communication 3. Hands-on understanding of tools and technologies used in the project (e.g., Java stack, Oracle, Cloud services) 4. Experience in preparing technical documentation and facilitating quality control processes
4	System Admin/ Cloud Architect	B.E./ B.Tech. (Preferably in CS/ IT)/MCA/ MSc (IT)	1. At least 10 years of total experience including Minimum 6 years of working as IT infrastructure expert for projects of similar nature	1. Related certifications 2. Experience in managing cloud infrastructure, including provisioning, monitoring, auto-scaling, and cost optimization 3. Experience in infrastructure consolidation,

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

#	Designation	Qualification	Minimum Post-Qualification Experience	Desirable Post-Qualification Experience
			2. Experience of Managing at least 2 projects of similar nature 3. At least 1 project with Central Govt/State Govt/PSU	system performance tuning, and high availability design
5	Cloud Database Administrator	BE / B.Tech (Preferably in CS/IT)/MCA/MSc (IT)	1. At least 10 years of total Experience including Minimum 6 years of working as data administrator for projects of similar nature 2. Experience of Managing at least 2 projects of similar nature 3. At least 1 project with Central Govt/State Govt/PSU	1. Certifications related to CSP, or GCP 2. Experience of handling SQL technology-based projects 3. Experience in data standardization, migration, data consolidation and data archival
6	Developer	BE / B.Tech (Preferably in CS/IT)/MCA/MSc (IT)	1. At least 3 years of software industry experience of working as developer 2. Proficient in Java, React, Angular, Java Script, HTML, CSS, Bootstrap, Crystal Reports & T SQL, jQuery, Ajax, UI (User Interface), UX (User Experience) 3. Ability to independently analyse client requirement and design systems for the same.	Related certifications
7	Quality Assurance Analyst	BE / B.Tech (Preferably in CS/ IT)/MCA/MSc (IT)	1. At least 3 years of software industry experience of working as software tester / quality assurance engineer. 2. Knowledge of Automation Test Tools such as Browserstack, xUnit, JMeter, Appium, Selenium Web driver, & IOS Automated Test 3. Experience in writing clear, concise and	Related certifications

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#	Designation	Qualification	Minimum Post-Qualification Experience	Desirable Post-Qualification Experience
			comprehensive test plans and test cases.	
8	Data Analytics/Dashboard Specialist	BE / B.Tech (Preferably in CS/ IT)	1. Bachelor's degree in computer science, IT, Engineering, Data Analytics, or related discipline. 2. Minimum 5 years of relevant experience in the field of data analytics, dashboard/report development, or business intelligence. 3. At least 2 years of hands-on experience with BI tools such as Power BI, Oracle BI, Tableau, or equivalent. 4. Experience in writing SQL queries, data transformation, and dashboard performance optimization.	Related certifications
9	Helpdesk Executive	Any Graduate	Minimum 2 years of experience in application support.	Related certifications

- a. All the team members must possess at least 2 years' experience in Oracle/SAP/Software (application) Systems.
- b. The Project Manager shall have experience of minimum 8 years implementations in Oracle/SAP/Software (application) Systems.
- c. In case of consortium, the Lead Bidder shall deploy a minimum of 50% of the total project resources (including Project Manager).
- d. In case of consortium, the Project Manager shall be deployed by the Lead Bidder.
- e. The Project Manager shall act as the Single Point of Contact (SPOC) for all discussions between FCI and the System Integrator (SI)

These are the minimum skillsets for the indicative team members to be involved in the operations and maintenance of the project. However, the SI shall propose the allocated resources for each category and phase at the time of proposal submission. Deployment of the

team at FCI shall be discussed and finalized at the time of signing of contract between FCI and the successful bidder based on the project need.

3.3 Resource Replacement

- i. Any replacement of resources deployed under the project shall attract penalties in accordance with Section 8.5 (*SLA for Manpower*). The replacement must be with a resource having equivalent or higher qualifications and experience, as approved by FCI.
- ii. In case the resource has resigned, the SI must inform within one (1) week of such resignation. The SI shall promptly initiate a search for a replacement to ensure that the role of any member of the team is not vacant for any longer than **fifteen (15) days**, subject to reasonable extensions requested to FCI by the SI.
- iii. Before assigning any replacement member of the team to the provision of the services, the SI shall provide FCI with the curriculum vitae (CV) and any other information about the candidate that is requested by FCI duly signed and stamped by the authorized signatory.
- iv. If FCI does object to the appointment, the SI shall not assign the individual to that position and shall seek an alternative candidate in accordance with this section. The decision of FCI shall be final and binding in the matter of replacement of resources, deployed as members of the team, irrespective of the fact that a resource may be replaced by a person with higher qualifications and/or experience.
- v. The SI must ensure at least 2 weeks of overlap period between the existing resource and the replacement resource to facilitate knowledge transfer.

SECTION II – INSTRUCTION TO THE BIDDERS

4 Instruction to Bidders

4.1 General

- a. While every effort has been made to provide comprehensive and accurate background information, requirements and specifications, bidders must form their own conclusions about the support required. Bidders of this RFP may wish to consult their own legal advisors in relation to this RFP.
- b. All information supplied by bidders may be treated as contractually binding on the bidders, on successful award of the assignment by FCI based on this RFP.
- c. No commitment of any kind, contractual or otherwise shall exist until and unless a formal written contract has been executed by or on behalf of FCI. FCI may cancel this RFP at any time prior to a formal written contract. However, once a bidder has been selected through this e-tendering process and awarded a formal contract for execution of work as defined in this RFP and its corrigenda, the respective bidder shall be bound to carry out all activities defined under this RFP for maintenance of the complete FCI FAP. If the selected bidder retracts from carrying out such work, the PBG (if submitted) shall be forfeited and FCI shall award the work to any alternate agency at the risk, cost, or responsibility of the selected bidder.
- d. This RFP supersedes and replaces any previous public documentation & communications, and bidders shall place no reliance on such communications.
- e. Bids shall be submitted by the interested bidders on the GeM Portal before the time and date specified in the schedule of the RFP notice.
- f. The details of the online e-tendering procedure are provided in **Section 4.5**. FCI shall issue RFP and corrigenda documents on GeM portal. Bidders are advised to check GeM portal for all updates regarding this RFP.
- g. Only online bids shall be accepted. No other mode of bid submission shall be accepted. If any of the attached documents are found to be forged/ fabricated/ false at any stage, the PBG (including e-BG) of the bidder shall be liable to be forfeited/encashed without prejudice to the right of the corporation to proceed against the bidder legally.
- h. All the supporting documents required in the bid submission shall be submitted on the company/bidder's letter head.

4.2 Compliant Bids/Completeness of Response

- a. Bidders are advised to study all instructions, forms, requirements, appendices, and other information in the RFP documents carefully. Submission of the bid shall be deemed to have been done after careful study and examination of the RFP document with full understanding of its implications.
- b. Failure to comply with the requirements of the RFP may render the bid non-compliant and the bid may be rejected. Bidders must:
 - i. Comply with all the requirements as set out within this RFP.
 - ii. Submit the forms as specified in this RFP and respond to each element in the order as set out in this RFP.
 - iii. Include all supporting documentations specified in this RFP.

4.3 Bidder to Inform

The bidder shall be deemed to have carefully examined and understood the complete RFP prior to submission of their bid. If the bidder has any doubts/clarifications regarding any clause/section in the RFP or its subsequent corrigenda, they shall consult before the last date for submission of pre-bid queries, set forth thereof and submit them to FCI in writing to ensure such doubts are clarified.

Regarding the queries raised by bidders on the clauses of the RFP, interpretation of clauses, scope, terms, and conditions as stated in this RFP and/or its subsequent corrigenda, if any, the decision of FCI shall be final and binding on all bidders.

4.4 Pre-Bid Meeting & Clarifications

4.4.1 Bidders' Queries

- a. FCI shall hold a pre-bid meeting with the prospective bidders on **05th – DECEMBER - 2025, 3:00 PM** at FCI Headquarters, New Delhi.
- b. Bidders are requested to send their pre-bid queries to FCI by **04th – DECEMBER - 2025, 11:59 PM** prior to the pre-bid meeting scheduled on **05th – DECEMBER - 2025, 3:00 PM** via email to: agm1it@fci.gov.in.
- c. The queries shall necessarily be submitted in the following format:

#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification

- d. The pre-bid meeting shall be conducted to address any relevant queries or clarifications required to the prospective bidders.
- e. FCI shall not be responsible for ensuring the receipt of the bidders' queries.
- f. Any requests for clarifications post the indicated date and time (**04th – DECEMBER - 2025, 11:59 PM**) shall not be entertained by FCI.

4.4.2 Responses to Pre-Bid Queries and Issue of Corrigendum

- a. The officer notified by FCI shall endeavour to provide timely response to all the relevant queries on GeM portal. However, FCI makes no representation or warranty as to the completeness or accuracy of any response made in good faith, nor does FCI undertake to answer all the queries that have been raised by the bidders.
- b. At any time prior to the last date for receipt of bids, FCI may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective bidder, modify the RFP document by a corrigendum. FCI may, at its sole discretion, also extend the deadline for submission of proposals by issuing a corrigendum.
- c. The corrigendum (if any) & clarifications to the relevant queries from bidders shall be posted on the GeM portal. Bidders are advised to check the portal frequently for all updates regarding this RFP.

- d. Any such corrigendum shall be deemed to be incorporated into this RFP and shall be considered as its part, thereafter.
- e. To provide prospective bidders reasonable time considering the corrigendum (if any), FCI may, at its discretion, extend the last date for the receipt of bids.

4.5 Online Bidding Procedure

As per the directives of Department of Expenditure, this tender document has been published on the GeM portal (URL: <https://gem.gov.in/>). The bidders are required to submit soft copies of their bids electronically on the GeM portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the Bidders on submission of bid on the GeM.

Additional information/instructions for submitting online bids on the GeM portal may be obtained at: <https://gem.gov.in/>

4.6 Key Requirements of the Bid

4.6.1 Right to Terminate the Process

- a. FCI may terminate the RFP process at any time without providing any reason. FCI makes no commitments, express or implied, that this process shall result in a business transaction with anyone.
- b. This RFP does not constitute an offer by FCI. The bidder's participation in this process may result in selection of bidder by FCI to engage towards execution of the contract.

4.6.2 Earnest Money Deposit (EMD)

Bidder (Sole bidder or Lead bidder (In case of Consortium)) shall submit, along with their bids, Earnest Money Deposit of INR **1,40,00,000 (One Crore Forty Lakhs Only)**, via RTGS/NEFT/Electronic Mode/BG (including e-BG) to

Name: FOOD CORPORATION OF INDIA (HQ) Account Number: 10220632672

Bank Name: STATE BANK OF INDIA

Branch Name: K.G. Marg, New Delhi

IFSC Code: SBIN0050191

EMD shall not be entertained in any other form and shall be denominated in INR only.

- a. EMD submitted by unsuccessful bidders shall be returned at the earliest, but not later than 30 days after the signing of contract to the successful bidder.
- b. No interest shall be payable on EMD, in any case.
- c. The bids not accompanied by the requisite EMD shall be summarily rejected.
- d. Compliance to be ensured of instructions issued by MSME (Public Procurement Policy) vide OM dated 27-Jan-2022. Under MSE category, only service providers for services are eligible for exemption from EMD. Subject to compliance of MSE guidelines.
- e. FCI has registered with Invoicemart having Entity ID No. 1000013215XXX * (M/s. A TReDS Ltd.) MSE suppliers should register themselves on Invoicemart (M/s. A TReDS Ltd.) in order to avail facility of Bill discounting by converting their trade receivables into liquid funds on TReDS portal (refer DPE, D.O No. 7/4/07-Fin dated 07.09.2022).
- f. The EMD may be forfeited:

- i. If a bidder withdraws its bid during the period of bid validity.
- ii. If a bidder modifies its quoted prices during the period of bid validity or its extended period, if any.
- iii. If the bidder fails to sign the subsequent contract in accordance with this RFP.
- g. The EMD as Bank Guarantee shall be valid for a period of **120 days** from the date of issue.
- h. Any exemption of EMD as per the terms and conditions of GeM shall be applicable. In case of non-submission of EMD, the bidder must submit the **“Bid Security Declaration Form”** as per the format mentioned in **Form 21**.
- i. In case the bidder (Sole bidder or Lead bidder (In case of Consortium)) fails to submit the EMD or the Bid Security Declaration Form (as applicable) then FCI reserves the right to reject the proposal of the concerned bidder without providing any opportunity for any further correspondence by the concerned bidder.

4.6.3 Submission of Bids

- a. The bidders shall submit their responses in two parts namely “Technical Bid” and “Commercial Bid”. The online packets containing the bid shall include scanned copies of all relevant documents as mentioned below, serially numbered, duly signed and stamped on each page by the bidder. All documents as required to be submitted need to be digitally signed or self-attested by the authorized signatory.
- b. All the pages of the bid must be sequentially numbered and must contain the list of contents with page numbers.
- c. The bid shall be prepared in indelible ink. It shall contain no interlineations or overwriting, except as necessary to correct errors made by the bidder itself. Any such corrections must be initialled by the person (or persons) who sign(s) the bids.
- d. All pages of the bid shall be initialled and stamped by the person authorized to sign the bid. In case, the bid is signed digitally, the digital signature used shall be of the authorized person only.
- e. The bidder shall not indicate any prices in the technical bid.
- f. Bidder shall log onto the site well in advance for bid submission and shall be responsible for any delays thereafter.
- g. Any default by the bidder in respect of tender terms and conditions shall lead to rejection of the bid.
- h. FCI reserves the right to reject any or all bids without assigning any reasons thereof.
- i. Documents required as part of Technical Bid (as per Part A):
 - i. Letter of Bid as per format given in [Form 1 of Appendix – II](#).
 - ii. Power of Attorney for authorized signatory of the bidder [Form 2 of Appendix – II](#).
 - iii. The letter of authorization must be accompanied by a copy of the board resolution stating the powers of the executants to authorize the concerned person being issued the power of attorney.
 - iv. Bidder particulars as per format given in [Form 3 of Appendix – II](#).
 - v. Compliance sheet for eligibility criteria as per format given in [Form 4 of Appendix – II](#).
 - vi. Checklist of documents attached as per format given in [Form 5 of Appendix – II](#).
 - vii. Certificate for Turnover and Net Worth of the Bidder as per format given in [Form 7 of Appendix – II](#).

- viii. Certificate of Experience as per format given in [Form 8 of Appendix – II.](#)
- ix. Project Citation and declaration of projects under NDA (Forms 9A and 9B) as per format given in [Form 9 of Appendix – II.](#)
- x. Certificate for Technical Manpower as per [Form 10 of Appendix – II.](#)
- xi. Un-priced bill of material as per format given in [Form 11 of Appendix – II.](#)
- xii. Team Composition as per format given in [Form 12 of Appendix – II.](#)
- xiii. Curriculum Vitae (CV) of proposed members of the team as per format given in [Form 13 of Appendix – II.](#)
- xiv. Self-certification for non-blacklisting as per format given in [Form 14 of Appendix – II.](#)
- xv. Undertaking for Total Responsibility as per format given in [Form 15 of Appendix – II.](#)
- xvi. Earnest Money Deposit (EMD) as Bank Guarantee as per format given in [Form 16 of Appendix – II.](#)
- xvii. Declaration as per format given in [Form 17 of Appendix – II.](#)
- xviii. Draft contract agreement as per format given in [Form 18 of Appendix – II.](#)
- xix. Undertaking for Cloud Service Provider (CSP) as per format given in [Form 19 of Appendix – II.](#)
- xx. Tender Acceptance Letter as per format given in [Form 20 of Appendix – II.](#)
- xxi. Bid Security Declaration Form as per format given in [Form 21 of Appendix – II.](#)
- xxii. Tender document signed and stamped on each page.
- j. Bids not submitted as per the specified format and nomenclature may be rejected. Ambiguous/Incomplete/Illegible bids may be out rightly rejected. Any alteration/overwriting/cutting in the bid should be duly countersigned else it will be out rightly rejected.
- k. Bidders are requested to note that they shall necessarily submit their financial bids in the format provided and no other format is acceptable resulting in rejection of the bid. Not quoted bids shall be considered as non-responsive and shall be rejected.
- l. The bid summary must be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry for any bid opening meetings.

4.6.4 Clarifications & Amendments to Bid Documents

- a. FCI may, at any time prior to the due date of the bid and for any reason, whether at its own initiative or in response to any clarification sought by any bidder, modify the Bid document. Any corrigendum thus issued shall be posted on the GeM portal and such modification shall be binding on all. To provide sufficient time for the prospective bidders to consider the modification or for any other reasons, FCI may, at its discretion extend the due date for the proposal.
- b. At its discretion, FCI may seek from any or all bidder(s), clarification(s) in respect of any detail furnished in the bid. The request for such clarification and the response shall be in writing and submitted on time.
- c. FCI at its sole discretion may ignore minor omission in the submission of technical bid such as omitting to give number on a page, signature/stamp on any page of the bid or may require any bidders to rectify any such discrepancies noticed in the technical bids

submitted by them in the interest of increasing the competition. Any document already in existence on the last date of submission of bid shall not be treated as new document and shall be accepted at the sole discretion of FCI.

4.6.5 Consortium

A consortium of firms is eligible to submit bids, with the total consortium partners limited to a maximum of TWO, which includes the lead bidder. The consortium is required to furnish details regarding its formation, the percentage of stake held by each member, and the specific role that each member will play in relation to this project, as per the format given in Form 22.

Consortium bids must adhere to the following stipulations as well:

- a. Whether participating as a Sole Bidder or within a Consortium, the bidder is allowed to submit only one bid. If multiple submissions are identified from a specific firm in the bid, it will result in the disqualification of the firm.
- b. The bid must declare the list of Consortium partner, and this information cannot be altered by the bidder at a later stage.
- c. For Private Limited company & LLP, the board of Director(s)/Partner(s) of Lead bidder and Consortium partner should not be common.
- d. The Lead Bidder and Consortium partner must not be blacklisted by FCI/DFPD/DoE in last three years as on date of submission of this bid.
- e. Lead Bidder shall be responsible and liable for the successful completion of the entire project. Please note that the consortium together will be jointly and severally liable for the scope of their activities.
- f. The Lead Bidder is required to unconditionally confirm acceptance of full responsibility for executing the 'Scope of Work' and fulfilling all obligations outlined in this tender.
- g. Agreement between consortium partners as per Form-22 should also be addressed to the clearly stating the following at the minimum:
 - I. Names of Lead Bidder and Consortium partner
 - II. The Agreement is applicable to this tender and shall be binding on the Consortium partners for the contract period.
 - III. Consortium partners have read and examined in detail all the bidding documents in respect of the above-mentioned tender, in respect to the services offered/supplied.
 - IV. Roles and Responsibilities of the Consortium partners shall be clearly defined.
 - V. Percentage (%) share of work to be carried out by consortium partners.
 - VI. The Lead Bidder must be authorized to receive instruction/communications from FCI, authorized to incur liabilities and shall deliver all the provisions of the contract on behalf of consortium partners.
 - VII. In case of any dissatisfaction or default on part of the Lead Bidder, Consortium partner would provide the level of support desired by FCI without any financial liability.

- VIII. The Bidder and any of its consortium partners should not be involved in any major litigation that may have an impact of affecting or compromising the delivery of services as required under this contract.

4.6.6 Sub-contracting

The bidder shall not subcontract any part of the scope of work defined in this RFP. All services, activities, and deliverables—core or otherwise—must be undertaken and delivered directly by the bidder (in case of consortium, by the consortium members only). Any deviation from this requirement shall be considered a material breach of contract and may result in disqualification or termination, as applicable.

4.7 Preparation of Bids

4.7.1 Bid Preparation Costs

The bidder shall bear all its costs associated with or relating to the preparation and submission of its bid including preparation, copying, postage, delivery fees, expenses associated with any demonstrations or presentations which may be required by the authority, or any other costs incurred in connection with or relating to its bid.

All such costs and expenses shall remain with the bidder and the Authority shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by any bidder in preparation or submission of the bid, regardless of the conduct or outcome of the bidding process.

4.7.2 Language

The bid and all related correspondence and documents in relation to the bid process shall be in English language only. Supporting documents and printed literature furnished by the bidder with the bid may be in any other language if they are accompanied by translations in the English language, duly authenticated and certified by the bidder. Supporting materials, which are not translated into English shall not be considered. For interpretation and evaluation of the bid, the English language translation shall prevail.

4.7.3 Late Bids

- a. Bids shall be submitted online only before the date and time mentioned in this RFP or its subsequent corrigenda. No other mode of bid submission shall be accepted.
- b. The time settings fixed in the server side & displayed at the top of the GeM portal, shall be valid for all actions of requesting, bid submission, bid opening or similar., for this RFP. The bidders shall follow this time during bid submission.
- c. Beyond the date and time of bid submission, bidder shall not be able to submit their bids on GeM portal.

4.7.4 Deviations

No deviations shall be allowed in the bidder's response, and the bidder must agree to unconditional acceptance of all the contents of the RFP document including Terms and

Conditions, Scope of Work, Deliverables and Timelines, Payment Terms, Service Level Agreements and Deductions and similar sections etc. Conditional bids shall be summarily rejected.

4.7.5 Total Responsibility

Bidder i.e. Sole bidder or Lead bidder (In case of Consortium) shall issue an undertaking stating that they have read and understood all details provided in the RFP and subsequent corrigenda and undertake total responsibility for the defect free operation of the proposed solution as per the requirements stated in the RFP and its subsequent corrigenda. Format for the undertaking is provided in **Form 16 of Appendix – II**.

4.8 Bid Evaluation Process

4.8.1 General

- a. FCI shall constitute a Bid Evaluation Committee to evaluate the responses of the bidders.
- b. The Bid Evaluation Committee constituted by FCI shall evaluate the responses to the RFP and all supporting documents/documentary evidence. Inability to submit requisite supporting documents/documentary evidence, may lead to rejection of the bid.
- c. During evaluation, FCI reserves the right to seek clarifications from the bidders in relation to their submitted bids for supporting eligibility criteria or any other requirements of the RFP or its corrigenda or if the submitted bids are illegible in part or full. Bidders shall submit all such clarifications timely to avoid rejection of their bids.
- d. The decision of Bid Evaluation Committee/FCI in the evaluation of responses to the RFP shall be final. No correspondence in this regard shall be entertained.
- e. The Bid Evaluation Committee may ask for meetings with the bidders to seek clarifications on their bids.
- f. FCI reserves the right to reject any or all bids owing to on any deviations.
- g. Each of the responses shall be evaluated as per the criteria and requirements specified in this RFP.

4.8.2 Minimum Quantity

The scope of work in this RFP includes maintenance and support of FCI FAP across all administrative offices of FCI with depots including legacy records of FCI's existing applications. FCI reserves the right to change the number of administrative offices at any time in future for any upgrades to be done, which may vary from what is being specified in the RFP (in the event of changes in number of administrative offices of FCI).

Any decision of FCI in this regard shall be final, conclusive, and binding on the bidder.

4.8.3 Opening of Bids

The bids submitted up to **19th – DECEMBER - 2025, 03:00 PM** shall be opened on **19th – DECEMBER - 2025, 03:30 PM** by FCI designated officials, in the presence of those bidders or their representatives who wish to remain present at the time of opening. The representatives of the bidders shall carry the identity card or a letter of authority from the tendering firms to

identify their bonafide for attending the opening of the bid. In the event of the specified date for the opening of bids being declared a public holiday by the GoI or FCI, the bids shall be opened at the appointed time on the next working day. FCI may, at its discretion, extend this deadline for bid opening on the GeM Portal. Bidders are requested to check the GeM Portal regularly.

4.8.4 Bid Validity

Bids must remain valid up to 90 days from the date of opening of Technical Bid. However, FCI reserves the right to extend this period by another 30 days at its discretion, which shall be binding on the bidders. Thereafter, this period may be further extended by the parties on mutual consent. Any bidder not keeping the offers open for the prescribed period shall be summarily rejected.

4.8.5 Bid Evaluation

If the bid submitted is not in accordance with the RFP, then the bid shall be considered as non-responsive. The process for evaluation of responsive bids is as mentioned below.

4.8.5.1 Stage I: Eligibility and Technical Evaluation

- a. The Bid Evaluation Committee shall open the packet for “Technical Bid” from the GeM.
- b. The committee shall evaluate each of the responses to validate the compliance of the bidders according to the eligibility criteria mentioned in this RFP, and as per format and supporting documents mentioned against each clause. The bidder shall qualify only if all the eligibility criteria are met. Non-compliance to any of the conditions mentioned in the eligibility criteria shall lead to disqualification. (Please refer **Section 4.10** for Pre – Qualification Criteria).
- c. Bidders shall be informed of their qualification/disqualification based on the eligibility criteria through GeM.
- d. The committee shall also evaluate the technical responsiveness of the bidders with respect to the scope, functional and technical requirements stated in this RFP document and corrigenda (if any).
- e. The committee shall review the technical bids of the bidders to determine whether they are substantially responsive as per the requirements of the RFP. Bids that are not substantially responsive are liable to be disqualified at the committee’s discretion.
- f. The bidder shall not incorporate any condition in the bid, as the conditional bids are liable to be rejected. Bidders who have qualified in Technical Evaluation stage shall only be eligible for Commercial Evaluation.

4.8.5.2 Stage II: Commercial Bid Evaluation

- a. All the eligible bidders shall be notified to participate in Commercial Bid opening process.
- b. The commercial bids of the eligible bidders shall then be opened from the corresponding packet in GeM Portal on the notified date and time and reviewed to determine whether they are substantially responsive. Bids that are not substantially responsive are liable to be disqualified at the committee’s discretion.

- c. Only fixed price commercial bids indicating total prices for all the deliverables and services specified in this bid document shall be considered.
- d. The bid price shall include all taxes, duties, fees, and levies except GST and shall be in Indian Rupees (INR).
- e. Arithmetical errors in the commercial bid shall be read on the following basis:
 - i. If, in the price structure quoted for the required services/works, there is discrepancy between the unit price and total price (which is obtained by multiplying the unit price by the quantity), the unit price shall prevail and the total price shall be corrected accordingly.
 - ii. If there is an error in a total corresponding to the addition or subtraction of subtotals, the subtotals shall prevail, and the total shall be corrected.
 - iii. If there is a discrepancy between words and figures, the lesser amount quoted shall prevail.

4.9 Acceptance/Rejection of Bids

- a. FCI reserves the right to reject in full or part, any, or all bids without assigning any reason whatsoever. FCI reserves the right to assess the bidder's capabilities and capacity. The decision of FCI shall be final and binding.
- b. Bid shall be free of over writing. All erasures, correction or addition must be clearly written both in words and figures and attested.
- c. In the event of any assumptions, presumptions, key points of discussion, recommendation or any points of similar nature submitted along with the bid, FCI reserves the right to reject the bids. If there is any discrepancy in the commercial bid, it shall be dealt as per relevant clauses under **Section 4.8.5.2**.

4.10 Pre-Qualification (PQ) Criteria

The bidder's response shall be evaluated as per the eligibility criteria given in the table below. The Bid Evaluation Committee shall validate the bidder's compliance according to the eligibility

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criteria along with the format and supporting documents mentioned against each clause. Each of the eligibility criteria mentioned below is mandatory. The bidder shall qualify for commercial evaluation only if all the eligibility criteria are met. In case the bidder does not meet any one of the conditions, the bidder shall be disqualified and shall not be considered for the commercial evaluation.

#	Basic Requirement	Specific Requirements	Supporting Documents Required
1	Company Registration (Legal Entity)	The bidder i.e., Sole bidder/ Consortium (lead bidder and consortium partner): - The bidder shall be a company, registered under Indian Companies Act, 1956/ Companies Act, 2013. OR A partnership firm registered under Indian Partnership Act, 1932. OR A partnership firm registered under Indian LLP act 2008. - For Pvt. Ltd. company & LLP, the board of Director(s)/Partner(s) of Lead bidder and Consortium partner should not be common. - The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall be registered with the Goods and Services Tax (GST) Authorities and shall have: ➤ GSTIN where the business is located. ➤ PAN details The member firms in case of consortium/sole bidder should have been operating for the last 5 years as on the date of publishing of tender notice.	1. Copy of valid Registration Certificates or Copy of Registered Partnership deed or Copy of Certificates of incorporation or Memorandum of association or article of association 2. PAN 3. GST Registration
2	Financial Turnover	The Sole bidder from services related to software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 350 crore in each of the	CA Certificate with CA's Registration Number and Seal and Unique Document Identification Number *Note: For the year 2024-25,

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#	Basic Requirement	Specific Requirements	Supporting Documents Required
		last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets). In case of Consortium, - Lead bidder from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 262.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 . (as per the last published audited balance sheets). AND - Consortium Partner from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 87.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets).	provisional certificate shall be accepted Please refer Form 7 of Appendix – II
3	Financial Net Worth	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have a Positive net worth in each of last three (3) financial years, i.e., from 2022-23 to 2024-25.	CA Certificate with CA's Registration Number and Seal and Unique Document Identification Number *Note: For the year 2024-25, provisional certificate shall be accepted Please refer Form 7 of Appendix – II

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#	Basic Requirement	Specific Requirements	Supporting Documents Required
4	Mandatory Undertaking	· The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall not be insolvent, in receivership, bankrupt or being wound up, not have its affairs administered by a court or a judicial officer, not have its business activities suspended and must not be the subject of legal proceedings for any of the foregoing reasons. · The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner), their directors, and officers shall not have been convicted of any criminal offence related to their professional conduct or the making of false statements or misrepresentations as to their qualifications to enter a procurement contract within a period of three years preceding the commencement of the procurement process or not have been otherwise disqualified pursuant to debarment proceedings. · The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall not have a conflict of interest in the procurement in question as specified in the bidding document. · The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall comply with the Memorandum No. F. No. 6/18/2019-PPD dated 23-Jñul-2020 and further, superseded by Memorandum No. F.7/10/2021/-PPD (1) dated 23-Feb-2023 and issued by the Public Procurement Division, Department of Expenditure, Ministry of Finance, regarding Restrictions Rule 144 (ix) of the GFR.	Self-Certification by the authorized signatory
5	Relevant Business Experience	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have experience of successfully Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any	A. Documents required in case of Completed project: Work Order and Completion Acknowledgement from the client

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#	Basic Requirement	Specific Requirements	Supporting Documents Required
		Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	OR Work order along with Acknowledgement of completion Certified by statutory auditor/CA/CS B. Documents required in case of Ongoing project: Work Order along with Phase Completion Acknowledgement/Phase Progress Acknowledgement/ Milestone-wise Payment Progress Acknowledgement from the client/Certified by statutory auditor /CA/CS Please refer Form 8 of Appendix – II
6	Manpower Strength	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) must have at least 500 technically qualified professionals on its role in the Application development, deployment, O&M,IT/ITES who have prior experience in Application system maintenance & management. Out of the 500 technical manpower, At least 300 resources shall be B.E/B.Tech/MCA/MBA with developer technical certifications. At least 50 Oracle/SAP/Application Software expert professionals At least 30 professionals with PMP certification. At least 20 professionals with ITIL V3	Self-Certification by the authorised signatory/ HR department

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#	Basic Requirement	Specific Requirements	Supporting Documents Required
		(Intermediate or above)/TOGAF/ITSM certifications.	
7	Certifications	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) must have the following certificates valid at the time of submission of bid: • ISO 9001 • ISO 20000 • ISO 27001 • CMMI Level 5	Copy of Valid Certificate and undertaking to renew the certificates in case either of these is getting expired in one (1) Year.
8	Bidder Location	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) shall have at least 1 office in Delhi NCR	Self-Certification by the authorised signatory
9	EPFO Registration	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) shall have in its name EPFO Registration number in India.	A copy of EPFO Registration Certificate
10	Power of attorney	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) shall submit a registered/notarized power of attorney by competent authority of the Service Provider authorizing the Person signing the Tender document to sign/ execute the proposal as a binding document and execute all relevant agreements/documents forming part of Tender.	1. Self-Attested copies of Memorandum and Article of Association; AND 2. A copy of the 'Power of Attorney' in format prescribed at Annexure – II, Form 2
11	CSP Certified Partner	The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), shall be a Certified Partner of CSP with validity of more than the bid validity period.	A copy of Certificate/Letter from CSP with validity of more than bid validity period
12	Oracle Certified Partner	The bidder must be an Oracle Certified Partner with a valid certification extending beyond the bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid	A copy of Certificate/Letter from Oracle with validity of more than bid validity period

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#	Basic Requirement	Specific Requirements	Supporting Documents Required
		certifications extending beyond the bid validity period.	
13	Blacklisting	The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), shall not be blacklisted by FCI/DFPD/DoE or under a declaration of ineligibility for corrupt or fraudulent practices, as on the date of submission of this bid.	A self-certified letter by the authorized signatory of the Service Provider regarding non-blacklisting of Agency as per the Annexure-II

4.11 Technical Qualification (TQ) Criteria

All the eligible bidders who have given a certificate of conformity/no deviation and meet eligibility criteria of the RFP shall be evaluated on technical parameters as given below:

#	Eligibility Criteria	Max Marks	Supporting Documents Required
1	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall have experience successfully completed or phase-wise/partial completion of Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to 2024-25) for any Indian Govt. (Central/State)/Ministries/ PSUs/Government Autonomous Bodies The work order value should be min. INR 28 Crore with below criteria: Scoring Criteria: ≥ 5 projects: 20 Marks = 4 projects: 15 Marks = 3 projects: 10 Marks	20	A. Documents required in case of Completed project: Work Order and Completion Acknowledgement from the client OR Work order along with Acknowledgement of completion Certified by statutory auditor/CA/CS B. Documents required in case of Ongoing project: Work Order along with Phase Completion Acknowledgement/Phase Progress Acknowledgement/ Milestone-wise Payment

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#	Eligibility Criteria	Max Marks	Supporting Documents Required
			Progress Acknowledgement from the client/Certified by statutory auditor /CA/CS Please refer Form 8 of Appendix – II Note: The credentials regarding experience and past performance to the extent required as per eligibility criteria submitted by the bidder may be verified by FCI, from the parties for whom work has been done.
2	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall at least have a combination of the below mentioned number of technically qualified professionals (on payroll) with prior experience in application Development, Implementation/Operation & Maintenance/IT/ITES of similar kind of projects. Technical Qualification: • B.E/B.Tech/MCA/MBA with technical certifications • Project management professionals with PMP certification • ITIL V3/ITSM certifications or similar. Scoring Criteria • ≥ 1500 resources: 20 Marks • ≥ 1000 and < 1500 resources: 15 Marks • ≥ 500 and < 1000 resources: 10 Marks Note: Third party/outsourced resources shall not be considered.	20	Self-Certification by the authorized signatory and HR department on company's Letterhead. Please refer Form 10
3	Annual Turnover of the bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall be from IT/ITeS during the last three (3) financial years, i.e., from 2022-23 to 2024-2025 (as per the last published audited balance sheets): Scoring Criteria: • ≥ INR 950 Cr. = 10 Marks • ≥ INR 650 Cr. and < INR 950 Cr. = 7.5 Marks • ≥ INR 350 Cr. And <650 Cr. = 5 Marks	10	CA Certificate with CA's Registration Number and Seal Please refer Form 7 of Appendix – II

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#	Eligibility Criteria	Max Marks	Supporting Documents Required
4	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall have experience of Design, Development, Implementation/Operation & Maintenance of Software (applications) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies, of value specified herein: Scoring Criteria: a. Single project of value INR 70Cr. OR b. Two projects each having value of INR 63 Cr. OR c. Three projects each having value of INR 56 Cr. = 20 Marks a. Single project of value INR 55 Cr. OR b. Two projects each having value of INR 49 Cr. OR c. Three projects each having value of INR 42 Cr. = 15 Marks a. Single project of value INR 41 Cr. OR b. Two projects each having value of INR 35 Cr. OR c. Three projects each having value of INR 28 Cr. = 10 Marks	20	A. Documents required in case of Completed project: Work Order and Completion Acknowledgement from the client OR Work order along with Acknowledgement of completion Certified by statutory auditor/CA/CS B. Documents required in case of Ongoing project: Work Order along with Phase Completion Acknowledgement/Phase Progress Acknowledgement/ Milestone-wise Payment Progress Acknowledgement from the client/ Certified by statutory auditor /CA/CS Please refer Form 8 of Appendix – II
5	Approach and Methodology towards Operation and maintenance of FAP Application. - Understanding of the Department ecosystem, objectives of Project, Scope of work, Challenges, mitigation, Solution requirements and business processes = 15 Marks - Previous experiences in operation and maintenance of similar application. Experience in Integrating applications = 15 Marks	30	Presentation on Approach and Methodology which shall at least cover all the mentioned points.

Note:

- a. **Rejection of the bid:** FCI reserves the right to reject the bid of any bidder if the proposed solution is not found satisfactory or has not covered the necessary aspects of the solution.

- b. Bidders scoring more than **70 Marks** in the Technical Evaluation (**Minimum 50% marks in each Category/Criteria**) shall be eligible for commercial/financial bid opening.
- c. Technical Proposals of only those bidders who are qualifying as per the Pre-Qualification Criteria given in the table above shall be taken up by FCI for further evaluation in accordance with other documents submitted.
- d. Financial proposals of those bidders who are disqualified during Technical Evaluation for not meeting the pre-qualification criteria or due to the non-compliance to the Technical Specifications given in the RFP shall not be opened. In such case, a notification to that effect shall be sent to the bidder. FCI shall simultaneously notify those bidders who are qualified in Technical Evaluation and inform them of the date, time, and location for online opening of the Financial Proposals.
- e. Prices shall not be mentioned anywhere in their technical bid by the bidder. If found, FCI reserves the right to reject the bid.
- f. The successful bidder shall be selected on basis of **Quality and Cost Based Selection (QCBS) (70:30)**.

4.11.1 QCBS Evaluation

The bid shall be awarded to the bidder who has scored highest marks in the process (70% weightage for technical and 30% for financial bid).

The process of selection of successful bidder for the purpose of award of project shall be as follows:

- a. **Calculation of Technical Score (ST) = $100 \times (T/TH)$**

T: Technical Marks obtained by the individual bidder.

TH: Highest technical marks obtained by bidder.

- b. **Calculation of Financial Score (SF) = $100 \times (FL/F)$**

F: Total Financial Bid amount quoted by individual bidder.

FL: Lowest Total Financial Bid amount quoted by individual bidder.

- c. **Calculation of Final Composite Score (S) = $(ST \times 70\%) + (SF \times 30\%)$**

The Final Composite Score (S) shall be computed for each firm/bidder by assigning 70% weightage to the Technical Score (ST) and 30% weightage to Financial Score (SF) using the formula mentioned above.

Note:

- a. All scores shall be rounded off to two (2) decimal places.
- b. In case of a tie in the final composite score, the bidder with the higher Technical Score shall be selected first for further processing.

4.12 Disqualification Criteria

4.12.1 Disqualification of Bidder

The bidder is liable to be disqualified in the following cases:

- a. If the proprietor/ any of the partners of the firm/ executive member of cooperative /any of the Directors of Board of Directors of the bidder have been, at any time, convicted by a court of an offence and sentenced to imprisonment for a period of three (3) years or more, such bidder shall be ineligible.
- b. If bidder is blacklisted under GST or any other Statutory Law.

While considering ineligibility arising out of any of the above clauses, incurring of any such disqualification in any capacity whatsoever (even as a proprietor, partner in another firm, executive member of cooperative or as director of a company) shall render the bidder disqualified.

4.12.2 Disqualification of Bid

The bid is liable to be disqualified in the following cases:

- a. Bidder's bid is conditional and has deviations from the terms and conditions of RFP.
- b. The bid submitted is incomplete.
- c. The bid is not accompanied by all the requisite documents.
- d. Information submitted in technical bid is found to be misrepresented, incorrect or false, accidentally, unwittingly, or otherwise, at any time during the processing of the contract (no matter at what stage) or during the tenure of the contract including the extension period if any.
- e. Commercial bid is submitted in the same folder as that of the technical bid or prices are indicated in technical bid.
- f. Bidder tries to influence the bid evaluation process by unlawful/corrupt/fraudulent means at any point of time during the bid process.

4.13 Takeover for Maintenance & Support

- a. If an agency other than the existing agency (i.e., M/s Tech Mahindra) is selected, the SI shall be responsible for taking over the maintenance and support work from the outgoing agency (i.e., M/s Tech Mahindra) well before the commencement of the new contract period. The transition must be smooth, ensuring complete knowledge transfer from the existing agency to the SI well before the expiry of the current contract with the outgoing agency.
- b. To facilitate a seamless transition, the SI should preferably deploy its team as per the following schedule:
 - i. Within **fifteen (15) days** from the date of issuance of the Letter of Acceptance, Deployment of **not less than ten (10) personnel**.
 - ii. Within **thirty (30) days** from the date of issuance of the Letter of Acceptance, Deployment of not less than **twenty (20) personnel**.
- c. The team deployed by the SI during the Knowledge Transfer (KT) period shall closely interact with the existing team of the outgoing agency (i.e., M/s Tech Mahindra) and FCI

officials to quickly grasp all necessary details regarding the assignment. Within this Knowledge Transfer period, the SI must ensure complete knowledge transfer so that, the SI is fully capable of handling maintenance and support independently, without significant assistance from the outgoing agency. The selected agency shall be required to present its understanding of the Financial Accounting Package (FAP) application through a detailed presentation and submit a comprehensive Knowledge Transfer (KT) report. Based on the evaluation of the presentation and report, FCI will determine the next course of action. If additional handholding support is deemed necessary from the outgoing agency (M/s Tech Mahindra), the cost of extending their contract shall be borne by the selected agency. The commencement of payments to the Selected SI shall be effective only after completion and formal approval of the KT by FCI(maximum two months), from which point the overall project timeline of five (5) years shall commence.

- d. During Knowledge Transfer period, the SI shall provide active maintenance and support services, while receiving passive support from the outgoing agency (i.e., M/s Tech Mahindra).
- e. If the SI fails to complete the knowledge transfer by within two months from date of issuance of the Letter of Acceptance Food Corporation of India (FCI) reserves the right to extend the contract period of the outgoing agency for such additional period as may be required. The cost for such an extension, at a rate mutually agreed upon among FCI, the outgoing agency, and the SI, shall either be borne directly by the SI or be recovered by FCI from the SI and paid to the outgoing agency.
- f. No additional payment shall be made for deployment of team by the SI for the takeover period.

5 Appointment of System Integrator

5.1 Award Criteria

- a. The selection of agency for this project shall be done on **Quality and Cost-Based Selection (QCBS) (70:30)**. The commercial bids of the qualified bidders only shall be opened on the notified date & time and reviewed to determine whether they are substantially responsive. Bids that are not substantially responsive are liable to be disqualified at the committee's discretion.
- b. The contract shall be awarded to the successfully qualified bidder by way of issuance of acceptance letter by FCI by post/e-mail/hand delivery under acknowledgment and the bidder shall immediately act upon such acceptance letter. Acceptance conveyed by FCI shall constitute the contract between the qualified bidder and FCI and the contract shall be effective from the date of signing of contract, or a later date as specified in the acceptance letter.
- c. FCI reserves the right to accept or reject any or all the bids without assigning any reason/notice whatsoever and any bid and reserves the right to scrap the bid enquiry at any stage without assigning any reasons and corporation shall not be liable for any costs and consequences thereof.

5.2 Notification of Award

Prior to the expiration of the validity period, FCI shall notify the qualified bidder in writing or by email, that their bid has been accepted. In case the tendering process has not been completed within the stipulated period, FCI may like to request the bidder to extend the validity period of the bid. The notification of award shall constitute the formation of the contract.

5.3 Contract Finalization and Award

FCI shall not negotiate with the bidder(s) at any stage of the bidding process or afterwards, based on eligibility and commercial evaluation to the proposed project, as per the guidelines provided by CVC. Contract agreement shall be finalized and signed with the qualified bidder.

5.4 Performance Bank Guarantee (including e-BG)

- a. The security deposit in the form of PBG (including e-BG) furnished by the successful bidder shall be subject to the terms and conditions given in the RFP and its subsequent corrigenda and FCI shall not be liable for payment of any interest on the security deposit.
- b. The security deposit shall be refunded/returned to the successful bidder on due and satisfactory performance of the services and on completion of obligations by the successful bidder under the terms of contract and submission of clear "No Dues Certificates" by FCI subject to such deductions from the security as may be necessary for making up FCI's claim against successful bidder. No interest is payable on the amount of security deposit lying with FCI under the contract, in any case. The decision of FCI as to the amount determined for deduction from the security deposit shall be final and binding on the successful bidder.
- c. The selected bidder (**Sole bidder or Lead bidder** *(In case of Consortium)*) shall provide PBG (including e-BG) from a scheduled commercial bank notified by RBI (excluding all urban/rural/state co-operative banks and Gramin Banks), within **fifteen (15) days** from the Letter of Award for a value equivalent to **five (5) %** of the total quoted value.
- d. The Performance Bank Guarantee (PBG), including electronic Bank Guarantee (e-BG), shall remain valid for a period of six (06) months beyond the end period of contract i.e upto 31st May 2031.
- e. In case of failure of the SI to deposit the PBG (including e-BG) within fifteen (15) days of acceptance of his tender, a further extension of seven (7) days can be granted by FCI, subject to levy of penalty @ one (1)% of PBG (including e-BG). In the event of failure to deposit the PBG (including e-BG) even within this extended period, FCI may, at its discretion, allow a second extension of seven (7) days subject to levy of penalty @ two (2)% of PBG (including e-BG).
- f. FCI reserves the right to invoke the PBG (including e-BG), either in full or in part, in case the SI fails to fulfil its contractual obligations, or if FCI suffers any financial or operational loss due to the SI's negligence or non-performance during project implementation or the operations and maintenance period, as per the agreed terms and conditions

- g. In case, the SI does not execute the work as per the scope, requirements, SLAs, terms, and conditions stated in the RFP and its subsequent corrigenda or the signed contract etc., the PBG (including e-BG) shall be forfeited.
- h. The EMD of the selected agency shall be refunded as soon as may be, after submission of PBG (including e-BG) and subject to entering a contract signing of SLA with FCI.
- i. The BG issuing bank shall send cover for BG issued through SFMS platform to the FCI banker, i.e., ICICI Bank Ltd., 9A, Phelps Building, Connaught Place, New Delhi – 110001 (IFSC Code: ICIC0000007) as per the details below:
 - A. MT760 COV for issuance of Bank Guarantee.
 - B. MT767 COV for amendment of Bank Guarantee.
 - C. Issuing bank shall mention FCI beneficiary office code in field code in field 7037 of MT760COV/MT767COV.
 - D. FCI Beneficiary code will be “FCIHA11” where HA11 is four-digit unit code of respective office of FCI.
- j. The bidder shall submit the copy of SFMS message as sent by the issuing bank branch along with the original Bank Guarantee.
- k. BG submitted without these details shall not be accepted.
- l. Proforma of BG shall also be amended to include the following message:
“Cover message for this BG has been sent to FCI bankers i.e., ICICI Bank Ltd., 9A, Phelps Building, Connaught Place, New Delhi – 110001 (IFSC Code: ICIC0000007) through SFMS.”

5.5 Signing of Contract

Post award of project and after submission of PBG (including e-BG) by the qualified bidder, FCI and the SI shall enter a contract, incorporating all clauses of the RFP and its corrigenda, pre-bid clarifications and the bid of the bidder etc.

5.6 Fraud and Corrupt Practices

- a. The bidders and their respective officers, employees and advisors shall observe the highest standard of ethics during the selection process. Notwithstanding anything to the contrary contained in this RFP, FCI shall reject a bid without being liable in any manner whatsoever to the bidder, if it determines that the bidder has, directly or indirectly or through an agent, engaged in corrupt, fraudulent, coercive, undesirable, or restrictive practice (collectively the “Prohibited Practices”) in the selection process or after the issue of the contract or the execution of the agreement.
- b. In such an event, FCI shall, without prejudice to its any other rights or remedies, forfeit/encash and appropriate the PBG (including e-BG) as mutually agreed genuine pre-estimated compensation and damages payable to the authority for, inter alia, time, cost, and effort of the authority, regarding the RFP, including consideration and evaluation of such bidder’s bid. Such bidder shall also not be eligible to participate in any tender issued by FCI for a period of up to three years from the date of occurrence of event.
- c. Following terms shall have the meaning hereinafter respectively assigned to them:
 - i. “Corrupt practice” means:
 - A. The offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence the action of any person connected with the selection process

- (for avoidance of doubt, offering of employment to or employing or engaging in any manner whatsoever, directly or indirectly, any official of FCI who is or has been associated in any manner, directly or indirectly with the selection process or the contract agreement or has dealt with matters concerning the agreement or arising there from, before or after the execution thereof, at any time prior to the expiry of one year from the date such official resigns or retires from or otherwise ceases to be in the service of FCI, shall be deemed to constitute influencing the actions of a person connected with the selection process); or
- B. Save as provided herein, engaging in any manner whatsoever, whether during the selection process or after the execution of the agreement any person in respect of any matter relating to the project or the agreement, who at any time has been or is a legal, financial or technical consultant/advisor of FCI in relation to any matter concerning the project.
- ii. "Fraudulent practice" means a misrepresentation or omission of facts or disclosure of incomplete facts, to influence the selection process.
- iii. "Coercive practice" means impairing or harming or threatening to impair or harm, directly or indirectly, any persons or property to influence any person's participation or action in the selection process.
- iv. "Undesirable practice" means:
- A. Establishing contact with any person connected with or employed or engaged by FCI with the objective of canvassing, lobbying or in any manner influencing or attempting to influence the selection process; or
- B. Having a conflict of interest.
- v. "Restrictive practice" means forming a cartel or arriving at any understanding or arrangement among bidders with the objective of restricting or manipulating a full and fair competition in the selection process.
- d. The selected bidder (or the SI) represents, warrants, and covenants that it has given no commitments, payments, gifts, kickbacks, lavish or expensive entertainment, or other things of value to any employee or agent of FCI or its nominated agencies in connection with this agreement and acknowledges that the giving of any such payment, gifts, entertainment, or other things of value is strictly in violation of FCI standard policies and shall result in cancellation of this agreement, or the SLA.

5.7 Conflict of Interest

- a. A bidder shall not have a "conflict of interest" that affects the bidding process. Any bidder found to have a conflict of interest shall be disqualified. In the event of disqualification, FCI shall be entitled to forfeit the PBG, as the case may be, as mutually agreed genuine pre-estimated loss and damage likely to be suffered and incurred by FCI and not by way of penalty for, inter-alia, the time, cost and effort of FCI, including consideration of such bidder's proposal (the "damages"), without prejudice to any other right or remedy that may be available to FCI under the bidding documents and/or the contract agreement or otherwise. Without limiting the generality of the above, a bidder shall be deemed to have a conflict of interest affecting the bidding process, if:
- i. The bidder, and any other member thereof (or any constituent thereof) have common controlling shareholders or other ownership interest; provided that this

disqualification shall not apply in cases where the direct or indirect shareholding of a bidder, its member thereof (or any shareholder thereof having a shareholding of more than 5% (five per cent) of the paid up and subscribed share capital of such bidder as the case may be) in the other bidder, its member is less than 5% (five per cent) of the subscribed and paid up equity share capital thereof; provided further that this disqualification shall not apply to any ownership by a bank, insurance company, pension fund or a public financial institution referred to in subsection (72) of section 2 of the Companies Act, 2013.

- ii. For the purposes of this clause indirect shareholding held, through one or more intermediate persons shall be computed as follows: (aa) where any intermediary is controlled by a person through management control or otherwise, the entire shareholding held by such controlled intermediary in any other person (the "Subject Person") shall be taken into account for computing the shareholding of such controlling person in the Subject Person; and (bb) subject always to sub-clause (aa) above, where a person does not exercise control over an intermediary, which has shareholding in the Subject Person, the computation of indirect shareholding of such person in the Subject Person shall be undertaken on a proportionate basis; provided, however, that no such shareholding shall be reckoned under this sub-clause (bb) if the shareholding of such person in the intermediary is less than 26% of the subscribed and paid up equity shareholding of such intermediary; or
 - iii. A constituent of such bidder is also a constituent of another bidder; or
 - iv. Such bidder thereof receives or has received any direct or indirect subsidy, grant, concessional loan or subordinated debt from any other bidder, its member, or has provided any such subsidy, grant, concessional loan or subordinated debt to any other bidder, its member, or any associate thereof; or
 - v. Such bidder has the same legal representative for purposes of this bid as any other bidder; or
 - vi. Such bidder thereof, has a relationship with another bidder, thereof, directly or through common third party/ parties, that puts either or both in a position to have access to each other's information about, or to influence the bid of either or each other.
- b. A bidder shall be liable for disqualification and forfeiture of PBG (including e-BG) if any legal, financial, or technical advisor of FCI in relation to the project is engaged by the bidder, or any associate thereof in any manner for matters related to or incidental to such project during the bidding process or after the Execution of the Contract Agreement.
 - c. In the event any such advisor is engaged by the selected bidder after execution of the contract agreement for matters related or incidental to the project, then notwithstanding anything to the contrary contained herein or the contract agreement and without prejudice to any other right or remedy of the authority, including the forfeiture and appropriation of the PBG (including e-BG), as the case may be, which FCI may have there under or otherwise, the contract agreement, as the case may be, shall be liable to be terminated without FCI being liable in any manner whatsoever to the selected bidder for the same.

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- d. For the avoidance of doubt, this disqualification shall not apply where such adviser was engaged by the bidder, its member or associate in the past but its assignment expired or was terminated prior to the application due date. Nor shall this disqualification apply where such adviser is engaged after a period of 3 (three) years from the date of commercial operation of the project.
- e. Any other incidents not falling under the above-mentioned clauses, the decision of FCI as to what constitute conflicting shall be final.

6 Payment Terms

All payments, including those for **Maintenance & Support** and **Change Requests**, shall be released on a **quarterly basis**, subject to submission of complete and verified invoices. For Maintenance & Support, the approved cost shall be paid quarterly on a **pro-rata basis** upon completion of each quarter. For Change Requests (excluding non-chargeable CRs), the amount payable shall be computed based on person-month effort derived from the approved rate in the financial bid. The person-days rate shall be derived by dividing the approved person-month rate by 22 working days. Invoices must be submitted **within 05 days** of the quarter end, along with relevant documentation such as resource attendance details, SLA compliance reports, and CR completion summaries—duly verified by both the Project Manager and FCI authorities.

Payments shall be made via **electronic transfer within 07 days** of receiving complete and compliant invoices. Deficiencies, if any, shall be communicated within 10 days and must be rectified by the SI within the next 10 days. The Service Provider shall provide bank account details within 7 days of mobilization. Compliance with applicable tax laws including **TDS and GST** shall be ensured, and FCI reserves the right to withhold GST components until successful matching of invoices in the GSTN system. No interest shall be payable on delayed payments.

6.1 Liability of Deployed Resources

- a. All resources deployed by the SI shall be engaged by them as their own employees in all respects.
- b. All rights and liabilities under the prevailing acts, rules and statutory obligations as applicable, in respect of all such resources shall exclusively be that of the SI.
- c. The SI shall be bound to take care of their resources under the applicable acts for any statutory modifications thereof or otherwise for or in respect of any damages or compensation payable in consequence of any accident or injury sustained by any person whether in employment with the SI or not.
- d. The SI shall be liable for making contributions in accordance with the provisions of the applicable acts and the schemes framed in respect of the resources deployed by them. FCI shall be in no way responsible for making any contributions towards any statutory provisions or acts.

6.2 Payment Schedule

- a. FCI shall process the payment within **4 weeks** of receiving of invoice along with proof of acceptance of deliverable.
- b. In case the SI completes the assigned work before deadline, payment shall be released accordingly subject to the confirmation from FCI.
- c. The SI shall raise a digitally signed payment invoice by uploading in the Bill Tracking Software (BTS) of FCI or any other software/modes provided by FCI during the contract period. Credentials for the respective portal shall be provided by FCI.
- d. Payment shall be made after deduction of applicable penalties capped at **10%** of the total Contract value subject to maximum **10%** penalty on the respective invoice value. Any applicable penalties shall be exclusive of any taxes.

6.3 Payroll Redevelopment Payment Schedule

FCI shall process payments for the development of the proposed Payroll Solution on a milestone-based approach, as per the milestones defined in the table below:

Time 'T' is the signing of contract between FCI and the successful bidder.

Milestone	Timeline (In Weeks)	Payment
Requirement Gathering, Analysis and Documentation of the complete system.	T + 4	20 % of Price mentioned in Section 12.3 Sr No. 2
Development, Integration & Testing and Demonstration Signoff	T + 4 to T + 20	20 % of Price mentioned in Section 12.3 Sr No. 2
UAT, Parallel run with the existing payroll system and Go – Live	T + 28	60 % of Price mentioned in Section 12.3 Sr No. 2

SECTION III – TERMS & CONDITIONS OF CONTRACT

7 Terms & Conditions of Contract

7.1 Copyright/Intellectual Property Rights (IPR)

- a. The copyright/ IPR in all design documents, architecture, application source code, DB schemas and other materials containing data and information solely and exclusively developed for FCI by the Bidder related to this project and its scope of work vests solely with FCI.
- b. The software (except third party software/ bidder's pre-existing IPR), data, manual, CDs, Drivers, Training material or similar shall be the exclusive property of FCI after it is successfully tested and implemented. The Intellectual Property Rights in all Standard Software and Standard Materials shall remain vested in the owner of such rights. Source code and IPR of the newly developed software/customized software shall be with FCI.
- c. All licenses, subscriptions, software components (including Commercially-Off-The-Shelf (COTS) software), cloud services, tools, utilities, and any other products or assets procured for the purpose of executing the contract shall be procured in the name of FCI, such licenses shall be of perpetual validity or for the full duration of the contract and any extended period.
- d. The successful bidder shall not provide or use the goods/services for the performance of work, which shall infringe any third-party patent, trademark, registered design, or other intellectual property rights.
- e. The successful bidder shall submit declaration regarding non-violation / infringement of any patent, trademark, registered design, or other intellectual property rights. **Form 17 of Appendix - II**
- f. FCI shall have complete and total ownership and control over all the data generated, stored, and processed during the Project.
- g. FCI shall be owner of IPR for application developed.
- h. The successful bidder shall indemnify, defend, and hold FCI harmless during and after the term of this contract from and against all liabilities, damages, losses, expenses, demands, actions, proceedings, costs and claims arising out of the third party IPR infringement under this contract.
- i. The items/services are reserved for exclusive purchase from Local suppliers (i.e., whose offered product or service meets the minimum local content) as per the "Public Procurement (Preference to Make in India) order 2017 of DPIIT (previously known as DIPP), GoI. Only local suppliers shall be eligible for participation in the tender & FCI shall have rights to place contract/order on local suppliers only. Techno-commercially qualified Local Supplier bidders shall be considered for further processing.

7.2 Extension of Contract Period

Upon successful completion of the initial five (5) years of Maintenance and Support phase, and subject to satisfactory performance, the contract period of the System Integrator (SI) may be extended by FCI, at its sole discretion. Such extension may be granted for up to one (1) additional year at the discretion of FCI, based on the same terms and conditions as specified in this RFP, with no additional financial cost to FCI. Also, in case the contract is extended, the SI shall extend the PBG (including e-BG) as well for the decided period.

7.3 Termination Clause

Right to Terminate the Contract

- a. FCI shall reserve the right to terminate the contract and recover expenditure incurred by FCI under the following circumstances:
 - i. If the selected bidder commits a breach of any of the terms and conditions of the bid.
 - ii. If the bidder goes into liquidation, voluntarily or otherwise.
 - iii. If the selected bidder fails to complete the assignment as per the timelines prescribed in the RFP and the extension if any allowed, it shall be a breach of contract. The FCI reserves its right to cancel the order in the event of delay and encash the PBG (including e-BG) as liquidated damages for the delay.
 - iv. In case the selected bidder fails to deliver the agreed deliverables, services, or milestones as per the implementation schedule or SLA timelines, FCI reserves the right to get the same work executed through alternate sources at the risk, cost, and responsibility of the selected bidder. Any additional cost incurred by FCI in such cases shall be recoverable from the selected bidder, without prejudice to other penalties or legal remedies available.
 - v. After the signing of the contract, if the selected bidder does not perform satisfactorily or delays execution of the contract, FCI reserves the right to get the balance contract executed by another party of its choice by giving one month's notice for the same. In that event, the selected bidder is bound to make good of the additional expenditure, which FCI may have to incur in executing the balance contract. This clause is applicable if, for any reason, the contract is terminated.
- b. FCI shall send a formal notice of termination, 30 days prior to date of termination, to the selected bidder.
- c. FCI reserves the right to recover any dues payable by the selected bidder from any amount outstanding to the credit of the selected bidder, including the pending bills and/or invoking the PBG (including e-BG) under this contract.

7.4 Consequences of Termination

- a. In the event of termination of the contract due to any reason whatsoever [whether consequent to the stipulated term of the contract or otherwise], FCI shall be entitled to impose any obligations and conditions as may be necessary to ensure efficient transition and effective business continuity of the service(s) which the SI shall be obliged to comply with and take all available steps to minimize loss resulting from that termination/breach, and further allow the next successor to take over the obligations of the erstwhile the SI in relation to the execution/continued execution of the scope of the contract.
- b. Nothing herein shall restrict the right of FCI to invoke PBG (including e-BG) and any other guarantees, securities furnished and pursue such other rights and/or remedies that may be available to FCI under law or otherwise.

- c. The termination hereof shall not affect any accrued right or liability of either Party nor affect the operation of the provisions of the Contract that are expressly or by implication intended to come into or continue in force on or after such termination.

7.5 Liquidated Damages

- a. Breach of service levels as defined under **Section 8** shall attract deductions as defined under the mentioned sections.
- b. Penalties applicable on breach of Service Level Agreement (SLA) shall be capped at **ten (10) %** of the total Contract value subject to maximum **Ten (10) %** penalty on the respective invoice value.
- c. Delays not attributable to selected bidder shall be considered for exclusion for the purpose of computing liquidated damages at the sole discretion of FCI.

7.6 Deductions

- a. The bidder shall perform its obligations under the agreement entered with FCI, in a professional manner.
- b. In the event of failure of maintaining the operational SLAs, deductions shall be carried out as per **Section 8** in this RFP.
- c. FCI reserves the right to recover any deductions from any payments being released to the selected bidder under this contract.
- d. If any act or omission by the Selected Bidder under the agreement leads to a system failure or renders any component inoperable, and FCI is compelled to take corrective measures to restore functionality, FCI reserves the right to levy a penalty equivalent to the cost incurred or the loss suffered due to such failure.
- e. FCI may impose penalty to the extent of damage to any of its equipment if the damage was due to the actions directly attributable to the staff of the selected bidder.
- f. FCI shall implement all deductions after giving due notice to the bidder.
- g. If the selected bidder fails to complete the due performance of the contract in accordance with the specification and conditions as per SLAs, FCI reserves the right either to cancel the order and/or to recover a suitable amount as deemed reasonable as Penalty / Liquidated Damage for non-performance.

7.7 Governing Laws and Dispute Resolution Mechanism

- a. The contract and the transactions contemplated therein shall be governed by and construed in accordance with the laws of India. All the parties and their personnel deciding to participate in this process shall be deemed to be submitting themselves to the laws of India.
- b. In case of any dispute arising out of and touching upon the Contract, the same shall be first referred to the Dispute/Grievance Redressal Committee constituted by FCI and functioning at Headquarter of the Corporation, with a view to settle the disputes. If any dispute remains

thereafter, the same shall be settled in the Court of law having competent jurisdiction. The Courts in New Delhi shall have exclusive jurisdiction to adjudicate the disputes arising under the Contract.

7.8 Notices

- a. Notice or other communications given or required to be given under the contract shall be in writing and shall be e-mailed/hand-delivered with acknowledgement thereof or transmitted by registered post, speed post and/or courier.
- b. Any notice or other communication shall be deemed to have been validly given on date of delivery if hand delivered & if sent by registered post than on expiry of seven days from the date of posting.
- c. FCI shall issue a notice or communication to the SI seeking justification for any delay in the delivery of services as soon as an impediment in delivery of services occurs or within 30 days from such occurrence.

7.9 Force Majeure

A Force Majeure means any event or circumstance or a combination of events which are beyond the control of the selected bidder, that is not foreseeable, is unavoidable, and its origin is not due to negligence or lack of care on the part of the selected bidder. Such events may include, but not be limited to, acts of the FCI in its sovereign capacity, wars or revolutions, fires, floods, due to rain at identified locations, epidemics, natural calamities, quarantine restrictions, and freight embargoes.

7.9.1 Procedure for Force Majeure

If a bidder claims relief on account of a force majeure, then the bidder claiming to be affected by such event shall, as soon as reasonably practicable and in any event within seven (7) days of occurrence of such force majeure, give notice of and describe in reasonable detail the effect of such force majeure to FCI in writing, including the dates of commencement and estimated cessation of such force majeure and its effects on the bidder's obligations. Upon cessation of the situation which led to a bidder claiming force majeure under this section the bidder shall within two days thereof notify the Corporation in writing of the cessation and the bidder shall as soon as practicable thereafter continue performance of all obligations under this agreement but without prejudice to the excuse of performance of all obligations during the continuance of the force majeure.

7.9.2 Prolonged Force Majeure

- a. In the event Force Majeure continuously impedes or prevents a Bidder's performance for longer than seven consecutive days from the date of commencement of such Force Majeure, notwithstanding the suspension of the obligations of the Bidder, they shall decide by mutual consent through consultation either the terms upon which to continue the performance of this Agreement or to terminate this Agreement.

- b. Any period within which a Party shall complete, pursuant to this Contract, any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action because of Force Majeure.
- c. The Bidder is entitled to the payments for the portion of the work already completed before the happening of any event constituting force Majeure culminating in termination of contract. Decision of FCI in this regard shall be final.

7.10 Failure to Agree with the Terms and Conditions of the RFP

Failure of the successful bidder to enter into Contract/Agreement as per the Terms & Conditions of the RFP shall constitute sufficient grounds for the annulment of the award, in which event FCI may award the contract to the next best value bidder or call for new bids from the interested bidders. In such a case, PBG (including e-BG) of the successful bidder shall be encashed and fresh tenders shall be invited at the risk and cost of the bidder.

7.11 Defect Liability

The SI warrants that the system, including all Information Technologies, Materials, and other Goods supplied and Services provided, shall be free from defects in the design, engineering, materials, and workmanship that prevent the System and/or any of its components from fulfilling the Functional and System Requirements or that limit in a material fashion the performance, reliability, or extensibility of the System and/or Subsystems. Exceptions and/or limitations, if any, to this warranty with respect to Software (or categories of Software), shall be as specified by the SI in agreement with FCI. Commercial warranty provisions of products supplied.

7.12 Functional Guarantees

If, for reasons attributable to the selected bidder, the system does not conform to the aspects of the contract, the selected bidder shall at its cost and expense make such changes, modifications, and/or additions to the system as may be necessary to conform to the functional requirements and meet all functional and performance standards. The selected bidder shall notify FCI upon completion of the necessary changes, modifications, and/or additions and shall request FCI to repeat the User Acceptance Tests until the system achieves acceptance.

7.13 Limitation of Liability

In any event, neither party shall be liable for any special, incidental, punitive, exemplary, or consequential damages arising out of or in connection with the Contract entered between the parties. The aggregate liability of either party, whether under the contract, in tort or otherwise, shall not exceed the total contract value, provided that this limitation shall not apply to:

- a. Any obligation or claim arising out of or in connection with any third-party claim of IPR infringement.
- b. In the event of any gross negligence or wilful misconduct on part of either party, as finally judicially determined by a court of competent jurisdiction.

7.14 Risk Purchase

In the event the successful bidder fails to execute the project as per the terms of the contract agreement or in accordance with directions issued by FCI from time to time, FCI reserves the right to procure similar services from alternate sources at the risk, cost, and responsibility of the successful bidder. Prior to initiating such action, FCI shall issue a written notice of thirty (30) days to the successful bidder.

The liability of the successful bidder in such cases shall be limited to the difference in cost between the existing contract value and the new contract value, including all associated costs incurred by FCI. FCI may recover the aforesaid amounts by invoking the Performance Bank Guarantee (including e-BG) or by withholding any payments due to the successful bidder under this or any other contract. Any remaining recoverable amount, if applicable, shall be claimed directly from the successful bidder.

7.15 Confidentiality & Non-Disclosure Agreement

Any information pertaining to FCI, or any other Governmental Agency involved in the contract that comes to the knowledge of the bidder in connection with this contract, unless already available in public domain, shall be deemed to be confidential and the bidder shall be fully responsible for the same being kept confidential and held in trust, as also for all consequences of its concerned personnel. The Bidder shall ensure that no information or data related to FCI systems, including that stored on servers or accessible through this engagement, is disclosed, shared, or circulated to any unauthorized individual or entity. Disclosure shall only be permitted with the explicit prior written consent of the competent authority of FCI, or when mandated by a direction issued by a court of competent jurisdiction. For any breach of confidentiality the bidder organization shall be responsible under all civil and criminal law in addition to the personal liability of the person indulging in such misconduct.

7.16 Agreement

- a. The successful bidder shall have to enter into an agreement with FCI, for the performance of the contract on INR 1000 Non-Judicial Stamped Paper, within 15 days of the communication of the final order on bids, the cost of which must be borne by the bidder. FCI shall provide proforma for the agreement. No variation shall be permitted in this agreement.
- b. Until the signing of agreement, the selected bidder shall bear its own cost for all the activities relating to this tender.
- c. On submission of security deposit and signing of the agreement, the timeline for completion of tasks under the RFP shall commence forthwith.

7.17 Exit Management

7.17.1 Transfer of Assets

The selected bidder shall be allowed to continue work on the assets for the duration of the exit management period, which may be a three-month period from the date of expiry, or termination of the agreement, if required by FCI to do so. During this period, the selected bidder shall transfer all the assets in good working condition and as per the specifications of

the bidding document including the ones being upgraded by the department/designated agency.

The PBG (including e-BG) submitted by selected bidder shall only be returned after the successful completion/expiry of contract and transfer of the entire project assets including its infrastructure. The selected bidder, if not already done, shall transfer all the Software Licenses, Source Code, Containers, Templates and Clones or anything similar under the name of FCI during the Exit Management Period. The selected bidder shall also transfer all the relevant Software Passwords, Usernames and Keys, or anything similar. FCI, during the operation and maintenance phase shall be entitled to serve notice in writing to the selected bidder at any time during the exit management period requiring the selected bidder to provide with a complete and up-to-date list of the assets within 15 days of such notice. Upon service of a notice, as mentioned above, the following provisions shall apply:

- a. In the event, if the assets which are to be transferred to FCI are mortgaged to any financial institutions by the selected bidder, the selected bidder shall ensure that all such liens and liabilities have been cleared beyond any doubt, prior to such transfer. All documents regarding the discharge of such lien and liabilities shall be furnished to FCI or its nominated agencies.
- b. All title of the assets to be transferred to FCI or its nominated agencies pursuant to clause(s) above shall be transferred on or before the last day of the Exit Management Period. All expenses incurred during transfer of assets shall be borne by the selected bidder.
- c. That on the expiry of this clause, the selected bidder and any individual assigned for the performance of the services under this clause shall handover or cause to be handed over all confidential information and all other related material in its possession, including the entire established infrastructure supplied by the selected bidder to FCI.
- d. That the products, services, and technologies delivered to FCI during the contract term or on expiry of the contract duration shall not be sold or re-used or copied or transferred by the selected bidder to other locations apart from the locations mentioned in this bidding document without prior written notice and approval of FCI. Any software, or similar used by the selected SI for FCI shall be under the ownership of FCI.

7.17.2 Confidential Information, Security and Data

The selected bidder shall promptly on the commencement of the Exit Management Period, if not already provided, supply to FCI or its nominated agencies the following:

- a. Documentation relating to Intellectual Property Rights (IPR).
- b. Project related data and confidential information.
- c. All current and updated data as is reasonably required for purposes of FCI or its nominated agencies transitioning the services to its replacement selected bidder in a readily available format nominated by FCI or its nominated agencies.

- d. All other information (including documents, records, Agreements or similar) relating to the services reasonably necessary to enable FCI or its nominated agencies, or any successive agency appointed by FCI for management of the FCI FAP to carry out due diligence to transition the provision of the services to FCI or its nominated agencies, or any successive agency (as the case may be).
- e. Before the expiry of the Exit Management Period, the selected bidder shall deliver to FCI or its nominated agencies all new or updated materials from the categories set out above and shall not retain any copies thereof, except that the selected bidder shall be permitted to retain one copy of such materials for archival purposes only.

7.17.3 Transfer of Certain Agreements

- a. On request by FCI, the SI shall execute all necessary assignments, transfers, innovations, licenses, or sub-licenses in favour of FCI, its nominated agencies, or any replacement operator. This shall include agreements related to equipment lease, maintenance, or service provision that the SI has entered into with third-party vendors and are essential for the continued delivery of services. Such transfers must ensure uninterrupted continuation of services by FCI or its nominated agency/replacement operator.
- b. **Right of Access to Premises:** At any time during the Exit Management Period, and for a reasonable duration following the expiry or termination of the SLA, the selected bidder shall provide FCI, or any replacement operator with appropriate access to all relevant assets. If such assets are located at the selected bidder's premises, direct access shall be granted. If the assets are situated at a third-party location, the selected bidder shall be responsible for arranging or facilitating the required access. This access is solely for the purpose of inventorying the assets and ensuring a smooth transition of services.

7.17.4 General Obligations of Selected Bidder

- a. The selected bidder shall provide all such information as may reasonably be necessary to effect as seamless during handover as practicable in the circumstances to FCI or its nominated agencies or its replacement operator and which the operator has in its possession or control at any time during the exit management period.
- b. The selected bidder shall commit adequate resources to comply with its obligations under this Exit Management Clause.

7.17.5 Exit Management Plan

The selected bidder shall provide FCI or its **designated agencies** with a comprehensive Exit Management Plan ("Exit Management Plan"), covering all relevant aspects of exit activities in relation to the entire Service Level Agreement (SLA), including the Maintenance & Support phase and the complete scope of work. This plan must be submitted within six (6) months from the commencement of the project or within fifteen (15) days from the date of issuance of the notice of termination, whichever is earlier. The Exit Management Plan shall include, but not be limited to, the following components:

- a. A detailed plan outlining the program for transfer of services, which may be executed in coordination with a replacement service provider. This plan shall include the

methodologies and mechanisms to be adopted to ensure uninterrupted delivery of services during the transition period or until final cessation. It shall also define the interim management structure and responsibilities to be followed throughout the transfer process detailed program of the transfer process.

- b. Plans communication strategies with the selected bidder's staff, suppliers, FCI stakeholders, and any relevant third parties to ensure a smooth transition. The plan should detail how the bidder will manage internal and external communications to avoid any material disruption or adverse impact on FCI's ongoing operations during the transition and handover period.
- c. Plan outlining the proposed arrangements and measures for providing contingent support to FCI or its designated agencies and any Replacement Operator during the transition period. This includes business continuity planning and handholding support for a reasonable duration to ensure that there is no disruption in the delivery of services and that operations continue seamlessly.
- d. The bidder shall re-draft the Exit Management Plan by end of each quarter post commencement of contract period to ensure that it is kept relevant and up to date.
- e. Each Exit Management Plan shall be presented by the selected bidder for review and approved by FCI or its operating partner.
- f. In the event of termination or expiry of SLA, Project Maintenance & Support SLA or SOWs each party shall comply with the Exit Management Plan.
- g. During the Exit Management Period, the selected bidder shall use its best efforts to deliver the services.
- h. Payments due, if any, during/for the Exit Management period shall be made in accordance with the Payment Terms Clause and upon successful completion of exit management process.
- i. It shall be the responsibility of the selected bidder to support new operator/agency during the transition period.

8 Service Levels Agreement (SLA) & Penalties

Service Level Agreements (hereinafter referred to as SLA) shall play an important role in defining the Quality of Services (QoS) that shall govern the level of service provided by the selected SI. SLA defines the terms of the SI's responsibility in ensuring the timely Delivery and the compliance to the Performance Indicators as detailed in this document.

The SI must comply with Service Levels requirements to ensure adherence to timelines, quality, and availability of products / services.

In case SLA defined below are not achieved, FCI may decide at its discretion to impose/waive off/partially waive off the penalty if it is established that the delay is not attributable to the SI:

Incident Severity Description:

Severity	Definition
Critical	Critical severity incidents are the ones which have a critical business impact. These incidents shall have any of the following characteristics: 1. Entire application or any module of the application i.e. Apps, Payroll, CPF Self Service Portal, Bill Tracking System or any other customized application developed during the contract period is down, crash, not available etc. 2. Anything that requires a change to be made immediately based on Business Urgency. 3. Incorrect behaviour (wrong calculations, workflows not functioning as desired for critical reports, or similar.) 4. Data theft/loss/corruption 5. Any incident escalated by FCI or any authorized personnel as Critical Priority. 6. The incident/problem that affects the entire Applications. 7. Has serious implications of running on the production server.
High	High severity incidents are the ones which have a significant business impact. These are concerns needing attention as quickly as possible but shall not cause business processes to fail. 1. Difficult work-around to mitigate the disruption in service. 2. Repeat calls (same incident that has occurred earlier and reported more than two times). 3. Any incident escalated by FCI or any authorized personnel as High Priority 4. Issues related to Period Closure activities, Payroll Month End Issues. 5. Significant Degradation in the performance of application which has serious impact on business transactions. 6. Has impacted majority of the business process but still be able to continue the operations with the system limitations.
Medium	Medium severity incidents are the ones which have a minor business impact. These incidents shall have any of the following characteristics: 1. Part of the Module not working as desired. 2. Internal user escalations for slow response of the system impacting the efficiency of users. 3. The problem adversely affects product functioning, but a workaround is available. 4. Any Data requests raised by FCI. 5. Issues related to data level fix. 6. Issues related to Bugs/defects found in FAP.

Severity	Definition
Low	Low severity incidents are the ones which have a minimal business impact. These incidents shall have any of the following characteristics: 1. No impact on processing of normal business activities. 2. A low impact on the efficiency of users 3. Has a simple workaround 4. Enhancement requests like cosmetic user interface changes, usability improvement, unclear error messages or similar. 5. Educational Issues or a query which does not require any data fix or Code fix.

8.1 SLA for Maintenance & Support

#	SLA	Definition	Target	Applicable Penalty		Measurement Tool/Method
1	System Availability (Availability of all services/modules measured in terms of Uptime)	Uptime = [Total time – downtime] with the targeted performance by 99.5%.	99.50 % per Quarter	>=99.5 %	NIL	SLM/Helpdesk Tools for Calculating Resolution Time shall be provided by the SI to FCI. <i>*SLM/Helpdesk Tool shall be as per the latest industry standard and must be implemented and currently in use in any Govt office/PSUs.</i>
		Total Time shall be measured on 24x7x365 basis for the Application.		>=97% and <99.5%	2% of Quarterly invoice of Maintenance & Support	
		Application Downtime shall be measured from the time the solution becomes unavailable (due to any reasons whatsoever attributable to the SI) except planned downtime.		>=96% and <97%	3% of the Quarterly invoice of Maintenance & Support	
		Any downtime for maintenance shall be approved with prior written intimation to FCI.		<96%	5% of the Quarterly invoice of Maintenance & Support	

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#	SLA	Definition	Target	Applicable Penalty		Measurement Tool/Method
2	Performance – Portal's Homepage before or after login for all Modules	Time for opening of Home Page of Portal (The cases due to identified/discovered external network issues shall be excluded from response time calculation). The response shall be measured from 5 systems at FCI at any given point in time for both DC & DR.	2 sec	>2 sec and ≤4 sec	0.5% of Quarterly invoice of Maintenance & Support	
				>4 sec	1.0% of Quarterly invoice of Maintenance & Support	
3	Recovery Time from Disaster requiring switching to DR site	1. Time taken to recover from Disaster scenario requiring switchover to DR site and successful operations from the DR site and restoring services to normalcy at DR with no data loss. (This SLA is applicable for both production environment and during Quarterly DR Drills) 2. The switch over from DC site to DR site excluding third-party dependencies except Cloud Service Provider, shall be without any interruption in services. RPO = 5 min. RT0 = 2 hr.	2 Hour	≤2 hr.	NIL	
				>2 hr. and ≤3 hrs	0.4% of the Quarterly invoice of Maintenance & Support	
				>3 hrs.	0.6% of the Quarterly invoice of Maintenance & Support	
4	Delay in Change Request delivery during the	Measured as the difference between the planned and the	-	Delay of 1 week beyond	0.20% of approved	

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#	SLA	Definition	Target	Applicable Penalty		Measurement Tool/Method
	Operations & Maintenance phase	actual date of delivery.		the targeted timeline	Change request Cost	
		Except where the revised time schedule proposed by the SI has been accepted by FCI in advance based on reasonable justification. The SI shall seek approval for any such change in timelines with necessary justifications at least 15 days prior to the due date of concerned milestone.		Delay of 1 week beyond	0.40% of approved Change request Cost	

Note:

- a. Maintenance & Support SLAs outlined in Clause 8.1 (except Clause 8.1 Point#1 System Availability) may be considered for waiver by FCI, on written request from SI, for the first two (2) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter

8.2 SLA for Helpdesk Services

#	Type of Incident	Definition	Target	Applicable Penalty		Measurement Tool/Method
1	Critical	Critical severity incidents shall be resolved within 4 hrs of problem reporting. Measured as the time taken from the time the issue/ incident is reported in the tool.	99%	>99%	No Penalty	SLM/Helpdesk Tools for Calculating Resolution Time shall be provided by the SI to FCI. <i>*SLM/Helpdesk Tool shall be as per the latest industry standard and must be implemented and currently in use in any Govt office/PSUs.</i>
				<=99% and >98% of incidents resolved in time	0.5% of Quarterly invoice of Maintenance & Support Payment	
				<=98% and >97% of incidents resolved in time	1% of Quarterly invoice of Maintenance & Support Payment	
				For each additional drop of 1% (rounded to the next integer) in incidents not meeting the target SLA of below 97%, additional 1% (rounded to the next integer) of Quarterly Invoice of Maintenance & Support shall be deducted.		
2	High	High severity incidents shall be resolved within 8 hours of problem reporting. Measured as the time taken from the time the issue/ incident is reported in the tool.	98%	>98%	No Penalty	
				<=98% and >95% of incidents resolved in time	1% of Quarterly invoice of Maintenance & Support Payment	
				<=95% and >92% of incidents resolved in time	2% of Quarterly invoice of Maintenance & Support Payment	
				For each additional drop of 1% (rounded to the next integer) in incidents not meeting the target SLA of below 96%, additional 1% (rounded to the next integer) of Quarterly Invoice of Maintenance & Support shall be deducted.		

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#	Type of Incident	Definition	Target	Applicable Penalty		Measurement Tool/Method
3	Medium	Medium severity incidents shall be resolved within 2 working days of problem reporting. Measured as the time taken from the time the issue/ incident is reported in the tool.	97%	>97%	No Penalty	
				<=97% and >96% of incidents resolved in time	0.5% of Quarterly invoice of Maintenance & Support Payment	
				<=96% and >95% of incidents resolved in time	1% of Q Quarterly invoice of Maintenance & Support Payment	
				For each additional drop of 2% (rounded to the next integer) in incidents not meeting the target SLA of below 95%, additional 1% (rounded to the next integer) of Quarterly Payment of Maintenance & Support shall be deducted.		
4	Low	Low severity incidents shall be resolved within 4 working days of problem reporting. Measured as the time taken from the time the issue/incident is reported in the tool.	95%	>95%	No Penalty	
				<=95% and >94% of incidents resolved in time	0.5% of Quarterly invoice of Maintenance & Support Payment	
				<=94% and >93% of incidents resolved in time	1% of Quarterly invoice of Maintenance & Support Payment	
				For each additional drop of 2% (rounded to the next integer) in incidents not meeting the target SLA of below 93%, additional 1% (rounded to the next integer) of Quarterly invoice of Maintenance & Support shall be deducted.		

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#	Type of Incident	Definition	Target	Applicable Penalty	Measurement Tool/Method
5	Submission of Root Cause Analysis (RCA) reports	RCA to be submitted for all critical, high and medium severity incidents within 5 working days of resolution		For delay of every 1 week in submitting RCA report, 0.5% of Quarterly invoice of Maintenance & Support shall be deducted.	

Note:

- a. Maintenance & Support SLAs outlined in Clause 8.2 may be considered for waiver by FCI, on written request from SI, for the first two (2) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter. This relaxation shall not apply in the case of Critical Issues and High Severity Issues.
- b. The Service Provider shall be responsible, on an ongoing basis, for coordination with other vendors and agencies of the Corporation to resolve issues and oversee resolution of the same. The Service Provider shall also be responsible for resolving conflicts between vendors in case of borderline issues.
- c. For Critical and High issues, resolution timelines shall include Saturdays/holidays and extend beyond regular FCI working hours (9:30 AM–6:00 PM).
- d. The helpdesk and technical team must ensure round-the-clock response capability, including beyond-office hours incident reporting and resolution initiation.
- e. The Service Provider shall provide Onsite support on Sunday's and other holidays also on need basis without any extra charge.

8.3 SLA for Patch Updates / Upgrades

#	SLA	Definition	Target	Applicable Penalty	
CA1	Timely Application of Patch Updates and Upgrades	The SI shall ensure that all the components in the system are within supported versions. The SI shall ensure all applicable stable patch updates (including Critical Patch Updates, Security Patches) and major version upgrades are implemented as per CSP guideline	100% compliance with patch/update timelines	>= 100% compliance	NIL

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#	SLA	Definition	Target	Applicable Penalty	
		Patch Categories: - Critical/Security Patches: Within 30 calendar days of release. - Major Version Upgrades: Within 90 calendar days, post UAT approval. No patch/update shall be skipped unless explicitly exempted by FCI in writing. All patches must be tested in staging before production rollout.		> 0 and <= 7 calendar days (per patch)	2% of the quarterly invoice of Maintenance & Support
				> 7 and <= 15 calendar days (per patch)	3% of the quarterly invoice of Maintenance & Support
				> 15 calendar days (per patch)	5% of the quarterly invoice of Maintenance & Support

Note:

a. SLA for Patch Updates / Upgrades outlined in Clause 8.3 may be considered for waiver by FCI, on written request from SI, for the first two (2) quarter from the date of transition/knowledge transfer, to enable the new vendor to assess and fully understand the system. SLA penalties shall become applicable thereafter.

8.4 SLA for Compliance & Reporting Procedures

These reports shall be submitted to FCI within 1 week of every quarter completion.

#	Parameter	Target	Penalty
1	Submission of MIS Reports for SLA calculation (previous month/quarter)	5 th of current month	No Penalty
		Delay beyond date of submission	1% of the quarterly invoice of Maintenance & Support for non-compliance for delay of every two days
2	Maintenance of Inventory/ Asset Management	100% as per the inventory log committed and maintained by the SI	No Penalty
		Non-compliance to committed inventory log	1% of the quarterly invoice of Maintenance & Support for non-compliance
3	Documentation, Management and Maintaining the document	100% as per the inventory log	No Penalty

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	versioning (FRS, SRS, User, Training Manual or any other similar document), application version control or updates & patches	committed and maintained by the SI	
		Non-compliance to committed inventory log	1% of the quarterly invoice of Maintenance & Support for non-compliance
4	Completion of all scheduled and requested security audits (application, database, infrastructure) within the timelines agreed with FCI	100% Compliance	No Penalty
		Non-Compliance as per Timelines Note: In the event that FCI, at its discretion, conducts an independent security audit (application, infra, or data) due to SI's non-compliance, delay, or insufficient audit practices, the full cost of such audit shall be recovered from the SI. The audit cost shall be deducted from the subsequent quarterly payment due to the SI under the Operations & Maintenance contract	a. Delay of up to 7 calendar days: 0.5% of the quarterly invoice of Maintenance & Support payment b. Delay of 8 to 14 calendar days: 1.0% of the quarterly invoice of Maintenance & Support payment c. Delay beyond 14 days: 2.0% of the quarterly invoice of Maintenance & Support payment, with additional penalties as deemed appropriate by FCI for non-compliance

8.5 SLA for Manpower

#	Parameter	Penalties
1	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days: No penalty. From 16 days onwards: Penalty of INR 10,000 per day per resource shall be levied until the required deployment is completed.
2	If the employee is found responsible for any theft, loss of material/ articles and damages	Immediate payment in actuals, equivalent to the value of the article theft/lost/damaged. Replacement of resource within 2 days along with monetary penalty as decided by the FCI depending on the gravity of the act.

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#	Parameter	Penalties
3	If the employee is found responsible for disobedience/ misconduct	Warning/counselling/immediate replacement of resource within 7 days as decided by FCI depending on the gravity of the act.
4	If the employee is absent for more than 7 days without informing or taking prior approval	A substitute with equivalent qualifications and experience must be provided within seven (7) days. Failure to do so shall attract a monetary penalty, as decided by FCI, for the absent resource for a period of up to thirty (30) days.
5	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace	Immediate replacement within 7 days along with monetary penalty as decided by the FCI depending on the gravity of the act.
6	Up to 2 replacement per Quarter and 6 replacements in a year – No Penalty	More than 2 changes per quarter - INR 50,000 per replacement And More than 6 replacements in a year - INR 70,000 per replacement
7	Monthly Resource Availability by the Service Provider - 100% of minimum resources i.e. (20 persons allocated for the project) calculated on monthly basis, based on the assumption of 22 working days in a month. The total person days for the month shall be 20x22x1(440 days)	If number of person days worked during any of the months is less than the minimum required person days, then the amount equivalent to such short person days shall be deducted. Rate of per person days shall be worked out based on the amount quoted by Service Provider as per Change Request Man Month Rate (section 12.3.2)

Note

- a. In case of non-deployment of manpower as per Section 8.5 (Point 1), FCI reserves the right to treat such continued non-deployment as a breach of contract and may invoke the provisions of Section 7.3 (Termination) and Section 7.14 (Risk Purchase). Alternatively, additional penalties may be imposed under Section 8.5 (Point 1), subject to a cap of one percent (1%) of the total Contract Value.
- b. The SI shall maintain daily attendance records for all deployed resources, whether onsite at FCI offices or offsite (remote locations). For onsite resources, attendance must be verified and signed by the designated FCI officer. For offsite resources, attendance shall be logged through the official project management or attendance tracking system, with verification by the Project Manager and countersigned by the FCI's designated official.
- c. The SLA provision related to replacements of resources (for initial deployment) shall apply only where the bid opening and contract award are completed within 30 days and the proposed team is deployed within this period. In cases where the award and deployment occur after 30 days, the proposed CVs shall not be considered binding for final deployment, and no replacement-related penalties shall be applicable. The CV's of the team members to be deployed shall be submitted within 7 days from the date of issue of the Letter of Acceptance

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- d. No penalty shall be levied if a team member /Project Manager is changed/replaced on written directions of FCI on account of his/her unsatisfactory performance.
- e. No penalty shall be levied if a team member/ Project Manager is changed/replaced due to unavoidable circumstances such as Death, Permanent Disability, prolonged disease/injury or pregnancy

8.6 Other SLAs

#	Type of Incident	Definition	Target	Applicable Penalty	
1	Implementation of recommendations of any Audits	Any recommendation made by any form of audit conducted on the Solution. The Audit may be conducted by the SI.	100% of all recommendations agreed upon with FCI, to be implemented by the SI within 5 working days of notice from FCI	Delay in implementation beyond 5 days and <=8 days	1% of Quarterly invoice of Maintenance & Support
				Delay in implementation beyond 8 days and <=12 days	2% of Quarterly invoice of Maintenance & Support
				For delay of each additional day, 1% of Quarterly invoice of Maintenance & Support shall be levied.	
2	Any Security Incident resulting in Data Breach or no data breach	Including but not limited to Malware Attack, Denial of Service Attack, Ransomware attack, Intrusion or Defacement or any other similar breach	No Breach in data	Penalty of INR 10,000 on each incident reported.	

8.7 SLA Reporting Procedures

The SI shall prepare and distribute Service level performance reports in a mutually agreed format by the **fifth (5th) working day** of subsequent month. The reports shall include “actual versus target” Service Level Performance, a variance analysis and discussion of appropriate issues or significant events. Performance reports shall be distributed to FCI management personnel as directed by FCI.

8.8 Note

The time lost due to any of the following causes shall not be included in calculating “System Availability” or “Resolution Time”:

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- a. Time taken for scheduled maintenance/ troubleshooting (including back-up and restore times) either for preventive purposes or improvement in function or other purposes, provided such activities have been intimated / planned in consultation with FCI.
- b. Time taken for reconfiguration or other planned downtime for any patch deployment situations provided such activities have been intimated in advance in consultation with FCI.
- c. Scheduled shutdowns as required by FCI.
- d. SLA parameters may be revised by FCI in future in consultation with SI.

SECTION IV – APPENDICES

9 Appendix – I: Change Requests

9.1 Proforma for Change Request Note (CRN)

CRN Number:	
Part A: Initiation	
Title:	
Originator:	
Date of Initiation:	
Details of Proposed Change:	
Authorized by FCI	Date:
Name	Signature
Received by the SI:	Date:
Name:	Signature:
Part B: Evaluation of change	
Brief Description of Solution:	
Impact:	
Deliverables:	
Timeline:	
Effort Estimation:	
Other relevant Information (Including value-added and acceptance criteria)	
Authorized by the SI	Date:
Name:	
Signature:	
CRN Number:	
Part C: Authority to Proceed	

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Implementation of this CRN as submitted in Part A, in accordance with Part B is: (tick as appropriate)	
Approved	
Rejected Requires Further Information	
For FCI	For the SI
Signature	Signature
Name:	Name:
Title:	Title:
Date:	Date:

9.2 Change Request (CR) Man month Rate

Bidder shall provide a man month effort rate, which will be applicable in case of any change requests as per the T&C of this RFP. This will not be applicable for the evaluation purpose; however, the rate should not exceed the rate used for calculating the total cost.

Note:

- a. Selected bidder shall provide BOM (Bills of Material) for the price quoted for the bid.
- b. Any change request will be subject to the man-month rate of the year in which it occurs.
- c. FCI reserves the rights to negotiate the quoted rates given by the bidder.
- d. Please refer **Section 12.3.2** for the Price Bid template for Change Request Man Month Rate.

10 Appendix – II: Technical Bid Form

The bidders are expected to respond to the RFP using the forms given in this section and all documents supporting Eligibility Criteria.

Technical Bid shall comprise of following forms:

Forms to be used in Technical Bid

- a. Form 1: Letter of Bid
- b. Form 2: Power of Attorney for Authorized Signatory of the Bidder
- c. Form 3: Bidder Particulars
- d. Form 4: Compliance Sheet for Eligibility Criteria
- e. Form 5: Checklist of Documents
- f. Form 7: Certificate for Turnover and Net Worth of the Bidder
- g. Form 6: Performance Bank Guarantee (including e-BG)
- h. Form 8: Certificate for Experience
- i. Form 9: Project Citation and Declaration for Projects under NDA (Forms 9A and 9B)
- j. Form 10: Certificate for Manpower Resources
- k. Form 11: Proposed Bill of Material
- l. Form 12: Team Composition
- m. Form 13: Curriculum Vitae (CV) of members of the Team
- n. Form 14: Self-Declaration for Non-Blacklisting
- o. Form 15: Undertaking for Total Responsibility
- p. Form 16: Earnest Money Deposit (EMD) as Bank Guarantee (BG)
- q. Form 17: Declaration
- r. Form 18: Draft Contract Agreement
- s. Form 19: Undertaking for Cloud Service Provider (CSP)
- t. Form 20: Acceptance of Terms & Conditions of Tender
- u. Form 21: Bid Security Declaration Form
- v. Form 22: Format for Consortium Agreement

10.1 Form 1: Letter of Bid

(To be provided on the Bidder's Letterhead)

Date:

To,
The Chief General Manager (IT)
Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Submission of the Technical Bid for MAINTENANCE & SUPPORT OF “FINANCIAL ACCOUNTING PACKAGE” of FCI

Dear Sir/Madam,

We, hereby, offer to provide maintenance services to FCI for Financial Accounting package (FAP) application with your Request for Proposal dated _____ and our bid. We are hereby submitting our bid, which includes the Technical Bid, and the Commercial Bid submitted in separate folders.

We hereby declare that all the information and statements made in the Technical Bid are true and accept that any misinterpretation contained in it may lead to our disqualification.

We hereby declare that we are not ineligible under any of the following clauses:

- a. Bidder as on date of submission of this bid who has been blacklisted or otherwise debarred by **FCI/DFPD/DoE** in the last three year shall be ineligible during the period of such blacklisting/debarment.
- b. If the proprietor/any of the partners of the firm/executive member of cooperative/any of the Directors of the bidder have been, at any time, convicted by a court of an offence and sentenced to imprisonment for a period of three years or more, such bidder shall be ineligible.
- c. While considering ineligibility arising out of any of the above clauses, incurring of any such disqualification in any capacity whatsoever (even as a proprietor, partner in another firm, executive member of cooperative or as director of a company or similar) shall render the bidder disqualified.
- d. Bidder is not blacklisted by GST authorities or under any other Statutory Law.

We agree to abide by the entire scope, instructions, timelines, deliverables, payment terms and contract terms and conditions and agree for unconditional acceptance of all the contents of the RFP document and its subsequent corrigenda if any. We shall hold the terms of our bid valid for 90 days from the date of opening of Technical Bid. We understand that FCI reserves the right to extend this period by another 30 days at its discretion, which shall be binding on the bidders. Thereafter, this period may be further extended by the parties on mutual consent. Not keeping the offers open for the prescribed period shall lead to summary rejection of our bid.

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In the event of our bid being accepted, we agree to furnish the PBG (including e-BG) as stipulated in the bid, within 15 (Fifteen) days from the signing of the contract.

We understand that in all matters regarding doubts raised by bidders on the clauses of the RFP, interpretation of clauses, scope, terms, and conditions or similar, as stated in this RFP and/or its subsequent corrigenda/addenda, if any, the decision of FCI shall be final and binding on us.

We understand that during maintenance & support and detailed due diligence it may be required to vary the services of certain components under the scope of the bidder. We understand that there may be variations in services specified in the bids and such changes may be in the range of +10% of the specified bill of the services or lesser.

We understand you are not bound to accept any bid you receive.

Yours Sincerely,

Authorized Signature [In full and initials]

Name and Title of Signatory:

Name of Firm:

Full Address:

10.2 Form 2: Power of Attorney for Authorized Signatory of the Bidder

Tender No. _____

Date: _____

(To be executed on non-judicial stamp paper of the appropriate value in accordance with relevant stamp Act. The stamp paper to be in the name of the entity who is issuing the power of Attorney)

Know all men by these presents, We, (**name of the firm and address of the registered office**) do hereby irrevocably constitute, nominate, appoint and authorise Mr./Ms. (**Name**), son/daughter/wife of (**Name**) and presently residing at (**Address**) who is presently employed with us and holding the position of (**Position**), as our true and lawful attorney (hereinafter referred to as the "Attorney") to do in our name and on our behalf, all such acts, deeds and things as are necessary or required in connection with or incidental to submission of our bid for the project, "Selection of System Integrator for Maintenance & Support of **FINANCIAL ACCOUNTING PACKAGE** proposed for Food Corporation of India (the "Authority") including signing and submission of all applications, bids, power of attorney and other similar documents and writings, participate in bidders' and other conferences and providing information/responses to the Authority, representing us in all matters before the Authority, signing and execution of all contracts including the Contract Agreement and undertakings consequent to acceptance of our bid, and generally dealing with the Authority in all matters in connection with or relating to or arising out of our bid for the said project and/or upon award thereof to us and/or till the entering into of the Contract Agreement with the Authority.

AND we hereby agree to ratify and confirm all acts, deeds and things lawfully done or caused to be done by our said Attorney pursuant to and in exercise of the powers conferred by this Power of Attorney and that all acts, deeds, and things done by our said Attorney in exercise of the powers hereby conferred shall and shall always be deemed to have been done by us.

IN WITNESS WHEREOF WE, _____, THE ABOVE-NAMED PRINCIPAL HAVE EXECUTED THIS POWER OF ATTORNEY ON THIS _____ DAY OF _____ 20____

For _____

(Signature, Name, Designation and Address)

Witnesses:

1.

2.

Accepted

Notarized

(Signature, Name, Designation and Address of the Attorney)

Note: Copy of Board Resolution to be attached stating the powers of the executants to authorize the concerned person to whom this power of attorney is being issued.

10.3 Form 3: Bidder Particulars

#	Particulars	Details
1	Bidder Name	
2	Office Address	
	Telephone Number	
	Mobile Number	
	Email ID	
3	Nature of the Firm i.e., whether Registered Partnership Firm/LLP, or a Private Limited Company, or a Public Limited Company incorporated in India.	
4	Names of Directors/members of Managing Committee of the bidder on the date of submission of Bid. <i>(Separate sheet may be attached)</i>	
5	Name of the contact person(s) authorized to sign tender documents	
	Telephone Number	
	Mobile Number	
	Email ID	
	Photo ID Card Type	
	Photo ID Card Number	
6	PAN of bidder <i>(enclose a scanned copy of PAN Card of the firm)</i>	
7	GST Registration Number <i>(enclose a scanned copy of proof of GST registration number of the firm)</i>	
8	EPFO Registration Number <i>(enclose a scanned copy of proof of EPFO Registration Number of the firm), if applicable.</i>	

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#	Particulars	Details		
9	Ethe SAC Registration Number <i>(enclose a scanned copy of proof of Ethe SAC Registration Number of the firm), if applicable</i>			
10	Bank Account details of the bidders	Account Name		
		Bank Name & Branch		
		Account Number		
		IFSC		
11	Turnover and profit during the immediately preceding 3 years. (Enclose scanned copies of Audited Profit & Loss account & Balance Sheets) or similar	Year	Turn-over (INR Crores)	Profit (INR Crores)
		FY2024-2025		
		FY2023-2024		
		FY2022-2023		
12	Number of employees on payroll of organization			

10.4 Form 4: Compliance Sheet for Eligibility Criteria

The documents mentioned in this compliance sheet along with this form shall be used for verifying the eligibility of the bidders and shall form a part of the Technical Bid.

#	Eligibility Criteria	Documents Required	Compliance	Reference & Page Number
1	The bidder i.e., Sole bidder/ Consortium (lead bidder and consortium partner): The bidder shall be a company, registered under Indian Companies Act, 1956/ Companies Act, 2013. OR A partnership firm registered under Indian Partnership Act, 1932. OR A partnership firm registered under Indian LLP act 2008.	Copy of valid Registration Certificates	Yes / No	
		Copy of Registered Partnership deed	Yes / No	
		Copy of Certificates of incorporation	Yes / No	
		Memorandum of association or article of association	Yes / No	
2	The bidder must have: - PAN - GST Registration - EPFO Registration (if applicable) - ESIC Registration (if applicable) The member firms in case of consortium/sole bidder should have been operating for the last 5 years as on the date of publishing of tender notice.	PAN	Yes / No	
		GST Registration Number	Yes / No	
		EPFO Registration Number, if applicable	Yes / No	

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#	Eligibility Criteria	Documents Required	Compliance	Reference & Page Number
		ESIC Registration Number, if applicable	Yes / No	
3	The Sole bidder from services related to software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 350 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets). In case of Consortium, Lead bidder from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 262.5 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 . (as per the last published audited balance sheets). AND Consortium Partner from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 87.5 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets).	CA Certificate with CA's Registration Number and Seal and Unique Document Identification Number *Note: For the year 2024-25, provisional certificate shall be accepted Please refer Form 7 of Appendix - II	Yes / No	
4	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have a Positive net worth in each of last three (3) financial years, i.e., from 2022-23 to 2024-25.	CA Certificate with CA's Registration Number and Seal and Unique Document Identification Number Please refer Form 7 of Appendix - II	Yes / No	

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#	Eligibility Criteria	Documents Required	Compliance	Reference & Page Number
5	• The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall not be insolvent, in receivership, bankrupt or being wound up, not have its affairs administered by a court or a judicial officer, not have its business activities suspended and must not be the subject of legal proceedings for any of the foregoing reasons. • The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner), their directors, and officers shall not have been convicted of any criminal offence related to their professional conduct or the making of false statements or misrepresentations as to their qualifications to enter a procurement contract within a period of three years preceding the commencement of the procurement process or not have been otherwise disqualified pursuant to debarment proceedings. • The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall not have a conflict of interest in the procurement in question as specified in the bidding document. • The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall comply with the Memorandum No. F. No. 6/18/2019-PPD dated 23-July-2020 and further, superseded by Memorandum No. F.7/10/2021/-PPD (1) dated 23-	Self-Certification by the authorized signatory	Yes / No	

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#	Eligibility Criteria	Documents Required	Compliance	Reference & Page Number
	Feb-2023 and issued by the Public Procurement Division, Department of Expenditure, Ministry of Finance, regarding Restrictions Rule 144 (ix) of the GFR.			
6	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have experience of successfully Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (applications) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	Certificate for Experience as per Form 8 in Appendix - II	Yes / No	
		Project Citation and Declaration of Projects under NDA as per Form 9 in Appendix - II (if applicable)	Yes / No	
		Work Order or Contract Agreement containing scope and value of project. <i>Bidders need to submit a certificate signed by statutory auditor/ CA/ CS citing value of application development/ rollout services in case submitted project is a system integration/ turnkey services project.</i>	Yes / No	
		In case of: - Completed project: Completion/Experience Acknowledgement - On-going project: Phase Completion Acknowledgement /Phase Progress Acknowledgement / Milestone-wise	Yes / No	

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#	Eligibility Criteria	Documents Required	Compliance	Reference & Page Number
		Payment Progress Acknowledgement from the client/Certified by statutory auditor /CA/CS		
7	"The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) must have at least 500 technically qualified professionals on its role in the Application development, deployment, O&M, who have prior experience in Application system maintenance & management. Out of the 500 technical manpower, At least 300 resources shall be B.E/B.Tech/MCA/MBA with developer technical certifications. At least 50 Oracle/SAP/Application Software expert professionals At least 30 professionals with PMP certification. At least 20 professionals with ITIL V3 (Intermediate or above)/TOGAF/ITSM certifications."	Certification as per Form 10 of Appendix - II	Yes / No	
8	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) must have CMMi Level 5 Certification	Copy of CMMi Level 5 certificate (must be valid at the time of bid submission). Bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) is also eligible under conditions wherein they are under process of re-appraisal of existing CMMi Level 5 certificate. <i>Under such</i>	Yes / No	

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#	Eligibility Criteria	Documents Required	Compliance	Reference & Page Number
		<i>circumstances, bidder needs to provide declaration regarding ongoing re-appraisal process along with tentative completion. Successful bidder must submit the appraisal certificate upon completion of re-appraisal process.</i>		
9	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) Shall have latest ISO 9001, , ISO 20000, ISO 27001, Certifications	Copy of ISO 9001, ISO 20000, ISO 27001, certificate (must be valid at the time of bid submission). Bidder shall be eligible under conditions wherein they are under re-certification of existing ISO 9001, ISO 20000, ISO 27001 <i>Under such circumstances, bidder needs to provide declaration regarding ongoing re-certification process along with tentative completion. Successful bidder has to submit the latest ISO 9001, , ISO 20000, ISO 27001, certificate upon completion of re-certification.</i>	Yes/ No	
10	No blacklisting during last 3years by FCI/DFPD/DoE as on date of submission of this bid.	Self-Declaration for Non-Blacklisting to this effect on company's letterhead signed and stamped by authorized signatory as per format given in Form 17 of Appendix - II	Yes / No	

10.5 Form 5: Checklist of Documents

#	Basic Requirement	Documents Required	Attached	Reference & Page Number
1	Company Registration (Legal Entity)	Copy of valid Registration Certificates or Copy of Certificates of incorporation	Yes / No	
2	Letter of Bid	Letter of Bid as per Form-1	Yes / No	
3	Power of Attorney of Bidder	Power of Attorney accompanied by Copy of Board Resolution as per Form-2	Yes/ No	
4	Bidder Particulars	Bidder Particulars as per Form-3	Yes / No	
5	Compliance Sheet of Eligibility Criteria and Associated Documents	Compliance Sheet and all documents related to Eligibility Criteria as per Form-4	Yes / No	
6	Checklist of Documents	Checklist of Documents as per Form-5	Yes/ No	
7	Performance Bank Guarantee (including e-BG)	Performance Bank Guarantee (including e-BG) as per Form-6	Yes/ No	
8	Certificate for Turnover and Net Worth of the Bidder	CA Certificate as per Form-7	Yes/ No	
9	Mandatory Undertaking	Self-Certification by the authorized signatory	Yes/ No	
10	Project Experience	Certificate for Experience as per Form-8	Yes/ No	
		Project Citation Form and Declaration for Projects covered under NDA as per Form 9 (if applicable)	Yes/ No	
11	Software Development Resource	Certificate from HR Head as per Form-10	Yes/ No	
12	Proposed Solution	Bill of Material required as per Form-11	Yes / No	
14	Details of Manpower Proposed	Team Composition as per Form-12	Yes / No	
		Curriculum Vitae of Key Personnel as per Form-13	Yes / No	
15	Self-Certificate for Non-Blacklisting	Self-Certificate for Non-Blacklisting as per Form-14	Yes / No	
16	Undertaking for Total Responsibility	Undertaking for Total Responsibility as per Form-15	Yes / No	

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

#	Basic Requirement	Documents Required	Attached	Reference & Page Number
17	Earnest Money Deposit	Earnest Money Deposit (EMD) as Bank Guarantee (BG) as per Form-16	Yes / No	
18	Declaration	Declaration as per Form-17	Yes/ No	
19	Draft Contract Agreement	Contract Agreement as per Form-18	Yes/No	
21	Tender Acceptance Letter	Tender Acceptance Letter as per Form-20	Yes/No	
22	Bid Security (Earnest Money Deposit) Declaration Form	Bid Security Declaration Form as per Form-21	Yes/No	
23	Consortium Agreement Form	Consortium Agreement Format as per Form-22	Yes/No	
24	Certifications ISO 9001, ISO 20000, ISO 27001: ISO CMMI Level 5	Copy of Valid Certificate and undertaking to renew the certificates in case either of these is getting expired in one (1) Year	Yes/No	
25	Bidder Location	Self-Certification by the authorized signatory	Yes/No	

Note: Bidders are requested to ensure submission of documents strictly in prescribed format. Any deviations from this prescribed format may result in disqualification of the bid.

10.6 Form 6: Performance Bank Guarantee (including e-BG)

(TO BE EXECUTED ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE, PURCHASED IN THE NAME OF ISSUING BANK)

In consideration of the Food Corporation of India, _____ at _____ (hereinafter called FCI) having stipulated furnishing the security deposit in the form of Performance Bank Guarantee (including e-BG) under the terms and conditions of the Letter of Award No. _____, dated _____ made between FCI and M/s _____ (hereinafter called the Bidder/the SI) to undertake maintenance and Support of Financial Account Package for FCI (hereinafter called the 'contract') for the due performance and fulfilment by the said Bidder/the SI of the terms and conditions and obligations contained in the said contract, we **<Bank Name>**, (hereinafter referred to as 'the Bank') at the request of M/s **<Bidder Name>** do hereby undertake to pay on demand by FCI an amount not exceeding **<value in figures and words>**.

We, **<Bank Name>** do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from FCI. Any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee.

However, the Bank's liability under this guarantee shall be restricted to an amount not exceeding **<value in figures and words>**.

We undertake to pay to FCI any money so demanded notwithstanding any dispute or disputes raised by the bidder/the SI in any suit or proceeding pending before any Court or Tribunal relating thereto our liability under this present being absolute and unequivocal.

The payment so made by us under this bond shall be valid discharge of our liability for payment there under and the bidder/the SI shall have no claim against us for making such payment.

We, **<Bank Name>** further agree that the guarantee herein contained shall remain in full force and effect during the period that shall be taken for the performance of the said contract and for a period of 66 months from the date of issue of this Guarantee and that it shall continue to be enforceable till all the dues of FCI under or by virtue of the said contract have been fully paid & its claims satisfied or discharged or till FCI certifies that the terms and conditions of the said contract/RFP have been fully and properly carried out by said bidder/the SI and accordingly, discharges this guarantee. Unless a demand or claim under this guarantee is made on us in writing on or before **<Date>** (66 months to be indicated) we shall be discharged from all liability under this guarantee thereafter.

We, **<Bank Name>** further agree with FCI that FCI shall have the fullest liberty without our consent and without affecting in any manner our obligation hereunder, to vary any of the terms and conditions of the said contract or to extend time of performance by the said bidder/the SI from time to time or to postpone for any time or from time to time any of the powers exercisable by FCI against the said bidder/the SI and to forbear or enforce any of the terms and conditions relating to the said contract and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said bidder/the SI or for any forbearance, act or commission on the part of FCI or any indulgence by FCI to the said bidder/the SI or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.

This guarantee shall not be discharged due to the change in the Constitution of the Bank or the bidder/the SI.

The guarantor hereby declare that it has power to execute this guarantee, and the executant has full power to do so on its behalf under the proper authority granted to him/them by the guarantor.

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

We, <**Bank Name**> lastly undertake not to revoke this guarantee during its currency except with the previous consent of FCI in writing.

Dated the day of for <Bank Name**>**

(Signature, name, and designation of the authorized signatory)	(Signature, name, and designation of the authorized signatory)
--	--

For

Name of Bank:

Seal of the Bank:

Dated, theday of, 20.....

NOTES:

1. The PBG (including e-BG) shall contain the names, designations and code numbers of the officers signing the Guarantee.
2. The address, telephone number and other details of the Head Office of the bank as well as of issuing branch shall be mentioned on the covering letter of issuing branch.

10.7 Form 7: Certificate for Turnover and Net Worth of the Bidder

Certified that M/s <**Bidder Name**> (**Sole bidder**) having its Registered Office at <**Office Address**> has been having minimum of INR 350 Crores as an annual turnover in each Financial Year.

OR

In case of **Consortium**,

Certified that M/s <**Bidder Name**> (**Lead Bidder**) having its Registered Office at <**Office Address**> has been having minimum of INR 262.50 Crores as an annual turnover in each Financial Year.

AND

Certified that M/s <**Bidder Name**> (**Consortium Partner**) having its Registered Office at <**Office Address**> has been having minimum of INR 87.50 Crores as an annual turnover in each Financial Year.

The details are as under:

Financial Year	Turnover (INR Crore)	Net Worth (INR Crore)
FY2024-25		
FY2023-24		
FY2022-23		

This certificate is issued based on documentary evidence and audited accounts produced to me and copies of which are available with me that I shall be able to produce if required by FCI. The certificate is true and correct to the best of my knowledge and belief.

Signature	
Name of the Person	
Designation	Chartered Accountant
Name of the Firm	
Registration/Membership Number	
Address	
Email Address	
Contact Number	
Date	
Place	

10.8 Form 8: Certificate for Experience

Certified that M/s <<Bidder Name>> i.e., **Sole bidder/Consortium (lead bidder with consortium partner)>>** having its Registered Office at <Office Address> have successfully completed or phase-wise/partial completion of the specified number of projects in accordance with sections 4.10 or 4.11 of this RFP.

Details are as under:

#	FY in which completed	Customer Name	Value of Contract (INR Crores)	Type of Application Implemented	No. of Locations
1					
2					
3					

This certificate is issued based on documentary evidence (Project execution proofs) produced to me and copies of which are available with me that I shall be able to produce if required by FCI. The certificate is true and correct to the best of my knowledge and belief.

Signature	
Name of the Person	
Designation	Company Secretary/ Chartered Accountant/ Auditor
Name of the Firm	
Registration/Membership Number	
Address	
Email Address	
Contact Number	
Date	
Place	

10.9 Form 9: Project Citation and Declaration for Projects under NDA (Forms 9A and 9B)**Form 9A: Project Citation Format**

Relevant IT project experience specified number of projects in accordance with sections 4.10 or 4.11 of this RFP.

General Information	
Name of the project	<i>(Provide reason in case information is being withheld)</i>
Client for which the project was executed	<i>(Provide reason in case information is being withheld)</i>
Name and contact details of the client	<i>(Provide reason in case information is being withheld)</i>
Project Details	
Description of the project	
Scope of services	
Service levels being offered/Quality of service (QOS)	
Technologies used	
Outcomes of the project	
Other Details	
Total cost of the project	
Total cost of application development, rollout and support	
Total cost of the services provided by the respondent	
Duration of the project (No. of months, start date, completion date, status)	
Other Relevant Information	
Documentary evidence in support of the above (Work Order, Completion/Go-Live Certificate) to be provided if not covered under NDA with the client.	

Declaration:

This citation is issued based on documentary evidence produced to me and copies of which are available with me that I shall be able to produce if required by FCI. I hereby declare that all information provided in this citation are true and correct to the best of my knowledge and belief.

Signature	
Name of the Person	
Designation	Statutory Auditor/ CA/ CS
Name of the Firm	
Registration/Membership Number	
Address	
Email Address	
Contact Number	
Date	
Place	

Form 9B: Declaration for Projects covered under NDA

To,
The Chief General Manager (IT)
Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Declaration for projects covered under Non-Disclosure Agreement (NDA)

Ref: Your RFP Ref: [*] dated [*]

Dear Sir/Madam,

I hereby declare that the following project(s) is/are covered under Non-Disclosure Agreement:

#	Description of the Project	Reference/Page No. in the Technical Bid
1		
2		
3		
4		
5		

Hence, the name of the client and submission of supporting documents such as work order and completion/go-live certificate as required under **Section 4.10** of the RFP are restricted due to the terms and conditions of NDA as agreed with the respective client(s). All necessary information regarding the above-mentioned project(s), as required, is/are submitted in respective Form – 9A.

Yours Sincerely,

Authorized Signature [In full and initials]

Name and Title of Signatory:

Name of Firm:

Full Address:

10.10 Form 10: Certificate for Technical Manpower

Certified that M/s <**Bidder Name**> having its Registered Office at <**Address**> is having <**no.**> of Technically Qualified Professionals (on role) as on <**Date**>. Details are as under:

#	Particular	Number
1	Technically Qualified Professionals (on payroll)	

This certificate is issued based on documentary evidence produced to me and copies of which are available with me that I shall be able to produce if required by FCI. The certificate is true and correct to the best of my knowledge and belief.

Signature		
Name of the Person		
Designation	Designation: Company Secretary/Chartered Accountant/Auditor/HR Head/Authorized Signatory	HR Head
Name of the Firm		
Registration/Membership Number		
Address		
Email Address		
Contact Number		
Date		
Place		

10.11 Form 11: Proposed Bill of Material

Proposed Bill of Material

#	Item	Unit	QTY	Details/Remarks
1	Proposed Team			
2	Cloud Infrastructure			
3	Licenses			
4	Miscellaneous			

10.12 Form 12: Team Composition

#	Resource Name with Qualification and Experience	Area of Expertise	Position/Role Assigned	Phase wise Task Assigned	Time Committed for Engagement
1					
2					
3					
4					
5					

10.13 Form 13: Curriculum Vitae (CV) of members of the Team

General Information	
Name	
Current Designation/Job Title	
Current Job Responsibilities	
Proposed Role in The Project	
Proposed Responsibilities in The Project	
Academic Qualifications: • Degree • Academic Institution of Highest Qualification • Year of Highest Qualification • Specialization (If Any) • Key Achievements and Other Relevant Information (If Any)	
Professional Certifications (If Any)	
Total Number of Years of Experience	
Number Of Years with The Current Company	
Summary - Professional/Domain Experience	
Number of Complete Life Cycle Implementations Carried Out	
Client Name (Please Provide the Relevant Names)	

General Information

Past assignment details (For each assignment provide details regarding name of organizations worked for, designation, responsibilities, tenure)

Prior professional experience covering:

I. Organizations worked for in the past:

- Organization name
- Duration and dates of entry and exit
- Designation Location(s)
- Key responsibilities

II. Prior project experience

- Project Name
- Client
- Key project features in brief
- Location of the project
- Designation
- Role
- Responsibilities and activities
- Duration of the project

Please provide only relevant projects.

Proficient in languages (Against each language listed indicate if speak/read/write)

Undertaking

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience. I understand that any wilful misstatement described herein may lead to my disqualification or dismissal, if engaged.

Signature

<Name>

<Date>

<Place>

Signature and stamp by the Authorized Signatory/HR department of the Organization

10.14 Form 14: Self-Declaration for Non-Blacklisting

(To be provided on the Bidder's letterhead)

Date:

To,
The Chief General Manager (IT)
Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Self Declaration of not been blacklisted in response to the Request for Proposal for Selection of System Integrator for Operation and Maintenance of FCI FAP.

Ref: Your RFP Ref: [*] dated [*]

Dear Sir/Madam,

We confirm that our company or firm <**Bidder Name**> is as on the date of submission of this bid, has not been blacklisted in the last three years in any manner whatsoever by **FCI/DFPD/DoE** on any ground including indulgence in corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice or any other similar grounds.

We hereby declare that our company or firm, its proprietor/any of the partners/any of the Directors has not been, at any time, convicted by any court for any offence and sentenced to imprisonment for a period of three years or more.

We hereby declare that our company or firm is not blacklisted by GST authorities.

We declare that we are not involved in any major litigation that may have an impact of affecting or compromising the delivery of services as required under this assignment and we are not under a declaration of ineligibility for corrupt or fraudulent practices.

Yours Sincerely,

Authorized Signature [In full and initials]

Name and Title of Signatory:

Name of Firm:

Full Address:

10.15 Form 15: Undertaking for Total Responsibility

(To be provided on the Bidder's letterhead)

Date:

To,
The Chief General Manager (IT)
Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Undertaking for Total Responsibility

Ref: Your RFP Ref: [*] dated [*]

Dear Sir/Madam,

We hereby undertake that we have read all contents provided in the RFP and its subsequent corrigenda and other necessary documents and undertake the total responsibility for the defect free operation of the proposed solution as per the requirements specified in the RFP and its subsequent corrigenda.

Yours Sincerely,

Authorized Signature [In full and initials]

Name and Title of Signatory:

Name of Firm:

Full Address:

10.16 Form 16: Earnest Money Deposit (EMD) as Bank Guarantee (including e-BG)

(TO BE EXECUTED ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE, PURCHASED IN THE NAME OF ISSUING BANK)

WHEREAS M/s. <Bidder Name> having their registered office at <Bidder Address> (Hereinafter called the "Bidder") wish to participate in the tender number <Tender Number> for Operation and maintenance of FCI FAP for Food Corporation of India (Hereinafter called the "Beneficiary") and WHEREAS a Bank Guarantee (including e-BG) towards Earnest Money Deposit for INR <Amount in figures> valid till <BG Validity Date>, which is required to be submitted by the bidder along with the tender.

We, <Bank Name and Branch Address> having our registered office at <Registered Office Address> hereby give this Bank Guarantee Number: <BG Number> dated <BG Date> and hereby agree unequivocally and unconditionally to pay immediately on demand in writing from the Food Corporation of India or any officer authorized by it on its behalf, any amount not exceeding INR <Amount in figures> (Rupees <Amount in words>) to the said beneficiary on behalf of the bidder.

This agreement shall be valid and binding on this Bank up to and inclusive of <BG Validity Date> and shall not be terminable by notice or by Guarantor change in the constitution of the Bank or the firm of bidder or by any reason whatsoever and our liability hereunder shall not be impaired or discharged by any extension of time or variations or alternations made, given, conceded with or without our knowledge or consent by or between the bidder and the FCI.

Notwithstanding anything contrary contained in any law for the time being in force or banking practice, this Bank Guarantee shall not be assignable, transferable by the beneficiary. Notice or invocation by any person such as assignee, transferee or agent of beneficiary shall not be entertained by the Bank. Any invocation of the Guarantee can be made only by the beneficiary directly.

Notwithstanding anything contained hereinbefore, our liability under this guarantee is restricted to INR <Amount> (Rupees <Amount in words>). Our guarantee shall remain in force till <BG Validity Date>. Unless demands or claims under this Bank Guarantee are made to us in writing on or before <BG Validity Date>, all rights of beneficiary under this Bank Guarantee shall be forfeited, and we shall be released and discharged from all liabilities there under.

Dated the day of for <Bank Name>

(Signature, name, and designation of the authorized signatory)	(Signature, name, and designation of the authorized signatory)
--	--

For

Name of Bank:

Seal of the Bank:

Dated, theday of, 20.....

NOTE:

1. The BG (including e-BG) shall contain the names, designations and code numbers of the officers signing the Guarantee.
2. The address, telephone number and other details of the Head Office of the bank as well as of issuing branch shall be mentioned on the covering letter of issuing branch.

10.17 Form 17: Bidder's Declaration

(To be provided on the Bidder's letterhead)

Date:

To,
The Chief General Manager (IT)
Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Ref: Your RFP Ref: [*] dated [*]

Dear Sir/Madam,

I, <Name of authorized signatory>, age <in years>, S/o <Father's Name of authorized signatory>, resident of <Home Address of authorized signatory> employed as <Designation of authorized signatory> with M/s <Firm Name of authorized signatory> having office at <Office Address of authorized signatory> do solemnly affirm and declare as under:

I am competent to swear to that:

- a. I am the attorney/authorized signatory on behalf of the bidder.
- b. Our company, <Bidder Name & Address> is having unblemished past record and is not declared blacklisted in last 3 years by FCI/DFPD/DoE for participation in future bids for unsatisfactory past performance, corrupt, fraudulent or any other unethical business practices or for any other reason as on date of submission of bid.
- c. We are not ineligible under any of the clauses mentioned in **Section 4.12.1 'Disqualification of Bidder', of the RFP.**
- d. We also accept all the conditions of the tender and have signed all the pages in confirmation thereof.
- e. We declare and certify that I/We have not made any misleading or false representation in the forms, statements, and attachments in proof of the qualification requirements.
- f. We declare that the information and documents submitted along with the bid by me/us are correct and I/We are fully responsible for the correctness of the information and documents submitted by us.
- g. We also understand that if the certificates submitted by us are found to be false/forged or incorrect at any time after the date of signing of contract, it shall lead to termination of the contract and other legal actions as mentioned in RFP Number _____ and subsequent corrigendum.
- h. We do not violate/infringe any third-party patent, trademark, registered design, or other intellectual property rights.

Yours Sincerely,

Authorized Signature [In full and initials]
Name and Title of Signatory:
Name of Firm:
Full Address:

10.18 Form 18: Draft Contract Agreement

(To be executed on non-judicial stamp paper of the appropriate value in accordance with relevant stamp Act. The stamp paper to be in the name of the Authorized signatory from bidders' side).

AGREEMENT FOR SYSTEM INTEGRATION SERVICES

This "Agreement" is entered into this _____ day of _____ 20__ at New Delhi.

BY AND BETWEEN

Food Corporation of India, a statutory body set up under the Food Corporations Act, 1964 having its registered office located 16-20, Barakhamba Lane, New Delhi - 110001 (herein after referred to as "FCI" or "Corporation", which expression shall unless excluded by or repugnant to the context deemed to include its successor/s in office or permitted assigns) of the First Part.

AND

<**Bidder Name & Address**> (hereinafter called the "System Integrator (the SI) or bidder", which expression shall unless excluded by or repugnant to the context or meaning thereof mean and be deemed to include its successors and permitted assigns) of the Second Part.

AND WHEREAS

- a. FCI had invited a Request for Proposal for "Selection of System Integrator for Maintenance and Support of FCI FAP dated _____, and subsequent corrigendum thereto (hereinafter together referred to as 'RFP').
- b. In response to the RFP, the SI, had submitted its technical and commercial bid for proposed FCI FAP to FCI, for which bid was opened on _____ (technical bid) and on _____ (commercial bid) and subsequently the SI had submitted "Acceptance (Undertaking) for Operations and Maintenance of FCI FAP" on _____ (hereinafter referred to as 'Proposal or Bid').
- c. FCI has accepted the aforesaid proposal of the SI, vide its letter dated _____ thereby awarding the contract to the SI.
- d. The SI furnished the requisite Performance Bank Guarantee (including e-BG) on _____.
- e. The Contract having come into force w.e.f. _____, the parties now wish to sign this formal agreement in terms of the contract already awarded vide letter dated _____ 20__ which is already under execution.

NOW, THEREFORE, IT IS HEREBY AGREED/ACKNOWLEDGED BY THE PARTIES AS FOLLOWS:

- a. The following documents attached hereto to form an integral part of this agreement:
 - i. RFP dated _____ along with Corrigendum (Entire Tender Document) duly signed by the SI.
 - ii. Commercial Bid along with bill of material for software by bidder (**Please refer to Section 12 for Commercial Bid details**).
 - iii. FCI's letter dated _____ for acceptance of conditions, and acceptance letter from M/s _____ dated _____ related to "Acceptance (Undertaking) for Operations and Maintenance of FCI FAP" as per Form-21.
 - iv. FCI's letter dated _____ award of the project.
- b. The mutual rights and obligations of FCI and the SI, Scope of work, payment terms or similar shall be as set forth in the aforesaid documents.

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be signed by their authorized signatories and representatives in their respective names as of the day and year first above written.

SIGNED, for and on behalf of:

M/s Food Corporation of India

By:

Signature:

Designation:

Address: Food Corporation of India,

Headquarters, New Delhi – 110001

SIGNED, for and on behalf of:

M/s _____

By:

Signature:

Designation:

Address:

Witnesses:

1. Name:

Place:

Date:

2. Name:

Place:

Date:

10.19 Form 19: Undertaking for Cloud Service Provider (CSP)

(To be provided on the CSP's letterhead)

Date:

**To,
The Chief General Manager (IT)**

Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Undertaking form for MeitY empanelled Cloud Service Provider (CSP)

Ref: Your RFP Ref: [*] dated [*]

Dear Sir/Madam,

This is to certify that we, <CSP name>, are a MeitY empanelled Cloud Service Provider. <Bidder Name> have due support from us to provide cloud services required for hosting the proposed FCI FAP application as per your RFP. I/We confirm that:

- a. We support <Bidder Name> to provide our cloud services listed below and related services to FCI for hosting the FCI FAP application.
- b. We do hereby comply with all Statuary Acts/IT Acts/Applicable Acts of Government of India and amendments thereof and meet ever evolving Security Guidelines specified by CERT-In and meet any security requirements published (or published in future) by MeitY or any standards body setup/recognized by Government of India from time to time and notified by MeitY as a mandatory standard.
- c. We undertake to provide the support for the services for entire project duration (O&M phase and applicable extensions) commencing from the date of acceptance sign-off.
- d. We also certify that the below mentioned services being supplied by the <Bidder Name> meets the minimum specifications given in the RFP.

S. No.	Service Offering	Deployment Model	Remarks

Yours Sincerely,

Authorized Signature [In full and initials]

Name and Title of Signatory:

Name of Firm & Full Address:

10.20 Form 20: Acceptance of Terms & Conditions of Tender

(To be given on Company Letter Head)

Date:

To,
The Chief General Manager (IT)
Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Acceptance of Terms & Conditions of Tender.

Tender Reference Number:

Name of Tender/Work: _____

Dear Sir,

- a. I/We have downloaded/obtained the tender document(s) for the above mentioned 'Tender/Work' from the web site(s) namely:

as per your advertisement, given in the above-mentioned website(s).

- b. I/We hereby certify that I/we have read the entire terms and conditions of the tender documents from page number _____ to _____ (including all documents), which form part of the contract agreement, and I/we shall abide hereby by the terms/conditions/clauses contained therein.
- c. The corrigendum(s) issued from time to time by your department/ organisation too has also been taken into consideration, while submitting this acceptance letter.
- d. I/We hereby unconditionally accept the tender conditions of above-mentioned tender document(s)/corrigendum(s) in its totality/entirety.
- e. In case any provisions of this tender are found violated, then your department/organisation shall without prejudice to any other right or remedy be at liberty to reject this tender/bid.

Yours Faithfully,

(Signature of the Bidder, with Official Seal).

10.21 Form 21: Bid Security (Earnest Money Deposit) Declaration

Date: _____

To,
The Chief General Manager (IT)

Food Corporation of India
16-20, Barakhamba Lane,
New Delhi – 110001.

Subject: Bid Security (Earnest Money Deposit) Declaration

I/We understand that, according to your conditions, bids must be supported by a Bid Securing Declaration.

I/We accept that I/We may be disqualified from bidding for any contract with you for a period of one year from the date of notification if I am /We are in a breach of any obligation under the bid conditions, because I/We

- a. have withdrawn/modified/amended, impairs, or derogates from the tender, my/our Bid during the period of bid validity specified in the form of Bid; or
- b. have been notified of the acceptance of our Bid by the purchaser during the period of bid validity
 1. fail or refuse to execute the contract, if required, or
 2. fail or refuse to furnish the Performance Security, in accordance with the instructions to Bidders.

I/We understand this Bid Securing Declaration shall cease to be valid if I am/we are not the successful Bidder, upon the earlier of

- i. the receipt of your notification of the name of the successful Bidder; or
- ii. thirty days after the expiration of the validity of my/our Bid.

Signed: *(insert signature of person whose name and capacity are shown)*

in the capacity of *(insert legal capacity of person signing the Bid Securing Declaration)*

Name: *(insert complete name of person signing the Bid Securing Declaration)*

Duly authorized to sign the bid for an on behalf of: *(insert complete name of Bidder)*

Dated on _____ day of _____ (insert date of signing)

Corporate Seal (where appropriate)

10.22 Form 22: Format for Consortium Agreement

<<On non-judicial stamp paper of Rs.1000 value to be purchased in the name of executant's companies or as required by the jurisdiction in which executed duly notarized>>

Between

M/s _____ having its registered office at _____ (hereinafter referred to as) acting as the Lead Bidder/First partner,

And

M/s _____ having its registered office at _____ (hereinafter referred to as) in the capacity of Consortium/Second Partner. The Lead Bidder/First Partner and Consortium/Second Partner shall collectively herein after so called as the **"CONSORTIUM PARTNERS"**.

The expressions of Lead Bidder and Second Partner shall wherever the context admits, mean and include their respective legal representatives, successors-in-interest and assigns and shall collectively be referred to as "the Parties" and individually as "the Party"

WHEREAS:

Food Corporation of India (FCI) [hereinafter referred to as "Owner"] has invited bids for SELECTION OF SYSTEM INTEGRATOR FOR MAINTENANCE AND SUPPORT OF FCI FAP Vide its tender notification no. _____ dt. _____

AND WHEREAS, the following documents shall be deemed to form and be read and construed as an integral part of this Agreement.

- i. Notice for Bid
- ii. Bidding document
- iii. Any Addendum/Corrigendum issued by Food Corporation of India
- iv. The bid submitted on our behalf jointly by the Lead Bidder

AND WHEREAS, the 'Parties' have studied the documents and have agreed to participate in submitting a 'bid' jointly.

NOW THEREFORE, in consideration of the mutual covenants of the members of the Consortium, the sufficiency whereof is hereby acknowledged and other good valuable consideration, we agree as follows:

1. M/s _____ shall be the Lead Bidder of the Consortium for all intents and purpose and shall represent the Consortium in its dealing with the Owner. For the purpose of submission of bid proposals, the parties agree to nominate _____ as the Leader duly authorized to sign and submit all documents and subsequent clarifications, if any, to the Owner. However, M/s _____ shall not submit any such proposals, clarifications or commitments before securing

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the written clearance of the other partner which shall be expeditiously given by M/s _____ to M/s _____.

2. The Lead Bidder shall be authorized to incur the liabilities and receive instructions for and on behalf of any and all partners of consortium. The Lead Bidder will be solely responsible for Maintenance & Support Of "Financial Account Package", change management and training.

The 'Parties' have resolved that the following distribution of responsibilities will be followed in the event that the Consortium Bid is accepted by Food Corporation of India.

a) Lead Bidder share __ %;

S. No.	Project Component/Activity	Roles & responsibilities

b) Consortium/Second Partner share __ %;

S. No.	Project Component/Activity	Roles & responsibilities

3. Assignment and Third Parties

The parties shall co-operate throughout the entire period of this agreement on the basis of exclusivity and neither of the Parties shall make arrangement or enter into agreement either directly or indirectly with any other party or group of parties on matters relating to the Project except with prior written consent of the other party and FCI.

4. Jointly and Several Responsibility

If Owner suffers any loss or damage on account of any breach in the stipulation of the Agreements to be entered into by the Consortium Members, upon its selection pursuant to tender (the "Agreements") or any shortfall in the performance of the Transaction or in meeting the performances guaranteed as per the tender and the Agreements, the Consortium Members hereby jointly and severally undertake to promptly make good such loss or damages caused to Owner on its demand without any demur or contest. The Owner shall have the right to proceed against anyone of the partners, and it shall neither be necessary nor obligatory on the part of the Owner to proceed against the Lead bidder before proceeding against or dealing with the other Member.

All partners of the Consortium shall be liable jointly and severally for the execution of the Contract in accordance with the Contract terms.

5. Executive Authority

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The said Consortium through its authorized representative shall receive instructions, payments from the Owner. The management structure for the project shall be prepared by mutual consultations to enable completion of project to quality requirements within permitted cost and time.

6. Bid and Performance Security

The Lead Bidder shall furnish EMD/Performance Bank Guarantee (as applicable) to the Owner on behalf of the Consortium which shall be legally binding on all the partners of the Consortium.

7. Bid Submission

Each Party shall bear its own cost and expenses for preparation and submission of the bid and all costs until conclusion of a contract with the Owner for the Project. Common expenses shall be shared by both the parties in the ratio of their actual participation.

8. Indemnity

Each party hereto agrees to indemnify the other party against its respective parts in case of breach/default of the respective party of the contract works of any liabilities sustained by the Consortium. For the execution of the respective portions of works, the parties shall make their own arrangements to bring the required finance, materials, manpower and other resources. All the payments from FCI will be received by the Lead Bidder.

9. Documents and Confidentiality

Each Party shall maintain in confidence and not use for any purpose related to the Project all commercial and technical information received or generated in the course of preparation and submission of the bid.

10. Dispute Resolution

Any dispute, controversy or claim arising out of or relating to this agreement shall be settled in the first instance amicably between the parties. If an amicable settlement cannot be reached as above, it will be settled by arbitration in accordance with the Indian Arbitration and Conciliation Act 1996 or any amendments thereof. The venue of the arbitration shall be

_____.

OR

This Consortium agreement shall be construed and interpreted in accordance with the laws of India and the Courts of New Delhi shall have the exclusive jurisdiction in all matters arising there under (The consortium members may opt for either of the above modes).

11. Validity

A. It is further agreed that this Consortium Agreement shall be irrevocable and shall continue to be enforceable till the same is discharged by Owner.

B. This Agreement shall come into force as of the date of signing and shall continue in full force and effect until the complete discharge of all obligations, concerning the carrying out of the Project, which have been taken on by the Parties under the Contract, tender Document and under this Agreement.

This Agreement is drawn in ___ number of copies with equal legal strength and status. One copy is held by M/s _____ and the other by M/s. _____ and a copy submitted with the proposal.

This Agreement shall be construed under the laws of India.

Notices

Notices shall be given in writing confirmed by registered email/commercial courier to the following email/physical addresses:

Lead Bidder

Consortium Partner

(Name & Address)

(Name & Address)

IN WITNESS WHEREOF, THE PARTIES have executed this Agreement the day, month and year first before written.

M/s _____

M/s _____

(Seal)

(Seal)

Witness

1. _____ (Name & Address)

2. _____ (Name & Address)

11 Appendix – III: Details of the Existing Application – Financial Application Package (FAP), Infrastructure and Licences

11.1 Hardware Specification

FCI had migrated to Oracle Cloud Infrastructure in 2023 with Data Center (DC) site at Mumbai and Disaster Recovery (DR) site at Hyderabad.

Some noteworthy technical details are tabulated below:

Database Tier	
Operating System	Linux version 7.9
Database	Oracle 19c
No. of DB Nodes	2 DB node (RAC)
Real Time Application Cluster (RAC)	Yes
Database Version	19.17.0.0
Application Tier (Internal)	
Operating System	Linux version 7.9
No. of DB Nodes	2-Node Application Tier (active/active forms & web tier)
Concurrent Manager Tier	Active/Active PCP at the CM tier
Oracle E-Business Suite Application	E-Business Suite R12.2.9
Oracle Application server (WebLogic) Payroll)	11g (12c)
JDK version (Payroll)	1.8

11.2 Application Details

#	Item	Value		
		Application	Active Users	Concurrent Users
1	Total Number of active and concurrent users	APPS	1320	350
		BTS	26562	1400
		Payroll	1903	240
		CPF	40719	2600
		a. The number of BTS users is increasing at a rate of approximately 5% per year. b. For Payroll and CPF applications, the number of users depends on the total number of employees in FCI. c. The number of active and concurrent users remains consistent in the Oracle Apps application.		
2	Current Database Size	4.5 TB. Increasing 200GB per YoY		
3	Current Database Utilization	a. The current database utilization is approximately 60%. b. Utilization varies depending on the workload and operations at FCI. c. During employee and labour salary processing, the utilization increases and remains between 80% to 90%. d. During period closure activities (Quarterly and Annually) the utilization touches nearly 100%		
4	Current versions	Oracle Apps – Version – R12.2.9 Database Version – 19.17.0.0.0 OS Version – RHEL 7.9 WebLogic Version – 12C Payroll module – (Java 8, Struts 1.1) Bill Tracking system (java 8, Spring boot) CPF Self Service Portal (Java8, Spring MVC)		
5	Number of Issues	Average Ticket count 1) Data Fix - 200 2) Bug Fix - 175 3) Educational Issues - 1650		
6	Indicative type of issues/ bugs	a. Assets depreciation issues. b. Negative balances for assets. c. Problems in Assets transfer and assets retirements d. Issues in payroll and BTS invoices flow to AP. e. Issue while generating Tax/GST invoices. f. Reconciliation issues. g. Invoice Workflow issues.		

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#	Item	Value
		h. Incorrect Salary computation in Payroll i. Issues related to Tax Regimes, allowances and penalties. j. Issues in Month End salary cycle. k. Wrong Basic pay entered.

11.3 Server Infra Details

Cloud Compartment: PROD Instance & DB (DC)					
Instances	Cores	MEMORY(GB)	Storage (the SAN)	Server Type	OS
Instance 1	32	512	512GB	EBS/Web logic	(RHEL 7.9)
Instance 2	8	128	512GB	EBS/Web logic	
Instance 3	64	1024	10TB	Database	
Cloud Compartment: Test Instance & DB (DC)					
Instances	Cores	MEMORY(GB)	Storage (the SAN)	Server Type	OS
Instance 1	8	128	600GB	Test Apps	(RHEL 7.9)
Instance 2	12	128	10TB	TEST DB	
Cloud Compartment: Dev Instance & DB (DC)					
Instances	Cores	MEMORY(GB)	Storage (the SAN)	Server Type	OS
Instance 1	8	16	600GB	DEV Apps	(RHEL 7.9)
Instance 2	8	64	10TB	UAT FCI DB	
Cloud Compartment: DR PROD (DR)					
Instances	Cores	MEMORY(GB)	Storage (the SAN)	Server Type	OS
Instance 1	6	96	1.22TB	EBS/Web logic	(RHEL 7.9)
Instance 2	16	128	10TB	Database	(RHEL 8.8)

11.4 Available Licenses

Sr No	Licences	No of License	Licence Type	Application	ATS Paid Upto
1	Real Application Cluster (RAC) - Processer Perpetual Licenses	12	Limited Use	FAP	31-08-2026
		2	Full Use	FAP	31-08-2026
2	Oracle Database Enterprise Edition – Processer Perpetual Licenses	21	Limited Use	FAP	31-08-2026
3	Oracle Web Logic Suite - Processer Perpetual Licenses	25	Limited Use	FAP	31-08-2026

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Sr No	Licences	No of License	Licence Type	Application	ATS Paid Upto
4	Oracle Apps User Licence	1320	Full Use	FAP	24-05-2026
5	Oracle Database Enterprise Edition - Processor Perpetual	24	Full Use	DOS	27-11-2025
6	Oracle Directory Services Plus - Processor Perpetual	6	Full Use	DOS	27-11-2025
7	Oracle Service Bus - Processor Perpetual	6	Full Use	DOS	27-11-2025
8	Oracle WebLogic Server Enterprise Edition - Processor Perpetual	24	Full Use	DOS	27-11-2025
9	Oracle Mobile Security Suite - Employee User Perpetual	5000	Full Use	DOS	27-11-2025
10	Oracle WebLogic Suite - Processor Perpetual	6	Full Use	DOS	27-11-2025

Note:

- i. The DOS licenses currently in use can be made available for the FAP system post March 2026.
- ii. ATS cost of LinguaSol Tool used in FAP for bilingual interface shall be borne by FCI.
- iii. The System Integrator (SI) may utilize existing licenses, subscriptions, or tools already available with FCI, subject to prior written approval. However, any cost associated with integration, customization, upgrade, compatibility, or support of such licenses for the purpose of project implementation shall be borne entirely by the SI. The SI shall also ensure full compliance with the respective licensing terms and shall indemnify FCI against any legal, operational, or financial liability arising from such usage

11 Appendix – IV: Brief of Functional Requirements for Payroll Redevelopment

Sr No.	Functional Requirement	Details of Functional Requirement
1	Organization Mapping & Master Setup	• Pay codes & bands • Location hierarchies and city classifications • Cost centers, responsibility codes • Designation-grade-pay mapping • ASOR & SOR operations, MGW & incentive setups • Gang creation and mapping
2	Payroll Processing Engine	• Run payroll anytime — scheduled or on-demand • Maker-Checker validation workflows • Separate salary engines for: - o Regular employees - o Departmental Labour - o DPS Labour • Arrears handling (DA/basic, performance, retro-pay) • Transfer, suspension, final settlement with LPC • Incentive computation and invoice generation • Manual overrides for final payment conditions • Locking mechanisms post salary run

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Sr No.	Functional Requirement	Details of Functional Requirement
3	Earnings, Deductions & Statutory Compliance	Earnings Basic Pay, Grade Pay, DA, HRA, CCA • Allowances: Transport, Lunch Subsidy, Washing, Medical • Special: Incentives, PLI, Leave/LTC encashment • Deputation-specific pay heads • Reimbursement modules: Conveyance, mobile, housing • Any other as defined time to time Deductions • Income Tax (TDS), surcharge, education cess • Provident Fund (PF, GPF), NPS • LIC, GIS/CGEIS, BF • Loans/advances recovery (principal & interest) • Labour Welfare Fund, Professional Tax • Lease recovery, miscellaneous recoveries NPS Integration • Tier I • PRAN support • Contribution tracking • Withdrawal and pension mapping
4	Reporting & Querying	Standard Reports • Salary Register • Advice Report for Bank • Tax Deduction Summary • Increment Tracking • Medical Register • Advance Recovery Schedule • Loan Recovery & Outstanding Reports • Arrears Register Statutory & Tax Reports • Form 16 • 24Q Quarterly Statement • Income Tax Forecasts per employee • Rebate under Sec 89 • Monthly PF Summary • Professional Tax Schedule Invoice Reports • Salary Invoice (per employee, gang, depot) • Incentive Invoice • Remittance Invoice • Supplementary Invoice • Last Pay Certificate Invoice

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Sr No.	Functional Requirement	Details of Functional Requirement
5	Audit & Administration	Maintain Direct Payroll Audit Trail - o Pay code-wise entries - o Instalments and recovery logic - o Deleted entry history with user stamp Revision Status Reports - o Depot-wise and DO-wise monitoring - o Categorized by employee/labour type Undo Transactions Workflow • Undo payroll • Undo loans/savings • Undo medical reimbursements
6	Arrears, Loans, Advances Arrears	• Basic Pay & DA arrears • Incentive arrears • MGW/Actual Work Done comparisons • Promotion/date-based rule processing
7	Medical & Welfare Schemes	• Individual and bulk medical reimbursements • Scheme-based deduction reports • Quarterly medical processing • Gratuity workflow • EPS/FPS eligibility logic • Retirement-triggered benefits allocation
8	Labour Incentive & Work Slip Handling	• Operations-driven work slip design • Incentive slabs per operation type • Gang-level entry screens • OTA handling and calculations • Work-on-holiday logic • Time validation and scheduling • MGW vs Actual performance comparisons • Day-wise incentive computation: bag count, timings, per-labour rate
9	Administrative Workflows	• Employee separation and reinstatement • CPF final payment, intervening interest • Transfer workflow and re-joining logic • Loan rescheduling and foreclosure • Salary release for transferred/suspended cases • Leave recovery mapping and overrides • EPS entitlement rules enforcement
10	Intelligence & Analytics	• Forecast engine for IT per month/year • Retirement window-based forecast (including DA rise, promotion impacts) • Custom report builder by designation, pay head, location

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

Sr No.	Functional Requirement	Details of Functional Requirement
		• Drill-down capability: Audit, statutory, productivity

12 Commercial Bid

12.1 Form A: Commercial Bid Covering Letter

Date:

To,

The Chief General Manager (IT)

Food Corporation of India

16-20, Barakhamba Lane,

New Delhi – 110001.

Subject: Submission of the commercial bid for operations and maintenance of FCI FAP.

Dear Sir/Madam,

We, the undersigned, offer to provide the maintenance and support of the FCI Financial Accounting Package (FAP) in accordance with your Request for Proposal dated _____ and our bid (Technical and Commercial Bids). Our attached commercial bid is the final quote for evaluation. This amount is inclusive of all taxes, duties, fees, and levies etc., except GST.

1. PRICE AND VALIDITY

- a. All the prices mentioned in our bid are in accordance with the terms as specified in the RFP documents. All the prices and other terms and conditions of this bid are valid for a period of 90 days from the date of opening of the bid and can be further extended to a period of 30 days, if required by FCI. Further extension of validity shall be based on mutual consent of all parties concerned. Not keeping the offers open for the prescribed period shall lead to summary rejection of my/our bid.
- b. The quoted price shall remain firm through the period of the contract.
- c. We understand that the actual payment shall be made inclusive of all taxes, duties, fees, levies, and surcharges etc., (or any other taxes) except GST.

2. UNIT RATES

We declare that the unit rates given in the relevant forms enclosed are indicative. However, the entire scope of work shall be conducted by us as at the total quoted value given under Form B of Commercial Bid Forms.

3. UNCONDITIONAL ACCEPTANCE

We declare that all the services shall be performed strictly in accordance with the RFP documents and its subsequent corrigenda and agree for unconditional acceptance of all contents of the RFP document and its subsequent corrigenda, irrespective of whatever has been stated to the contrary anywhere else in our bid.

4. TENDER PRICING

We further confirm that the prices stated in our bid are in accordance with your instructions for bidders included in RFP documents and their subsequent corrigenda.

5. BID PRICING

We declare that our bid price is for the entire scope of the work as specified in Section 2 of this RFP and any subsequent corrigenda. These prices are indicated in the Commercial Bid attached as part of the bid.

6. PERFORMANCE BANK GUARANTEE (including e-BG)

We hereby declare that in case the contract is awarded to us, we shall submit the Performance Bank Guarantee (including e-BG) for totaling to 5% of project award value as specified in the **Form-6 of Appendix – II** of this RFP documents.

Our commercial bid shall be binding upon us, up to expiration of the validity period of the bid. We hereby declare that our bid is made in good faith, without collusion or fraud and the information contained in the bid is true and correct to the best of our knowledge and belief. We understand that our bid is binding on us and that you are not bound to accept any bid you receive.

Yours Sincerely,

Authorized Signature [In full and initials]

Name and Title of Signatory:

Name of Firm:

Full Address:

12.2 Commercial Bid Template

Instructions

- a. Bidder shall provide all prices as per the prescribed format and shall not leave any field blank. In case the field is not applicable, Bidder shall indicate "0" (Zero) in all such fields.
- b. Bidder shall refer to the RFP for details on the requirements for each cost component. FCI shall not pay any additional amount for any missing item(s) which is deemed to be necessary for the successful rollout of the project.
- c. Prices shall be entered in Indian Rupees (INR) ONLY.
- d. Price bid evaluation shall be done on the total bid cost.
- e. FCI reserves the right to ask the bidder to submit proof of payment against any of the taxes, duties, fees, and levies indicated.
- f. The bidder shall ensure that the quoted prices for all software components shall be valid for the entire period of the contract and without any additional operational and maintenance charges for the same.
- g. In case of extension of the contract, the SI shall ensure the validity of all components required in the extended period also.

12.3 Form B: Commercial Bid Form

Name of the Bidder/Bidding Firm:			
<u>PRICE SCHEDULE</u>			
<i>(This template must not be modified/replaced by the bidder and the same shall be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the bidder's name and values only)</i>			
a. The bidder shall quote Consolidated Fee (inclusive of all taxes, duties, fees, and levies etc., except GST) as applicable. b. Rates quoted in any other manner than the above shall be summarily rejected. The quoted rates shall remain firm throughout the tenure of the contract and no revision is permissible for any reason. c. In case of any discrepancy/difference in the amounts indicated in figures and words, the lesser quoted amount shall prevail and shall be considered. d. The fee shall be quoted in INR only.			
Note:			
a. The quoted total rate below comprises the cost for the entire scope of work as mentioned in RFP and shall be considered as final for the purpose of bid evaluation. b. The details mentioned in the sheet shall form indicative rates and be used for future references.			
Instructions: Bidder must include cost for training materials, other logistics, or any other related cost as required shall be borne by bidder			
S. No.	Item Description	Reference	Total Amount Exclusive of GST (in INR)
1	Price for Maintenance & Support of FCI FAP	Section #12.3.1	
2	Payroll Redevelopment		
Total Cost in Figures			
Total Cost in Words			

12.3.1 Price Bid for Maintenance & Support of Financial Accounting Package (FAP)

S. No.	Item Description	Operations & Maintenance (in INR)					
		1 st Year	2 nd Year	3 rd Year	4 th Year	5 th Year	Total Amount Exclusive of GST (in INR)
		A	B	C	D	E	F = A+B+C+D+E
1	Application support including all the requisite source code, documentation, day to day support to end users' and cost of the software's used (if any)						
2	Cloud Infrastructure Cost						
3	Licences Cost						
4	Miscellaneous Cost						
Total Cost in Figures							
Total Cost in Words							

12.3.2 Price Bid for Change Request Man Month Rate

CR Man Month Rate	O&M Phase				
	1 st Year	2 nd Year	3 rd Year	4 th Year	5 th Year
Total Cost (INR):					
Total Cost in Words:					

Note:

1. Bidder shall provide a man-month effort rate, which will be applicable in case of any change requests as per the T&C of this RFP. This rate shall not be considered for bid evaluation purposes. However, it must not exceed the rate derived from the quoted cost under Sr. No. 1 of Clause 12.3.1, i.e., “Application support including all the requisite source code, documentation, day-to-day support to end users, and cost of the software(s) used (if any)”.
2. Selected bidder shall provide BOM (Bills of Material) for the price quoted for the bid.
3. All rates quoted shall be exclusive of GST.

END OF DOCUMENT

RESPONSES - PRE-BID QUERIES

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CORRIGENDUM - I REQUEST FOR PROPOSAL FOR SELECTION OF AGENCY FOR MAINTENANCE & SUPPORT OF “FINANCIAL ACCOUNTING PACKAGE (FAP)”
Bid No: GEM/2025/B/6944812

#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
1.	7.3 Termination Clause & Page 81	FCI shall reserve the right to terminate the contract and recover expenditure incurred by FCI under the following circumstances: FCI shall send a formal notice of termination, 30 days prior to date of termination, to the selected bidder.	In the event the Termination for Convenience clause is invoked, the bidder will still incur committed OEM-related costs for the remaining contract period. Therefore, we request that FCI either (a) directly contract with the OEM for the balance tenure, or (b) continue to reimburse the proportionate infrastructure and license costs already committed by the bidder. This ensures that unavoidable OEM expenses—outside the bidder’s control—are not left stranded due to early termination. In the event that FCI exercises the Termination for Convenience clause, FCI shall either: 1. Directly contract with the respective OEM(s) for the remaining period of subscriptions, licenses, or infrastructure services committed by the bidder; or 2. Reimburse the bidder for the proportionate and non-recoverable OEM-related costs (including licenses, subscriptions, and infrastructure commitments) for the remainder of the committed term	The Clause shall remain the same

CORRIGENDUM - I REQUEST FOR PROPOSAL FOR SELECTION OF AGENCY FOR MAINTENANCE & SUPPORT OF “FINANCIAL ACCOUNTING PACKAGE (FAP)”

Bid No: GEM/2025/B/6944812

#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
2.	8.1 SLA for Maintenance & Support, Page 90	Recovery Time from Disaster requiring switching to DR site 1. Time taken to recover from Disaster scenario requiring switchover to DR site and successful operations from the DR site and restoring services to normalcy at DR with no data loss. (This SLA is applicable for both production environment and during Quarterly DR Drills) 2. The switch over from DC site to DR site shall be without any interruption in services. RPO = 5 min., RTO = 1 hr.	The current DR architecture and performance benchmarks require reassessment based on the latest DR drill results. The proposed RTO and RPO can only be realistically met after optimizing the existing setup. We therefore request a four-quarter transition period with no SLA penalties until the improvements are implemented and validated. Additionally, SLA breaches should exclude delays caused by third-party dependencies—such as GST portal whitelisting, DNS updates, or other external agency activities—as these are outside the bidder's control and directly impact DR activation timelines. We request to modify RTO and RPO as per below RPO = 5 min, RTO = 2 hr.	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
3	8.1 SLA for Maintenance & Support, Page 90	Application response time – (This is the time taken from submission of any request by end user to response of the request to the end user). And Performance – Portal's Homepage before or after login for all Modules	Request to apply the application response time only on the standard forms and not on custom forms/reports.	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
4	8.2 SLA for Helpdesk Services	8.2 SLA for Helpdesk Services	Critical/High/Medium/Low Prioritization of tickets shall be mutually agreed with FCI and bidder.	The Clause shall remain the same

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

CORRIGENDUM - I REQUEST FOR PROPOSAL FOR SELECTION OF AGENCY FOR MAINTENANCE & SUPPORT OF "FINANCIAL ACCOUNTING PACKAGE (FAP)"

Bid No: GEM/2025/B/6944812

#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
5	8.2 SLA for Helpdesk Services	8.2 SLA for Helpdesk Services	We are requesting to change SLA as per below (Industry practice) Medium – 1 day response and 3 days resolution Low – 2 days response and 5 days resolution Please provide SLA relaxation for 4 quarters for all type of tickets (Critical, High, Medium and Low).	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
6	5. 8.3 SLA for Patch Updates / Upgrades	Timely Application of Patch Updates and Upgrades	The current Oracle EBS environment is more than a decade old and includes extensive customizations. Additionally, EBS, the operating system, and related components are not on the latest software versions. Due to these factors, a four-quarter period is required to assess the impact of upgrading or updating to the latest versions on the highly customized applications. Therefore, we request that the SLA be applied only after this four-quarter assessment period.	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
7	8.2 SLA for Helpdesk Services, Page 95	The Service Provider shall be responsible, on an ongoing basis, for coordination with other vendors and agencies of the Corporation to resolve issues and oversee resolution of the same. The Service Provider shall also be responsible for resolving conflicts between vendors in case of borderline issues.	We are requesting that bidder shall not be responsible for data breach, delays, non-responsiveness and quality of work performed by other vendors/agencies of the Corporation and to resolve conflicts between other vendors and agencies of the Corporation. SLA penalty (if any) shall be applied to bidder for reasons that are solely attributable to bidder.	The Clause shall remain the same
8	2.10 (p.38)	Helpdesk staff require excellent verbal and written skills in English and Hindi	Please confirm if there are any background check expectations for Helpdesk staff (police verification, EPFO/ESIC, NDA etc).	Request made by the organisation is not clear. Hence no action

Request for Proposal (RFP) for Selection of System Integrator/Agency for Maintenance & Support of FAP

CORRIGENDUM - I REQUEST FOR PROPOSAL FOR SELECTION OF AGENCY FOR MAINTENANCE & SUPPORT OF "FINANCIAL ACCOUNTING PACKAGE (FAP)"

Bid No: GEM/2025/B/6944812

#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
				is requested to be taken
9	8.2 (p.93-95) & 8.8 Note (p.100)	SLA timer rules & exclusions	Confirm clock start/stop conditions (awaiting user inputs, OEM/CSP delays, external network outages, planned maintenance). Do timers pause under these statuses?	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
10	8.1, 8.2 penalties (p.90-95) & 6.2(d), 7.5(b)	Penalty interactions and caps	Confirm whether penalties are cumulative across SLA lines and invoices, and reconfirm the 10% cap per invoice/contract application logic.	Refer RFP Clause 6.2(d)
11	6.2 Payment Schedule (p.77-78)	Payments after deduction of applicable penalties capped at 10%	Reconfirm cap interpretation: Is the 10% cap per invoice separate from overall contract cap? How are multi-SLA deductions aggregated?	Refer RFP Clause 6.2(d)
12	8.1 System Availability (p.90-92)	Availability measurement & exclusions	Confirm if Helpdesk tool availability is in scope of System Availability KPI, or only FAP apps/DC/DR. If in scope, define measurement and exclusions (planned maintenance).	Yes, as per the System Availability KPI, the Helpdesk tool will follow the same measurement and exclusions as defined for the system availability of FAP applications and their associated DC/DR infrastructure.
13	2.4 Hosting & DR (p.29-31) & 8.1 #4 (p.91-92)	DR drills & failover communications	During DR drills/failovers, confirm Helpdesk obligations for user communications, status pages, and post-incident reports; provide drill calendar expectations (min. 2/year).	The Clause shall remain the same

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
14	Pg 91, Section 8.1	Time taken to recover from Disaster scenario requiring switchover to DR site and successful operations from the DR site and restoring services to normalcy at DR with no data loss. (This SLA is applicable for both production environment and during Quarterly DR Drills) 2. The switch over from DC site to DR site shall be without any interruption in services. RPO = 5 min. RTO = 1 hr.	While No Data Loss is mentioned, RPO is 5 min. What should be considered for solutioning?	RPO to be adhered in case of disaster and on regular day there is should be no data loss
15	Pg 91, Section 8.1	The response shall be measured from 5 systems at any given point in time for both DC & DR- measured monthly.	As we understand DC is active and DR is passive. Response time for DR can be ascertained only during DR drills and reported accordingly. Please confirm this understanding	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
16	Pg 43, Section 2.16	A system generated report shall be shared (on need basis) providing a detailed summary of all the transactions or activities processed by the proposed system within a specified period. The report shall be generated via specialized software tools used in the proposed solution that track and record transactional data.	Transaction report can be generated from database. What is the specialized software tool required for this?	Utilization (CPU, Memory, Storage) , Availability, Performance Report & other parameters related to system health are expected in this report
17	Pg 26, Section 2.1	The SI shall develop and maintain inventory database of all assets of the FCI FAP like server/infrastructure details, software licences, databases details, VA Score or any similar details and share with FCI on quarterly basis and whenever it is required by FCI.	Believe this is limited to IT infrastructure deployed in DC/DR and utilized for applications in scope of this RFP?	The inventory DB asked should include IT Infrastructure deployed as well as Application and Software installed on the Infrastructure

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
18	Pg 144, Section 11.2	Current Database Size - 4.5 TB. Increasing 200GB per YoY	What is current data size and annual increase for Payroll module, Bill Tracking System and CPF Self Service Portal	There is a single database for FAP and all its modules, including Payroll, Bill Tracking, and CPF Self Service Portal.
19	Section 8.1 SLA for Maintenance & Support	Applicable Penalty target is 99.50% per quarter And penalty is calculated Uptime = [Total time – downtime] with the targeted performance by 99.5%. Total Time shall be measured on 24x7x365 basis for the Application.	Since Oracle provide its own service availability SLA's and provide service credits if SLA is breached. Kindly align and map Applicable Penalty from percentage of Quarterly Invoice of O&M to OCI Service Credit Percentage	The Clause shall remain the same
20	NA	General	What are the current adherence levels of the SLA's in RFP What is the count of open issues	Open Issues count has been added in the corrigendum
21	Page: 121, 10.8 Form 8: Certificate for Experience	"No of Locations" in Certificate of Experience	Applications are centrally deployed at DC and used by users across multiple locations. Request you to clarify "No of Locations" to be mentioned in the CA certificate.	The No. of location from which the project team has been operating
22	General	Single Sign On	Is Single Sign-On (SSO) currently configured for Oracle E-Business Suite (EBS)? If yes, could you please specify the tool or technology being used for the SSO integration (e.g., Oracle Access Manager, Azure AD, Okta, etc.)?	Currently not configured

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
23	General	Do we have any non-oracle eBS applications which need to be considered in scope?If yes please specify the name of those applications	Share the list non Oracle EBS applications	Mentioned in RFP Clause 1.3 Project Background
24	General	What are the key services in use (compute, storage, networking,Firewall etc) in OCI?	Please provide the OCI Architecture.	Multiple OCI services across compute, Oracle Database Cloud Service (DBCS), storage,Identity & Access Management (IAM), networking, firewall, Backup & Disaster Recovery Services
25	General	Is the EBS Database is on DBCS or its running on IaaS?	kindly confirm	All DB used Oracle Base DB service Production DB runs on License included model, while test and dev run on BYOL. Expected that all will run on BYOL in future
26	General	Do we have any other database Maintenance and support is in scope otherthan oracle eBS database?	Kindly share the detail	All the Applications as stated in RFP Clause 1.3 Project Background need to be supported Core Application is in single Oracle database, Additional DB may be utilised by supporting tools

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
27	General	What is the current frequency of patching and hardening activities across FCI components?	Kindly share the detail	Patches are applied only when Oracle provides fixes for issues.
28	General	Are there specific OS or application versions that require special handling during patching?	Kindly share the detail	No special handling is required in the current system
29	General	Can we get the finalized security policy or framework currently in use?	Kindly share the detail	Shall be provided during Knowledge Transfer
30	General	What tools or platforms are currently used for monitoring and managing data security?	Kindly share the detail	Standard Oracle Cloud Features and services
31	General	Which antivirus/anti-malware solutions are currently deployed?	Kindly share the detail	Currently, No Antivirus
32	General	What protocols are used for secure communication between end-users and servers (e.g., VPN, SSL/TLS)?	Kindly share the detail	All applications uses SSL, except Oracle EBS.
33	General	What kind of VPN is currently configured between on-prem to OCI cloud?	Kindly share the detail	Site to Site VPN is configured
34	General	Do we have already existing DR solution is in place or need to configure DR on OCI?	Kindly share the detail	Yes — DR is already set up and in sync.
35	Page 41	All system upgrades are considered as a part of the maintenance and support and will be managed by the SI. No additional change	40 days for a change to be considered as CR as quiet a steep requirement. We suggest to have a quarterly bucket for enhancements.	The Clause shall remian the same

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
		requests will be accepted for system upgrades.		
36	Security Audit- Page 58	The SI shall ensure an annual security audit is conducted by a MeitY/CERT-In empanelled agency to review security policies, following MeitY Security Guidelines. Cost will be borne by SI	How will we decide on partner for the same	Refer Clause 2.14
37	Page 38	Treasury, Budgeting & Costing are also mentioned.	Need to Clarify what are the inventory management modules	Refer Clause 1.3 Table titled -List of modules implemented under FAP
38	Page 195	Average Ticket count 1) Data Fix - 200 2) Bug Fix - 175 3) Educational Issues - 1650 It is mentioned as 378 in the bid	Need clarity	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
39	Page 55	MIS and SLA reports shall be provided by the SI via an automated Service Level Management (SLM) tool to be deployed by the SI. All decision regarding SLA compliances or deviations shall be governed strictly as per the output of the SLM tool and no manually generated report shall be considered/acceptable. *SLM/Helpdesk Tool shall be as per the latest industry standard and must be implemented and currently in use in any Govt office/PSUs.	Will tool be provided by FCI	No
40	Page 115	Any recommendation made by any form of audit conducted on the Solution. The Audit may be conducted by the SI.	SI may or may not have capability to conduct such audit	The Clause shall remain the same

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
41	Page 98	Penalties applicable on breach of Service Level Agreement (SLA) shall be capped at ten (10) % of the total Contract value subject to maximum Ten (10) % penalty on the respective invoice value.	Request to drop	The Clause shall remain the same
42	Section 2.4.m - Hosting over Cloud and DR Site (Page 30)	The SI shall provide the rate chart of the cloud services to FCI to use as a reference in case of over-utilization of cloud resources	The rate chart is subject to change at the discretion of the CSP and SI cannot be held responsible for that. SI will however, honor the overall prices mentioned in the commercial bid for the quantum of Cloud infrastructure quoted by the SI in its proposal to the FCI	The Clause shall remain the same
43	Section 2.7 - Change Requests (Page 33)		In case a CR requires augmentation of the Cloud Infrastructure, then FCI would have to bear the cost of procurement of said infrastructure	For any CR, the commercial agreed should include all the available parameters
44	Section 2.7 – Change Requests (Page 33-36)	Rate card required, but no baseline effort estimation methodology defined.	Please define effort estimation methodology (Function Point Analysis or Work Breakdown). Confirm if statutory changes will be treated as non-chargeable CRs.	The Clause shall remain the same
45	Section 2.10 – Helpdesk (Page 37)	The SI shall be responsible to arrange necessary services such as SMS Gateway, Email, Toll Free number (telecom services) or any other similar tools required during the contract period. Any cost involved in the arrangement of these shall be borne by the SI. Recurring cost towards SMS charges (if any) shall be borne by FCI on actuals	1. Please specify the number of messages expected to be sent throughout the duration of the contract. 2. It is requested that the toll free number is procured by FCI directly so that the ownership also rests with FCI	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
46	Section 2.10 – Helpdesk (Page 37-39)	Requires SMS gateway and toll-free number, but cost-sharing for recurring telecom charges unclear.	Please clarify cost-sharing for SMS gateway and toll-free number recurring charges.	Refer the amendments made to the relevant section

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				of the RFP published via this corrigendum.
47	Section 2.11 – Additional Scope (Page 40)	Performance monitoring tool required, but specifications and reporting format not provided.	Please share tool requirements and reporting templates. Confirm if FCI will accept SI-provided tool or specify preferred tool.	Performance related to Application and Infrastructure has to be monitored and relevant tool to be brought in by SI
48	Section 7.3 – Termination Clause (Page 81)	FCI reserves the right to terminate for delays or unsatisfactory performance with 30-day notice.	Please clarify if a cure period (e.g., 30–45 days) will be allowed before termination. Also, request that termination be limited to material breach only.	Refer RFP Clause 7.3
49	Section 7.7 – Governing Laws & Dispute Resolution (Page 82)	In case of any dispute arising out of and touching upon the Contract, the same shall be first referred to the Dispute/Grievance Redressal Committee constituted by FCI and functioning at Headquarter of the Corporation	It is requested that the Grievance Redressal committee have independent members and also have representation from the bidder	The composition of Grievance Redressal committee will be decided after onboarding of SI
50	Section 7.14 – Risk Purchase (Page 85)	In the event the successful bidder fails to execute the project as per the terms of the contract agreement or in accordance with directions issued by FCI from time to time, FCI reserves the right to procure similar services from alternate sources at the risk, cost, and responsibility of the successful bidder	The procurement should be done as per the applicable public procurement guidelines.	The Clause shall remain the same
51	Section 8.1 – DR Switch SLA (Page 91)	RTO = 1 hr	RTO of 1 hour may not be achievable. Request that this be revised to 2 hours	Refer the amendments made to the relevant section

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
				of the RFP published via this corrigendum.
52	Fall Clause	There is no mention of Fall Clause in RFP which would mean that the T&C as per GeM portal for this would apply	Request that the Fall Clause specification of GeM is specifically overwritten in this RFP to avoid contractual issues at a later stage	The Clause shall remain the same
53	Appendix III Section 11.4.- Licenses (Pg. 145)	The System Integrator (SI) is responsible for covering the Annual Technical Support (ATS) costs for the Oracle licenses used in the project	Request to provide more clarity	Refer RFP Clause 11.4
54	Section 2.4 (b)- Hosting over Cloud and DR Site (Pg. 29)	The SI may propose migration to an alternative Cloud Service Provider (CSP), subject to the prior written approval of FCI	Request to provide more clarity	Refer RFP Clause 2.4
55	Section 8 - Service Level Agreement (Page 88)		1. Please share the current SLAs for application performance and helpdesk 2. Please share the current availability report of the application and performance reports as there are specific SLA asked in the RFP. 3. Please share the breakup of current ticket trend severity wise. In case the current SLA and performance are not aligned with the SLA in the RFP, please either: 1. Revise the SLAs mentioned in the RFP; OR 2. Give bidders the option to establish new baseline SLA within 3 months of onboarding. In case significant changes are required to make the application compliant with RFP SLAs, these changes should be taken up as paid Change Requests	For Tickets Data, refer the amendments made to the relevant section of the RFP published via this corrigendum.

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
56	Section 8 - Service Level Agreement (Page 88)	Penalties	It is requested that penalties are applied on the services component only and not on the license cost. Accordingly, the BoQ should capture both separately	Refer 'Applicable Penalty/Penalty' mentioned under Clause 8
57	Section 8.2 - SLA for Helpdesk Services (Page 93)		Please reconsider either the resolution time or deployment of resources as the resolution time is defined in clock hours whereas the team deployment is in business hours	Refer RFP Clause 8.2 (c), (d) & €
58	Section 4.10.7 (page 65)	Certifications - CMMi Level 5	Request to allow CMMi Level 3 also in PQ criteria OR please allow submission of certificate substantiating that CMMi Level 5 appraisal is under progress. Additional 2 marks may be allocated to CMMi Level 5 companies in TQ	The Clause shall remain the same
59	Section 4.11.1 (page 66)	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) shall have experience successfully completed or phase-wise/partial completion of Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to 2024-25) for any Indian Govt. (Central/State)/Ministries/ PSUs/Government Autonomous Bodies	Please allow experience with Private organisations as well in line with TQ # 4.	The Clause shall remain the same
60	Section 10.4.6 (page 113)	Bidders need to submit a certificate signed by statutory auditor/ CA/ CS citing value of application development/ rollout services in case submitted project is a system integration/ turnkey services project.	1. Given that Operations and Maintenance projects are allowed, it is understood that a certificate mentioning the value of software components will be acceptable. Please confirm. 2. Further, O&M projects generally do not have milestones, hence, it is understood that the WO and certificate mentioning the value	The Clause shall remain the same

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			of software components would be acceptable as the only documents required. Please confirm	
61	Section 2.12 Current Integrations (page 40)		Integrations – Are the integrations point to point or they are done using a middleware ?	Integrations details mentioned in RFP Clause 1.3 Project Background
62	Date and time for submission of online bids		Request that the bid submission is extended by 2 weeks beyond 19th December 2025	Please refer corrigendum
63	General	Software licenses and products	For complete clarity it is requested that a clear table be provided for licenses/ products to be provided by FCI and ones to be brought by SI	Refer Clause 11.4
64	4.10 Pre-Qualification Criteria - Point 2 - Financial Turnover Page No. 62	The Sole bidder from services related to software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 350 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets). In case of Consortium, • Lead bidder from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 262.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 . (as per the last published audited balance sheets).	In case of Consortium Partner, the minimum sales turnover to be reduced from Rs. 87.50 crore in each of the last three (3) financial years to be reduced to Rs. 50 Crore of Annual Average Turnover. The Consortium Partner is an MSE (Micro and Small Enterprise) and such does not have a high turnover	The Clause shall remain the same

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		AND • Consortium Partner from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 87.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets).		
65	4.10 Pre-Qualification Criteria - Point 5 - Relevant Business Experience Page No. 63/64	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have experience of successfully Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	Request to change the criteria to Private Sector projects. Request to reduce the project values as it's difficult to a single project of such high values.	The Clause shall remain the same
66	4.10 Pre-Qualification Criteria - Point 7 - Certifications Page No. 65	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) must have the following certificates valid at the time of submission of bid: • ISO 9001	Request to relax the condition of CMMI Level 5	The Clause shall remain the same

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
		• ISO 20000 • ISO 27001 • CMMI Level 5		
67	1.3 Project Background - Page 23	List of Modules implemented under FAP	There are custom solutions built, would like to understand the complete technologies stack e.g. react, node.js etc. used along with architecture diagram for below applications: Employee Payroll DPS labour Payroll Department labour Payroll NWNP payroll CPF Module Pension Module CPF Self Service Portal Mantis Bug Tracking System Bill Tracking System (BTS)	Shall be provided during Knowledge Transfer
68	2.12 Current Integrations	Integrations with Internal FCI applications and Integrations with External Applications	What is the integration platform/Technology used along with integration diagram for integrating each of below applications with Oracle EBS: PFMS GST Portal CFPP NIC SMS and Email Gateways Anna Darpan Employee Payroll DPS labour Payroll Department labour Payroll NWNP payroll CPF Module	Shall be provided during Knowledge Transfer

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#	RFP Document Reference(s) (Section & Page Number)	Content of RFP requiring Clarification	Points of clarification	FCI Reply
			Pension Module CPF Self Service Portal Mantis Bug Tracking System Bill Tracking System (BTS)	
69	NA	Technical Scoping	What is count of technical components within Oracle EBS for: Number of custom Reports - BIP/RDF Number of Personalisation's Number of Customised Workflows Number of custom D2K forms Number of Custom WEBADI's Number of custom PL/SQL objects/packages/scripts	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
70	4.10 Pre-Qualification (PQ) Criteria, Page no 65	Sl.no 12 Oracle Certified Partner The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), must be an Oracle Certified Partner with a valid certification extending beyond the bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period	In case of Consortium Partner, any one either lead bidder or the Consortium partner shall have the Oracle Certified partner with Valid Certifications extending beyond the bid validity period.	The Clause shall remain the same
71	4.10 Pre-Qualification (PQ) Criteria, Page no 65	Sl.no 12 Oracle Certified Partner The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), must be an Oracle Certified Partner with a valid certification extending beyond the	Ambiguity in both the sentences - The First paragraph says whether as lead bidder or Consortium partner must be an Oracle certified partner. Second paragraph says In case of a consortium, both the lead bidder and the	Refer the amendments made to the relevant section of the RFP published via this corrigendum.

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		bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period	consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period. Request for calrifications on the same.	
72	4.10 Pre-Qualification (PQ) Criteria, Page no 63	Sl.no 5 Relevant Business Experience The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have experience of successfully Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/Ministries/PSUs/Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) shall have experience of successfully Development, implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. Central/State)/Ministries/PSUs/Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	The Clause shall remain the same
73	4.10 Pre-Qualification (PQ) Criteria, Page no 64	Manpower Strength The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) must have at least 500 technically qualified professionals on its role in the Application development, deployment, O&M,IT/ITES who	Manpower Strength The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) must have at least 500 technically qualified professionals on its role in the Application development, deployment, O&M,IT/ITES	The Clause shall remain the same

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		have prior experience in Application system maintenance & management. Out of the 500 technical manpower, At least 300 resources shall be B.E/B.Tech/MCA/MBA with developer technical certifications. At least 50 Oracle/SAP/Application Software expert professionals At least 30 professionals with PMP certification. At least 20 professionals with ITIL V3 (Intermediate or above)/TOGAF/ITSM certifications	who have prior experience in Application system maintenance & management. Out of the 500 technical manpower, At least 300 resources shall be B.E/B.Tech/MCA/MBA with developer technical certifications. At least 15 Oracle/SAP/Application Software expert professionals At least 15 professionals with PMP certification. At least 10 professionals with ITIL V3 (Intermediate or above)/TOGAF/ITSM certifications	
74	7.3 (Termination for Convenience)	(iii) If the selected bidder fails to complete the assignment as per the timelines prescribed in the RFP and the extension if any allowed, it shall be a breach of contract. The FCI reserves its right to cancel the order in the event of delay and encash the PBG (including e-BG) as liquidated damages for the delay. (b) FCI shall send a formal notice of termination, 30 days prior to date of termination, to the selected bidder. (c) FCI reserves the right to recover any dues payable by the selected bidder from any amount outstanding to the credit of the selected bidder, including the pending bills and/or invoking the PBG (including e-BG) under this contract.	Suggest revision of this clause: If the selected bidder fails to complete the assignment as per the timelines prescribed in the RFP and any extension if any allowed, it shall be a breach of contract only if such delay is solely attributable to the bidder and not caused by force majeure, FCI delays, or third-party actions. The FCI reserves its right to cancel the order in the event of such material delay after providing a written notice and a reasonable cure period (minimum 30 days) and encash the PBG (including e-BG) subject to the agreed liability cap and only after completion of the dispute resolution process. (b) FCI shall send a formal notice of termination, 6030 days prior to date of termination, to the selected bidder.	The Clause shall remain the same

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			(c) FCI reserves the right to recover any undisputed and mutually agreed dues payable by the selected bidder from any amount outstanding to the credit of the selected bidder, including the pending bills and/or invoking the PBG (including e-BG) in case of proven material breach under this contract.	
75	7.4 (Consequences of Termination)	a. In the event of termination of the contract due to any reason whatsoever [whether consequent to the stipulated term of the contract or otherwise], FCI shall be entitled to impose any obligations and conditions as may be necessary to ensure efficient transition and effective business continuity of the service(s) which the SI shall be obliged to comply with and take all available steps to minimize loss resulting from that termination/breach, and further allow the next successor to take over the obligations of the erstwhile the SI in relation to the execution/continued execution of the scope of the contract. b. Nothing herein shall restrict the right of FCI to invoke PBG (including e-BG) and any other guarantees, securities furnished and pursue such other rights and/or remedies that may be available to FCI under law or otherwise.	a. In the event of termination of the contract due to any reason whatsoever [whether consequent to the stipulated term of the contract or otherwise], FCI shall be entitled to impose any obligations and conditions as as may be necessary agreed under the Contract to ensure efficient transition and effective business continuity of the service(s) which the SI shall be obliged to comply with and take all available steps to minimize loss resulting from that termination/breach, and further allow the next successor to take over the obligations of the erstwhile the SI in relation to the execution/continued execution of the scope of the contract. b. Nothing herein shall restrict the right of FCI to invoke PBG (including e-BG) and any other guarantees, securities furnished and pursue such other rights and/or remedies that may be available to FCI under law or otherwise in case of proven material breach	The Clause shall remain the same

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			by SI after due notice and cure period.	
76	7.14 Risk Purchase	In the event the successful bidder fails to execute the project as per the terms of the contract agreement or in accordance with directions issued by FCI from time to time, FCI reserves the right to procure similar services from alternate sources at the risk, cost, and responsibility of the successful bidder. Prior to initiating such action, FCI shall issue a written notice of thirty (30) days to the successful bidder.	Suggest revision of this clause: In the event the successful bidder fails to execute the project due to reasons solely attributable to the bidder and not caused by force majeure, delays by FCI, or third-party actions, as per the terms of the contract agreement or in accordance with directions issued by FCI from time to time, FCI reserves the right after following the agreed dispute resolution process to procure similar services from alternate sources at the risk, cost, and responsibility of the successful bidder subject to incremental/reasonable cost 5% over and above service charges for such services/deliverables.. Prior to initiating such action, FCI shall issue a written notice of thirty (30) days as curing period to the successful bidder..	The Clause shall remain the same
77	Payroll Redevelopment Payment Schedule Section: 6.3 Page: 78	Milestone: Requirement Gathering, Analysis and Documentation of the complete system. Timeline (In Weeks): T + 4 = 28 days	1. Please clarify whether a complete list of stakeholders and designated spokespersons will be provided. Additionally, what will be their defined availability for discussions and approvals? These parameters are critical, as any delays in stakeholder engagement could impact the documentation timelines. 2. Requirement Gathering and preparation of FRS within one month is acceptable. However, the timeline for the SRS should be	The Clause shall remain the same. Shall be provided after SI Onboarding

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			at least T + 6 weeks, treated as a separate milestone.	
78	Master codes; Section: 2.1(k); Page No: 26	SI shall update standard master codes (LGD, Depot codes, etc.) as decided by FCI.	1. Please share the process & SLA for receiving master-code change instructions from FCI	Shall be provided during Knowledge Transfer
79	Change Requests Section: 2.7 (Pages 33–36) & Appendix I; Section: 9 (Pages 102–103)	Changes < 40 person-days are not considered chargeable CRs; SI must submit CRN proposal within 15 working days.	1.We suggest below changes- Any effort exceeding 40 person-days within a quarter should be treated as a Change Request (CR). Additionally, any unused person-hours from the quarter should not be carried forward or accumulated in the next quarter.	The Clause shall remain the same
80	Helpdesk Management Section: 2.10; Pages: 37–39	Minimum four onsite helpdesk resources; SI to arrange telecom/SMS/email tools; recurring SMS cost borne by FCI on actuals.	1. Please specify approved SMS/email gateways (NIC/other) and whether FCI provides sender IDs and SMTP relays. 2. Kindly Confirm if toll-free number is mandatory and request to share the expected call volumes/SLAs for IVR.	Refer RFP Clause 2.10
81	Minimum Qualification of Resources Section: 3.2; Pages: 46–48	Experience thresholds (e.g., Project Manager 13+ years; Team Lead 8+ yrs); certifications desired/mandatory in some cases.	1. Kindly confirm which certifications are strictly mandatory vs desirable (e.g., PMP, ITIL), and whether equivalence (PRINCE2, Agile-PM) is acceptable.	Clause 3.2 mentions, Minimum Post-Qualification Experience is mandatory whereas 'Desirable Post-Qualification Experience' is Desirable
82	Integrations – Internal & External Section: 2.12; Pages: 40–41	Ongoing integrations: PFMS, GST Portal, HRMS, CFPP, NIC SMS/Email, Anna Darpan; bilingual interface using LinguaSol tool.	1. Please share interface specs, API endpoints, message formats, security mechanisms (certs/VPN), throughput/volume estimates, and whether	Shall be provided during Knowledge Transfer

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			LinguaSol licenses/support are provided by FCI or must be provisioned by SI.	
83	List of Reports Section: 2.15; Page: 42	Daily error logs; quarterly CR summary; CSP patches issued & applied; forward patch plan; inventory; preventive/break-fix logs; bug resolution stats; attendance register.	1. Please confirm report templates, submission portals (BTS/SLM), and whether digitally signed PDFs are mandatory for audit purposes.	Shall be provided after SI Onboarding
84	List of Deliverables/Documents Section: 2.16; Pages: 42-43	Risk/Communication/Performance Monitoring plans; testing reports; UAT cases & completion; Security Audit Certificate; updated manuals; FAQs; transactional & helpdesk/SLA reports; patch notes.	1. Please define the approval workflow, SLAs for acceptance/rejection. We assume that the current system documentation, FAQs, manual, Reports, Audit etc. is upto date at the time of handover. Any Gap in the existing document should not be considered for SLA calculation.	The Clause shall remain the same
85	2 Scope of Work	General	Kindly provide the current ticket volume for the FAP application along with a detailed classification into L1, L2, and L3 for the month.	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
86	2.4 Hosting over Cloud and DR Site, Point No. "n", Page 30 of 157	Cloud services shall be accessible via Internet, Point to Point/MPLS, Leased Lines, OFC WAN, or similar options. SI must provide suitable connectivity between FCI's network and Cloud DC Facilities.	Please provide information of current bandwidth and latency and also request to confirm ownership/procurement responsibility for last-mile links.	Will be shared after SI onboarding
87	8.1 SLA for Maintenance & Support	System Availability (Availability of all services/modules measured in terms of Uptime) Target 99.50% per Quarter	As the new SI will be supporting an existing legacy system, we request to revise the System Availability target to 95% per quarter.	Clause shall remain the same
d	8.1 SLA for Maintenance & Support	Application response time – (This is the time taken from submission of any request by end user to response of the request to the end user). Target -2 Sec	The SLA should align with the current legacy system, and the application response time requirements should match the existing	Refer the amendments made to the relevant section

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			standards. Kindly share the current application performance benchmarks.	of the RFP published via this corrigendum.
89	8.1 SLA for Maintenance & Support	Performance – Portal's Homepage before or after login for all Modules Target- 2 sec	The SLA should align with the current legacy system, and the application performance requirements should match the existing standards. Kindly share the current application performance benchmarks report.	Shall be provided during Knowledge Transfer
90	8.1 SLA for Maintenance & Support	RPO = 5 min. RTO = 1 hr.	Kindly share the current RTO and RPO details. The System Integrator should comply with the existing SLA.	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
91	8.1 SLA for Maintenance & Support	General	Any issues arising due to OEM or other stakeholders should be excluded from SLA calculations. Please confirm.	Refer the amendments made to the relevant section of the RFP published via this corrigendum.
92	8.5 SLA for Manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Request to consider 5-6 weeks time for resource deployment after signing of the contract.	The Clause shall remain the same
93	8.5 SLA for Manpower	General	Request to consider 3-4 weeks time for replacement of resource.	The Clause shall remain the same
94	8.6 Other SLAs	Timely upgrades and updates	It is assumed that all components of the existing system will be fully functional and running on the latest version during the handover of the FAP application. Please confirm	Refer RFP Clause 11

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95	8.6 Other SLAs	100% of all recommendations agreed upon with FCI, to be implemented by the SI within 5 working days of notice from FCI	The timeline for the implementation of the recommendation will be mutually agreed between FCI and the SI partner based on the overall complexity of the observation.	The Clause shall remain the same
96	6.2 Payment Schedule	Payment shall be made after deduction of applicable penalties capped at 10% of the total Contract value subject to maximum 10% penalty on the respective invoice value. Any applicable penalties shall be exclusive of any taxes.	As the current system is legacy system, request to modify the clause as- Payment shall be made after deduction of applicable penalties capped at 5% of the total Contract value subject to maximum 5% penalty on the respective invoice value. Any applicable penalties shall be exclusive of any taxes.	The Clause shall remain the same
97	Financial Turnover	The Sole bidder from services related to software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 350 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets). In case of Consortium, • Lead bidder from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 262.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 . (as per the last published audited balance sheets). AND • Consortium Partner from services related to Software Development, Implementation/Operation & Maintenance/IT/ITES shall have minimum	The Sole bidder from services related to software Development/ Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 350 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets). In case of Consortium, • Lead bidder from services related to software Development/ Implementation/Operation & Maintenance/IT/ITES shall have minimum sales turnover of Rs 262.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 . (as per the last published audited balance sheets). AND • Consortium Partner from services related to software Development/ Implementation/Operation &	The Clause shall remain the same

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		sales turnover of Rs 87.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets).	Maintenance/IT/ITES shall have minimum sales turnover of Rs 87.50 crore in each of the last three (3) financial years i.e., from 2022-23 to 2024-25 (as per the last published audited balance sheets).	
98	Relevant Business Experience	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have experience of successfully Development, Implementation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/ Ministries/ PSUs/ Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	The bidder i.e., Sole bidder/Consortium (lead bidder and consortium partner) shall have experience of successfully Development/ Implementation/Upgradation/Operation & Maintenance of Oracle/SAP/Software (application) Systems/IT/ITES in the last five (5) financial years (FY 2020-21 to FY 2024-25) for any Indian Govt. (Central/State)/ Ministries/ PSUs/ Government Autonomous Bodies of value specified herein: Single project of value INR 56 Cr. or more OR Two projects each having minimum value of INR 42 Cr. or more OR Three projects each having minimum value of INR 28 Cr. or more	The Clause shall remain the same
99	Manpower Strength	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) must have at least 500 technically qualified professionals on its role in the Application development, deployment, O&M,IT/ITES who have prior experience in Application system maintenance & management. Out of the 500 technical manpower, At least 300 resources shall be B.E/B.Tech/MCA/MBA with developer	The bidder i.e., Sole bidder/Consortium (lead bidder with consortium partner) must have at least 500 technically qualified professionals (B.E/B.Tech/MCA/MBA) on its role in the Cloud, IT/ITES who have prior experience in Application infrastructure maintenance & management. Out of the 500 technical manpower, At least 300 resources shall be B.E/B.Tech/MCA/MBA with developer	The Clause shall remain the same

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		technical certifications. At least 50 Oracle/SAP/Application Software expert professionals At least 30 professionals with PMP certification. At least 20 professionals with ITIL V3 (Intermediate or above)/TOGAF/ITSM certifications.	technical certifications. At least 50 Oracle/SAP/Application Software expert professionals At least 30 professionals with PMP certification. At least 20 professionals with ITIL V3 (Intermediate or above)/TOGAF/ITSM certifications.	
100	Certifications	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) must have the following certificates valid at the time of submission of bid: • ISO 9001 • ISO 20000 • ISO 27001 • CMMI Level 5	The bidder i.e., Sole bidder/Consortium (lead bidder or consortium partner) must have the following certificates valid at the time of submission of bid: • ISO 9001/ TL9000 • ISO 20000 • ISO 27001 • CMMI Level 3	The Clause shall remain the same
101	Oracle Certified Partner	The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), must be an Oracle Certified Partner with a valid certification extending beyond the bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period.	The bidder, i.e., Sole bidder or Consortium (whether as lead bidder or consortium partner), must be an Oracle Certified Partner with a valid certification extending beyond the bid validity period. In case of a consortium, both the lead bidder and the consortium partner shall individually be Oracle Certified Partners with valid certifications extending beyond the bid validity period.	The Clause shall remain the same